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SECURITY PART – 2

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LINKAGES BETWEEN DEVELOPMENT AND SPREAD OF EXTREMISM

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1. Concepts and Definitions

'When a decision is made that fear, terror and violence are justified to achieve ideological, political or social change, radicalisation to violent extremism occurs'

Terrorism, radicalisation and extremism are subjective concepts that have different meanings for different people. Furthermore, their meanings are constantly evolving as they manifest themselves in different ways in different parts of the world, exploiting new vulnerabilities, technologies and approaches.

1.1. Terrorism

'Terrorism is a complex and contested issue, as are the associated labels of extremism, violent extremism and radicalisation'

There is no single universally accepted definition for terrorism because the concept is invariably political and cannot be framed in a manner that excludes the state. Most acceptable words to understand terrorism are *'acts committed with the objective of seriously intimidating a population, destabilising or destroying structures of a country or international organisation or making a government abstain from performing actions'*.

1.2. Extremism

'Violent extremist ideologies have found fertile ground in fragile communities characterised by little access to development'

Extremism is generally understood as constituting views that are far from those of the majority of the population. Accordingly, one definition describes extremism as *'activities (beliefs, attitudes, feelings, actions, strategies) of a character far removed from the ordinary'*.

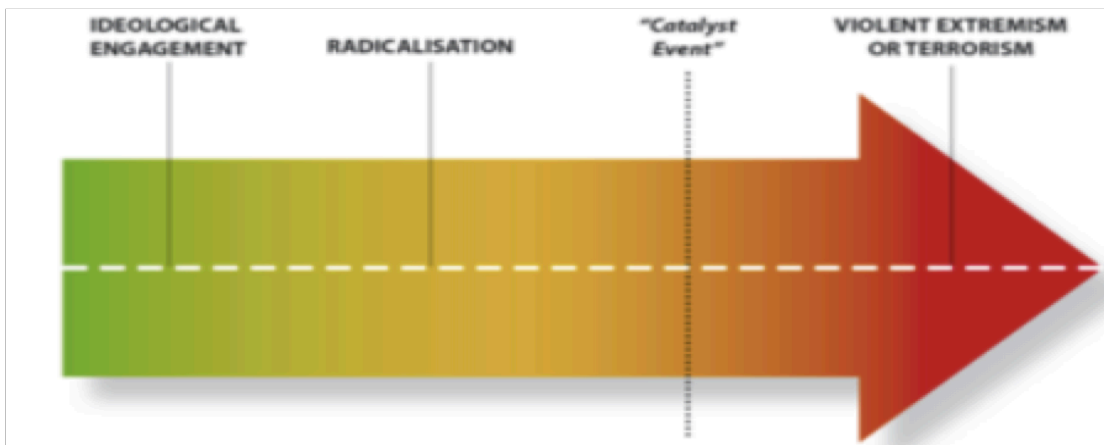
Though this is clearly a relative term which invites disagreement regarding benchmarks, it is broadly agreed that extremist views are not necessarily illegal and do not automatically lead to violence or harm. Indeed, those with extremist views and who choose to observe extreme practices with no impact on the civil liberties of fellow citizens, are rightly protected under fundamental freedoms and human rights norms.

Extremism becomes a concern when those views threaten democratic and tolerant societal ideas, or promote the use of violence to coerce their followers or to achieve their objectives. This form of extremism is described as violent extremism, a term which remains contested, but which generally refers to the creation of ideologically motivated or justified violence, as well as support for such acts.

1.3. Radicalisation

'Radicalisers work by pointing to social, political and economic injustice around their followers.'

Like terrorism and violent extremism, radicalisation is a contested term with various definitions. It is commonly understood, however, *as the social and psychological process of incrementally experienced commitment to extremist political and religious ideologies*. It does not necessarily mean that those affected will become violent. However, when a decision is made that fear, terror and violence are justified to achieve ideological, political or social change, radicalisation to violent extremism occurs.



2. India's Internal Security Situation

In the world of policy making and implementation, there is but little scope for a long term view on a state's policy, be it internal or foreign, as policy-makers are pressed for time to respond to present realities. The dynamism of India in this regard is only too intense. It is not easy to govern a country with such diversity and culture as India. Aspirations vary and expectations of the common people from the Indian state are high.

The internal security challenges in India, which has the greatest impact on state security, are **poverty** and **unemployment**. Mired in **inequalities**, the consequences of poverty and unemployment are the armed internal challenges like Naxalism and Northeastern insurgencies. These are few examples where the conflict between the development and extremism is clearly visible.

There is a **cause and effect relationship between the components of development and extremism**. The absence of development creates the breeding ground for extremism in the society, thereby creating threat to internal security of India. This, in turn, prevents further development of the region as can be seen in Naxalism-infested regions of Eastern India.

Internal security situation in the country can broadly be categorized as under:

- Terrorism in the hinterland of the country.
- Cross-Border terrorism in Jammu & Kashmir.
- Insurgency in the North Eastern States.
- Left Wing Extremism in India.

While the causes of armed violence could be many, the reality that young Indian citizens risk their lives to take up arms against the state in such dire consequences is something we need to grapple with, in a realistic manner.

3. Left Wing Extremism (Naxalism) in India

3.1. Origin and Evolution

The roots of LWE in India lie in multiple factors such as the leftist/Communist political movements, labour and agrarian unrests, the revolutionary societies and the tribal revolts that erupted during various phases of colonial rule in India.

The independence of India from the clutches of foreign rule raised immense hopes among the landless, tribals and other downtrodden sections within the country. It didn't take too long for the masses to realise that independence had brought nothing new for them and almost everything had remained the same. Neither was there any hope of change in the future.

Electoral politics was dominated by the landowners and the land reforms that were promised were not being taken up in the expected spirit. The old exploitative structure had continued in a different garb. This led to a lot of disillusionment and frustration among the masses. They could recollect the prophecies of the early leftist leaders and revolutionaries that the political independence of India from British rule would in effect mean a change of exploiters and the socio-economic structure would remain the same and that an armed revolution will be needed to end the exploitation.

This disillusionment found expression in the increased support in favour of the left parties in second general elections in Kerala. At the same time, the Communist Party of India (CPI) in Bengal was also gaining strength and the United Front (of which it was a part) was the main opposition party. The radicals within the party accused the party leadership of being "revisionists" as they opted for parliamentary democracy. The growing dissensions within the party ultimately led to the split of the CPI. The newly formed party, i.e. **Communist Party of India (M)** also participated in the United Front governments in Bengal and Kerala in 1967. But nothing substantial was realised on the ground.

The discontentment grew and the radicals within the CPI (M) began to doubt the revolutionary zeal of the leadership. They were convinced that an armed revolution was the only way out. Since they were deeply inspired by Mao's success in China, they wanted to replicate the same in India. They lost patience and started mobilising the tribals, the landless and the share-cultivators and began what is termed as the **revolutionary "armed struggle"** in certain pockets of Bengal. The movement crystallised into an organised armed movement in the aftermath of a police firing incident in Naxalbari village in the Darjeeling district of West Bengal on May 25, 1967.

3.2. Different Phases of LWE

3.2.1. The Naxalbari Phase (1967- 1972)

The Naxalbari incident could be seen as the trigger that launched the transformation of a primarily political and socio-economic agrarian movement into an armed struggle. The incident was a fall-out of the underground efforts undertaken by the radical hardline Communist leaders like Charu Majumdar, Jangal Santhal and Kanu Sanyal who were able to motivate and mobilise the landless peasants to forcibly occupy the land belonging to the landlords whom they called "class enemies".

Under the influence of Mao in China, radical Communists from different parts of the country rallied around Charu Majumdar as their leader. In 1967, the All India Coordination Committee of Communist Revolutionaries (AICCCR) was formed to reconcile the differences within the CPI (M) party. It failed and the radical leaders were expelled from the party. They then formed a new party called **Communist Party of India (Marxist-Leninist)** i.e. the CPI (ML), on April 22, 1969. The party was to follow the Maoist line to achieve revolution.

During 1969-72, fierce battles raged between CPI (ML) and government authorities, resulting in large scale violence and bloodshed. The government also seriously undertook land reforms. With the coming into power of the Congress supported government in Bengal in the year 1971, a major **operation named "Steeplechase "** was launched in which the military, paramilitary and state forces participated jointly in the Naxal affected areas. The extremist movement was brought under control within two months. The movement finally died out after the arrest and death of Charu Majumdar in July 1972. In other parts of the country as well, the movement died out gradually and there was a lull for about a decade.

Even though the "Naxalbari uprising" was a failure, it marked the beginning of the violent LWE movement in India, and the terms "Naxalism" and "Naxalite" were born. Identification of revolutionary politics with the name of a village, and not with the name of the leader is unique in history.

During this phase, the movement could not win the support of the poor peasants, sharecroppers, agricultural labourers, urban middle class and the workers at large as they did not view it as a struggle for their own cause. Besides, the masses were not mentally prepared to go in for an “armed struggle.” The excessive identification with China robbed the extremists of a nationalistic image and this factor, to a large extent, was responsible for their isolation from the common people. The movement was based on an over-optimistic evaluation of the possibility of advancing rapidly and the under-estimation of the state’s strength. Devoid of broader mass support, the movement, notwithstanding the courage, sacrifice and motivation of the activists and the protagonists, gradually petered away.

However, the leaders succeeded in providing both an ideological veneer and cutting edge militancy to the nascent Marxist-Leninist movement. They also succeeded in attracting some of the best minds among the idealistic youth of the country.

3.2.2. Post Charu Phase: Early 1970s-2000

Charu Majumdar’s death came as a blow to the Naxalites across the country. Thereafter, the CPI (ML) disintegrated into innumerable groups and subgroups which were engaged in internecine squabbles and accusing each other of betrayal and pursuing the wrong line of thought and action. The 1970s and 1980s were witness to bitter polemics which divided these groups, but, at the same time, there were efforts to rebuild the Maoist movement as a whole.

In 1971, Satyanarain Singh revolted against Charu Majumdar’s “annihilation” policy and started his own group called the CPI (ML) Satyanarayan Singh Group (SNS). Similarly, during the 1971 Indo-Pak War, Ashim Chatterjee and Santosh Rana also left the CPI (ML) due to Charu Majumdar’s opposition to the Indian government’s position. Mahadev Mukherjee and B N Sharma assumed the leadership of the CPI (ML) after the death of Charu Majumdar. But the unity did not last long as Mahadev Mukherjee expelled Sharma. Another split in the Mahadev Mukherjee camp came when CPI (ML) split between pro-Lin Biao and anti-Lin Biao groups.

From the late 1970s onwards, the centre of gravity of Naxalism gradually shifted from West Bengal to Bihar and Andhra Pradesh. The **“Liberation” group in Bihar** and the **People’s War Group (PWG) in Andhra Pradesh** emerged as the two most important left-extremist groups. In 1974, the pro-Mao, pro-Charu Majumdar, anti-Lin Biao faction of the CPI (ML) was reorganised by Subrata Dutta alias Jauhar and renamed **CPI (ML) “Liberation”**. This faction emerged as one of the strongest of all Naxal outfits and claimed to be the rightful successor of Charu Majumdar’s CPI (ML).

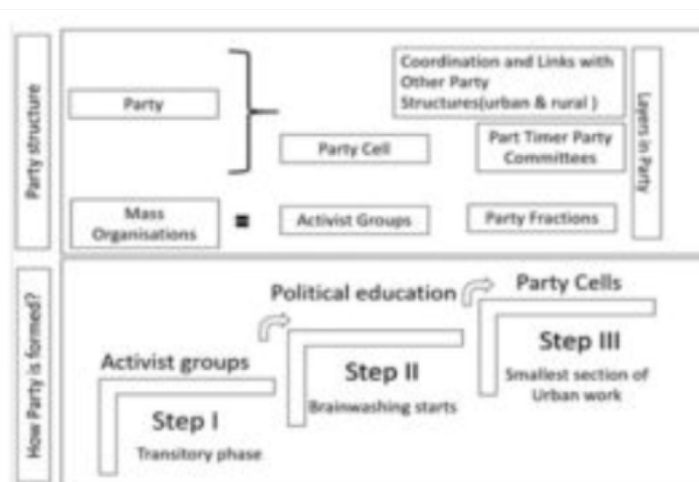
Vinod Mishra was elected as general secretary of “Liberation” in 1975. Although he claimed to follow the Charu Majumdar line, he was the first Naxal leader to recognise the futility of armed rebellion against the Indian government. Without explicitly renouncing the methods of Charu Majumdar, he started a **“rectification movement”** which was aimed at rectifying the shortcomings and lapses in the armed rebellion. As a part of this new line of thinking, “Liberation” joined the mass mobilisation and jumped into electoral politics in 1982 through a front organisation called the **Indian People’s Front (IPF)**. The IPF was envisioned as a nationwide alternative to the Congress Party. In the year 1989, IPF won a seat in the parliamentary elections and the first Naxalite member entered the Indian Parliament.

Yet another group in Bihar, which was then called “Dakshin Desh,” was founded in 1969 by Kanhai Chatterjee and Amulya Sen. This group mainly comprised lower caste and landless people and was extremely savage in executing landlords. The landlords belonging to the upper/middle caste saw this group as a threat to their dominance and raised private militias. Gangs like Ranvir Sena ruthlessly massacred Naxalites and those who were suspected to be Naxal sympathisers. The Maoist Communist Centre (MCC), formed in 1975, merged with the Revolutionary Communist Centre, India (Maoist) to form the Maoist Communist Centre (India) or MCC(I) or MCCI in 2003.

3.2.3. Emergence of the CPI (Maoist): 2004-Present

The **Maoist insurgency doctrine**, as elicited from copious documents recovered from their hideouts during several raids and encounters, is based on the glorification of the extreme left ideology. It legitimises the use of violence to overwhelm the existing socio-economic and political structure. Based on this ideology, the People's Liberation Guerrilla Army was created as an armed wing of the Communist Party of India – Maoists (CPI-M). The

PARTY STRUCTURE AND THE PROCESS OF PARTY BUILDING



The movement got strengthened in 2004 with the merger of People's War Group (PWG) that was influential in Andhra Pradesh, the Maoist Communist Centre of India (MCCI) with a stronghold in the central Indian states and the CPI-M. This merger significantly upgraded the combat capabilities of LWE groups together.

Over the decades since, the LWE movement is assessed to have impacted 40 percent of India's territory and 35 percent of its population. In 2018, according to the Ministry of Home Affairs (MHA), 60 districts in 10 states of Andhra Pradesh, Telangana, Bihar, Chhattisgarh, Jharkhand, Madhya Pradesh, Maharashtra, Odisha, Uttar Pradesh and West Bengal, were intensely affected by the LWE movement.

Based on the intensity of insurgency, 30 of the 108 districts spread over the ten States mentioned above have been classified as most affected LWE districts.

- The States of Chhattisgarh, Jharkhand, Odisha, and Bihar are considered **severely affected**.
- The States of West Bengal, Maharashtra, Andhra Pradesh and Telangana are considered **partially affected**.
- And the States of Uttar Pradesh and Madhya Pradesh are considered **slightly affected**.

Currently, the lethality of the LWE movement has increased multifold, establishing a complex web across the 10 states of India. It is estimated that these extremist outfits now have around 9,000-10,000 armed fighters with access to about 6,500 firearms. In addition, there are estimates of about 40,000 full-time cadres (Government of India 2017).

3.2.4. Contemporary Dynamics of Maoist Insurgency:

- Some sections of the society, especially the younger generation, have romantic illusions about the Maoists, arising out of an incomplete understanding of their ideology. The central theme of Maoist ideology is violence. The **Maoist insurgency doctrine glorifies violence as the primary means to overwhelm the existing socio-economic and political structures**. The People's Liberation Guerilla Army (PLGA), the armed wing of CPI (Maoist), has been created with this purpose in mind.
- In the first stage of the insurgency, the PLGA resorts to **guerrilla warfare, which primarily aims at creating a vacuum at the grass-roots level of the existing governance structures**. This is achieved by killing lower-level government officials, police-personnel of the local police stations, the workers of mainstream political parties and the people's representatives of the Panchayati Raj system. After creating a political and governance vacuum, they coerce the local population to join the movement. A strident propaganda is also carried out against

the purported and real inadequacies of the existing state structure.

- In areas under Maoist domination, the absence of governance becomes a self- fulfilling prophecy since the delivery systems are extinguished through killings and intimidation. This is a key step in the strategy of the Maoists to seek to control the countryside. In the meanwhile, **many Front Organisations are created to facilitate mass-mobilisation in semi-urban and urban areas through ostensibly democratic means.** Most of the Front Organisations are led by well-educated intellectuals with a firm belief in the Maoist insurgency doctrine. These ideologues function as masks to cover the violent nature of the CPI (Maoist) ideology. They also form the propaganda/disinformation machinery of the party.
- They stridently take up issues like 'displacement of tribals', 'corporate exploitation', 'human rights violations' by security forces etc. and often make fantastic claims in this regard which get reported even by the mainstream media. The Front Organisations also skillfully use state structures and legal processes to further the Maoist agenda and weaken the enforcement regime. The important functions of these Organisations include **recruitment of 'professional revolutionaries', raising funds for the insurgency, creating urban shelters for underground cadres, providing legal assistance to arrested cadres and mass-mobilisation by agitating over issues of relevance/ convenience.** The Front Organisations aim to provide short-term democratic subterfuge to cover-up the totalitarian and oppressive nature of the Maoist ideology.
- The CPI (Maoist) also have a strategic game-plan to **create a 'United Front' with all like-minded insurgent/terrorist outfits in India.** It needs to be remembered that many of these outfits are supported by external forces inimical to India and the CPI (Maoist) consider such alliances as strategic assets.
- In a nutshell, the CPI (Maoist), the main LWE outfit in India, aims to overthrow the existing democratic state structure with violence as their primary weapon, and mass mobilization and strategic united fronts as complementary components and plans to usher in so-called '**New Democratic Revolution**' in India.

3.3. Objective of LWE in India

- The core objective of the LWE movement is the establishment of the **People's Revolutionary State**, which is supposed to be achieved by establishing a 'Red Corridor', stretching from the Nepal border through Central India till Karnataka in the South.
- This objective is to be achieved by using **armed struggle as the prime tool** to garner the support of the oppressed and the exploited. Violent protracted struggle is therefore expected to continue to help the movement consolidate and extend the Corridor.
- Naxal leaders support various issues like protecting **people's rights of Jal (water), Jungle (Forest) and Jamin (Land) (JJJ).** These are prominent concerns of the people mainly in rural India as most of the people depend on agriculture and forest for their livelihood. Thus, any threat to these three elements is seen as a threat to their livelihood and triggers a high level of anxiety.
- In addition to building up an effective web of armed operatives to spread terror, Naxals also **recruit influential local tribal leaders** to maintain their firm grip over villagers in remote locations, like in the dense forests of Chhattisgarh and eastern states of India.

3.4. Strategy of the Naxal Movement

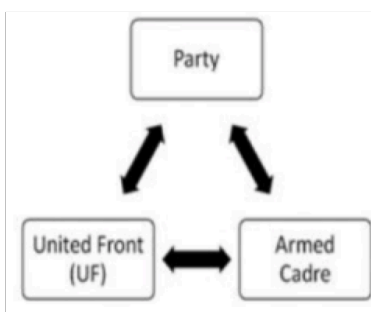
The theory and practice of revolutionary warfare has **three distinctive phases.** These are:

- *First, organization, consolidation, and preservation* of regional base areas situated in isolated and difficult terrain;
- *Second, progressive expansion*, which includes attacks on police stations, sabotage, terror tactics, elimination of persons with alternate viewpoints, and procurement of arms and ammunition from the enemy, and

- **Third, destruction of the enemy** through conventional battles including mobile warfare, protracted conflicts, negotiations, and unified command and control structures.

In practice, transition between the three phases might take years or decades. The objective of guerrilla strategy is gradual control of territory and increase in perceived local legitimacy of rebel ideology. Once that occurs, there is relative loss of legitimacy for state forces

THREE WEAPONS OF MAOIST REVOLUTION



3.4.1 Key aspects of Maoists Functioning.

1. Targeting Civilians and Economic infrastructure

The Maoists kill civilians for a variety of reasons.

- First of all, they kill those who do not subscribe to their ideology in areas under their domination they are usually branded as **'police informers'**. They also kill people to create a power and governance vacuum in rural areas and the space is filled by them. They also kill the so-called **'class enemies'**.
- All these killings lead to a chain of circumstances wherein the kin of victims can potentially rebel against the Maoists. This leads to a further chain of killings of such targets.
- Finally, it reaches a stage where the **'power to kill'** in their areas of dominance becomes the sole reason for the lower and the less **'politically conscious'** cadres to kill innocent people.

They also attack schools and economic infrastructure for the following reasons

- To keep the population in their strongholds cut-off from the mainstream milieu.
- The schools are attacked because education promotes a **spirit of enquiry** among the local population and also equips children with skills for alternative sources of livelihood.
- They also destroy infrastructure like roads and telecom networks to keep populations **isolated** from mainstream India.

2. Large women cadre

- The idea is to **brain-wash and indoctrinate** young children to Maoist ideology. Most parents do not want to part with their children. But faced with coercion and threats, many poor Adivasi parents prefer to part with the girl child. This inhuman practice by the Maoists is the reason behind the large number of young girls/women being present among the Maoist cadres.
- They are also **pushed to the forefront** of engagements with the security forces
- In States like Chhattisgarh and Jharkhand, the Maoists have formed **'Bal Dastas'** comprising young children
- In Spite of the Maoists professing disapproval of **'patriarchy'**, the number of women in top echelons of their leadership like the Polit Bureau & Central Committee are negligible.

3. Links with terrorist organisations and foreign countries

- The CPI (Maoist) have close fraternal ties with many North-East insurgent groups, especially the RPF/PLA of Manipur. Most of these outfits have linkages with external forces inimical to India.
- The CPI (Maoist) have also frequently expressed their solidarity with the J&K terrorist groups. These ties are part of their **'Strategic United Front'** against the Indian State.
- The CPI (Maoist) also have close links with foreign Maoist organizations in the Philippines, Turkey, etc. The outfit is also a member of the **'Coordination Committee of Maoist Parties and Organizations of South Asia (CCOMPOSA)**, which includes Nepalese Maoists.

- The **Indo-Bangladesh border** is sensitive on count of cross- border human trafficking including movement of suspected terror related elements, FICN dealers & other criminals. Terror elements have in the past used the Indo-Bangladesh border to cross into India. In such circumstances linkages between left wing radicals & cross border terror related networks cannot be ruled out.

4. Front Organisations

- The Front Organizations are the **off-shoots of the parent Maoist party**, which professes a separate existence to escape legal liability
- The Front organizations carry out **propaganda/disinformation** for the party, recruit '**professional revolutionaries**' for the underground movement, raise funds for the insurgency, assist the cadres in legal matters and also provide safe houses and shelters to underground cadres.

The functionaries of Front Organizations **provide intellectual veneer** to the inherent violence in the Maoist ideology. In other words, they sanitize the bloodletting, and attempt to make the Maoist world-view palatable to urban audiences and the media. The Front organizations exist in 20 States of India

3.5. Causes for Spread of Left Extremism

While the goal of the left extremists was to actualise their own vision of the State through 'revolution', they chose to usher that revolution by enlisting the support of the deprived and exploited sections of society particularly in areas where such sections constituted a significant part of the population. Breeding grounds are most glaring in forest areas predominantly inhabited by tribal populations who thus become the main instruments and victims of left extremist violence. Few causes for spread of LWE are as under:

3.5.1. Land Related Factors

- Failure of land reforms, for example, evasion of land ceiling laws.
- Existence of special land tenures (enjoying exemptions under ceiling laws).
- Encroachment and occupation of Government and Community lands (even the water-bodies) by powerful sections of society.
- Lack of title to public land cultivated by the landless poor.
- Poor implementation of laws prohibiting transfer of tribal land to non-tribals in the Fifth Schedule areas.
- Non-regularisation of traditional land rights.

3.5.2. Displacement and Forced Evictions

- Eviction from lands traditionally used by tribals.
- Large scale land acquisition and displacement for 'public purposes' without appropriate compensation or rehabilitation.

3.5.3. Livelihood Related Causes

- Lack of food security due to factors such as corruption in the Public Distribution System.
- Disruption of traditional occupations and lack of alternative work opportunities.
- Deprivation of traditional rights in common property resources.

3.5.4. Social Exclusion

- Continued practice, in some areas, of untouchability in various forms leading to denial of dignity.
- Poor implementation of special laws such as Scheduled Caste and Tribes (Prevention of Atrocities) Act, 1989, Protection of Civil Rights Act, 1955 and Bonded Labour System (Abolition) Act, 1976 etc.

3.5.5. Governance Related Factors

- Corruption and poor provision/non-provision of essential public services including primary health care and education.
- Incompetent, ill trained and poorly motivated public personnel who are alleged to be mostly absent from their place of posting.
- Misuse of powers by the police and violations of the norms of law.
- Perversion of electoral politics and unsatisfactory working of local government institutions.

3.6. Factors that Sustain the Movement

3.6.1. An Appealing Ideology

- One constant feature of Naxal ideology has been that at all times it visualises and propagates that imperialism is heading towards total collapse. This belief is the driving force of the movement.
- This belief also allows them to blame the present wrongs on the capitalist economic structure.

3.6.2. Organisational Strength of Extremists Groups

- The consolidation of various factions of the left extremists groups (LEGs) has been attributed to the **organised, institutionalised and planned** manner in which the Naxals function.
- The ideological dedication, the cadre-based organisational set-up and understanding of the micro socio-economic situation in the various regions of India makes the extremists plan, operate and implement their strategies efficiently.

3.6.3. Funding Sources

- The Naxals have been able to strategically target every source of wealth generation in their areas of influence as funding is essential for their sustenance.
- To finance their activities, the Naxalites **"accept contributions"** in the form of "taxes and levies," loot government treasuries and banks and also extort vast amounts from businesses, industries, political leaders, government officials, rich landlords and professionals.
- The Naxals exercise a monopolistic control over the forest produce and government contracts in their areas of dominance.

3.6.4. Continuous Availability of Recruits

- The extremists have been able to ensure both financial and social security to the youth in the deprived regions of the country.
- Lack of employment opportunities for the youth lures them towards the Naxals. Apart from economic security, it gives them a sense of empowerment and dignity.
- The prevailing security scenario also compels them to opt to join the Naxals for safety reasons as well.

3.6.5. Lack of an Adequately Assessed and Coordinated Response from the Government

- An appropriate assessment of any problem is the key to conceptualise, develop and implement appropriate strategies to counter it. It has been observed that there is no clear understanding of the nature and enormity of the threat that LWE poses. This has resulted in divergent approaches being adopted by different states and the central government, and their efforts remain largely uncoordinated.

- As of today, the notion of the formation of the “**Red Corridor**” that could compromise the territorial integrity of the state has been used to shift the discourse of Naxalites from being a “law and order problem” to being the “biggest internal security threat”.
- National security is being used as a blanket term to cover up the state’s confusion on devising ways and means to react to the multi-dimensional challenge the Naxal movement poses.
- Intrusive and insensitive security forces action in the Naxal affected regions also poses a threat to the socio-political and economic structures of those regions. The state’s response to the Naxal movement has been reactive, uncoordinated and inadequate.

3.7. The Government of India’s Approach

- The Government of India believes in a **holistic long-term policy** in the areas of security, development, ensuring rights and entitlements of local communities, improving governance and perception management to combat LWE.
- Most of the **security related measures**, apart from deployment of CAPFs, are aimed at assisting capacity building by the State forces.
- On the **development front**, an Integrated Action Plan (now called Additional Central Assistance to LWE affected districts) covering 88 affected districts aims at providing public infrastructure and services and is under implementation since 2010. Further, an ambitious Road Development Plan has been envisaged for LWE areas.
- An **Empowered Group of Officers** closely monitors the progress of flagship schemes. Special emphasis is being laid on the implementation of the Forest Rights Act and ensuring entitlement of local communities over Minor Forest Produce.

'Police' and 'Public Order' being State subjects, action on maintenance of law and order lies primarily in the domain of the State Governments. The Central Government closely monitors the situation and supplements and coordinates their efforts in several ways. These include:

- Providing Central Armed Police Forces (CAPFs) and Commando Battalion for Resolute Action (**CoBRA**);
- Sanction of India Reserve (IR) battalions, setting up of Counter Insurgency and Anti Terrorism (CIAT) schools;
- **Modernisation and upgradation** of the State Police and their Intelligence apparatus under the Scheme for Modernization of State Police Forces (MPF Scheme);
- Reimbursement of security related expenditure under the Security Related Expenditure (SRE) Scheme;
- Providing helicopters for anti-naxal operations, assistance in training of State Police through the Ministry of Defence, the Central Police Organisations and the Bureau of Police Research and Development;
- Sharing of Intelligence; facilitating inter-State coordination; assistance in community policing and civic action programmes etc.

The underlying philosophy is to **enhance the capacity** of the State Governments to tackle the Maoist menace in a concerted manner.

3.8. Review and Monitoring Mechanisms

To give special focus to development in the LWE affected areas, MHA has been reviewing the LWE situation regularly through a number of review and monitoring mechanisms. Reviews cover operational and developmental issues including those of other Ministries of the Government of India. These mechanisms include:

- The Union Home Minister convenes the meetings of Chief Ministers of LWE affected States.
- The Union Home Minister and the Minister of States (Home) visit LWE affected States to review the LWE situation.

- Review Group Meeting under the chairmanship of the Cabinet Secretary.
- Meetings by Union Home Secretary with Secretaries of Central Ministries and Chief Secretaries of the LWE affected States and Central Ministries.
- Empowered Committee under AS(LWE) to review the progress of various developmental schemes/projects.

3.9. Important Schemes for LWE Affected States

- **Security Related Expenditure (SRE) Scheme:** Under the Security Related Expenditure (SRE) Scheme, the central Govt. reimburses to the State Governments of 11 LWE affected States Security Related Expenditure of 90 districts relating to **training and operational needs** of security forces, **ex-gratia payment** to the family of civilians/security forces killed/injured in LWE violence, **compensation** to Left Wing Extremist cadres who surrendered in accordance with the **surrender and rehabilitation policy** of the concerned State Government, community policing, Security related infrastructure for village defence committees and publicity materials.
- **Special Central Assistance (SCA) for 30 most LWE affected districts:** The main objective of the Scheme is to fill the critical gaps in Public infrastructure and Services, which are of emergent nature.
- **Special Infrastructure Scheme**, along with **Construction of Fortified Police Stations** in the LWE affected States. The Ministry had sanctioned 400 police stations in 10 LWE affected States. Of these 399 of PSs have been completed.
- **Assistance to Central Agencies for LWE management Scheme:** Under the Scheme, assistance is provided to Central Agencies (CAPFs/IAF etc.) for strengthening of infrastructure and hiring charges for Helicopters.
- **Civic Action Programme (CAP):** CAP in LWE affected areas has been implemented since 2010-11 to bridge the gaps between Security Forces(SFs) and local people through personal interaction and bring the human face of SFs before the local population. The Scheme has been very successful in achieving its goal. Under the Scheme, funds are released to the CAPFs, deployed in LWE affected areas, for conducting various civic activities for the welfare of the local people.
- **Media Plan:** The Maoists have been **misguiding and luring** the innocent tribals/ local population in LWE affected areas by their So-called **poor-friendly revolution** through petty incentives or by following their coercive strategy. Their false propaganda is targeted against the security forces and the democratic setup. Therefore, the Government is implementing this Scheme in LWE affected areas. Under the scheme activities like **Tribal Youth Exchange programmes** organised by Nehru Yuva Kendra Sangathan(NYKS), radio jingles, documentaries, pamphlets etc. are being conducted.
- **Road Requirement Plan-I (RRP-I and RRP-II) for LWE affected areas:** This Scheme is being implemented by Ministry of Road Transport & Highways for improving road connectivity in 34 LWE affected districts of 8 States i.e. Andhra Pradesh, Bihar, Chhattisgarh, Jharkhand, Madhya Pradesh, Maharashtra, Odisha and Uttar Pradesh.
- **LWE Mobile Tower Project:** To improve mobile connectivity in the LWE areas, the Government approved installation of mobile towers in LWE affected States and 2335 mobile towers have been installed in Phase-I. Phase-II of the project has been approved by the Government of India, under which 4072 mobile towers, will be installed in LWE affected States.
- **Aspirational District:** The Ministry of Home Affairs has been tasked with the monitoring of Aspirational districts programme in 35 LWE affected districts.
- **GIS Mapping:** The project has been initiated for mapping of financial services, school, post offices, health facilities, mobile towers, PDS services, roads and security features etc. in a time bound manner. This will help the stakeholder to make informed decisions on developmental and security related issues.

- **Unified Command:** A Unified Command has been set up in the States of Chhattisgarh, Jharkhand, Odisha and West Bengal. The Unified Command has officers from the security establishment, besides civilian officers representing the civil administration and it will carry out carefully planned counter LWE measures.
- **PESA implementation:** The Left Wing Extremism affected States have been asked to effectively implement the provisions of the Panchayats (Extension to the Scheduled Areas) Act, 1996 (PESA) on priority, which categorically assigns rights over minor forest produce to the Gram Sabhas.
- **'Clear, hold and develop' strategy:** it uses development as a tool to win back the support of the tribal population, who overwhelmingly appear to sympathize with the extremists.
- **Skill Development** in 34 Districts of LWE under the 'Pradhan Mantri Kaushal Vikas Yojana' (PMKVY).
- **SAMADHAN Scheme**
- During the recent review meeting of the Chief Ministers of the LWE affected States in May, 2017, the Union Home Minister enunciated an integrated strategy through which the LWE can be countered with full force and competence. The new strategy is called **SAMADHAN**, which is a compilation of short term and long term policies formulated at different levels. The meaning was well defined by the Home Minister as:



3.10. State's Response: An Analysis of the counterinsurgency efforts

Given that law and order is under the purview of the states or provinces, the most crucial counter-insurgency efforts are in the hands of state-level leadership. The Central government supported these efforts with joint strategies, resources, intelligence and coordination.

Andhra Pradesh

- Following the attack in 2003 on then Chief Minister, who narrowly escaped, Andhra Pradesh embarked on a rapid modernisation of its police force while ramping up its technical and operational capabilities.
- The State quashed mass organisation activities through the use of civilian "vigilante" groups that it had carefully encouraged through an attractive Surrender and Rehabilitation package
- The Rubber cultivation initiative in Andhra Pradesh has been successful in providing Maoist with livelihood and income opportunities when they surrender arms.
- Succeeded in stamping out Left-wing extremism by combining police action with socio-economic programmes implemented by an effective service delivery mechanism

Chhattisgarh

- While Maoist-led violence remains a major concern in Bastar division especially the northern parts, significant progress has been made in restricting Maoists to the state's southern districts
- The game-changer seems to have been the improved road connectivity: 11 key road projects were finished by 2018, connecting the Sukma, Bijapur and Jagdalpur districts.
- The 'Bultoo' radio initiative enables the rural public to use their ordinary mobile handsets to make their point in their own language, and to record their songs, on the internet. These

are converted to Internet-based radio programmes and transmitted to all gram panchayats that have broadband facilities.

Student Notes:

Jharkhand

- The State formed a special force (the Jharkhand Jaguar modelled after the Greyhounds of Andhra Pradesh) to lead the anti-Naxal operations. The state government also framed a unique surrender policy for Naxalites.
- Together with central forces, the state launched Operation Anaconda to weed out Maoists from Saranda and succeeded in 2011.
- In the last few years, the number of Maoist-related violence—reaching its peak in 2013 with 480 incidents—has declined to 53 in 2018. There has also been a high number of rebels who surrendered — as many as 108 in 2018 alone.
- The state has set up an industrial sewing machine unit in Palamu district with the objective of sustainable livelihood creation using a model that could be enumerated in other districts. The facility fulfills the objective of supplying 2.5 lakh school dresses annually, through a Producer Group of 200 SHG members.

West Bengal

- The State adopted a three-pronged counter-insurgency strategy.
 - First, the government overhauled the security strategy by setting up an elite police team to pursue the rebel leaders.
 - Second, they offered a surrender and rehabilitation package to the rebels, promising jobs and entrepreneurial opportunities to those who would surrender.
 - Third, and perhaps most critical element of the campaign was in the form of comprehensive confidence-building measures with the people living in the Maoist-infested Jangalmahal region comprising the districts of Purulia, West Midnapore and Bankura.
- From a peak of 425 Maoist-related violent incidents in 2010 (which killed 328 civilians and 36 security forces), the numbers came down to zero by the end of 2018.
- According to a report issued by the state government, more than 250 Maoists have surrendered before the state police between 2014 and 2018. There is one district, Jhargram, that remains categorised as “highly affected” by the insurgency

Odisha

- The State has fortified the police stations, gave police officers rigorous training, and announced a suitable incentive package to police personnel involved in anti-Maoist operations.
- Importantly, thousands of tribal youth from the insurgency-affected areas were recruited as Special Police Officers (SPOs).
- The State also opened a training school in each of the seven police ranges, supplemented by 17 battalions of Central forces stationed in key Naxal affected areas.
- Over time, Odisha achieved significant progress in managing Left-wing extremism especially in the mineral-rich regions.

Bihar

- On the security front, the State initiated a number of steps including the creation of a 400-member Special Task Force as well as a Special Auxiliary Police for counter-insurgency.
- The state government revamped its surrender and rehabilitation policy to make it more attractive for insurgents to lay down their arms.
- What has perhaps yielded the most significant results was a series of development and good-governance measures adopted by the State.

- Compared to several other Maoist-affected states, Maharashtra has responded rather seriously with a slew of measures comprising both security and developmental components. For example, the State has launched major offensive operations against the Maoists in the Gadchiroli-Chhattisgarh-Andhra border.
- The state administration is working to strengthen the police machinery in Gadchiroli and other Naxal-affected areas in terms of providing specialised training, as well as more funds for modern weaponry and equipment. The state has also created a district-level force, the C-60 commando, to tackle with the issue.
- It has put in place a Surrender and Rehabilitation Policy to encourage Maoist cadres to rejoin society.
- The state police along with Central paramilitary forces have succeeded in killing scores of rebels and arresting hundreds of them in the last few years

Naxal Violence by State: Incidents and Deaths

State	2009		2010		2011		2012		2013		2014		2015		2016		2017		2018 (up to 30.06.18)	
	Incidents	Deaths	Incidents	Deaths	Incidents	Deaths	Incidents	Deaths	Incidents	Deaths	Incidents	Deaths	Incidents	Deaths	Incidents	Deaths	Incidents	Deaths	Incidents	Deaths
Andhra Pradesh	66	18	100	24	54	9	67	13	28	7	18	4	35	8	17	6	26	7	4 (16)	0 (4)
Bihar	232	72	307	97	316	63	166	44	177	69	163	32	110	17	129	28	99	22	33 (53)	7 (10)
Chhattisgarh	529	290	625	343	465	204	370	109	355	111	328	112	466	101	395	107	373	130	222 (195)	86 (89)
Jharkhand	742	208	501	157	517	182	480	163	387	152	384	103	310	56	323	85	251	56	109 (144)	28 (31)
Madhya Pradesh	1	0	7	1	8	0	11	0	1	0	3	0	0	0	12	2	3	1	3 (1)	0 (0)
Maharashtra	154	93	94	45	109	54	134	41	71	19	70	28	55	18	73	23	69	16	44 (33)	5 (8)
Odisha	266	67	218	79	192	53	171	45	101	35	103	26	92	28	86	27	81	29	53 (41)	10 (20)
Telangana	NA	NA	NA	NA	NA	NA	NA	NA	8	4	14	5	11	2	7	0	5	2	8 (0)	1 (0)
Uttar Pradesh	8	2	6	1	1	0	2	0	0	0	0	0	0	0	0	0	0	0	0 (0)	0 (0)
West Bengal	255	158	350	258	92	45	6	0	1	0	0	0	0	0	0	0	0	0	0 (0)	0 (0)
Others	5	0	5	0	6	1	8	0	7	0	8	0	10	0	6	0	1	0	0 (1)	0 (0)
TOTAL	2258	908	2213	1005	1760	611	1415	415	1136	397	1091	310	1089	230	1048	278	908	263	476 (484)	137 (162)

*Figures in bracket show details of the corresponding period of 2017

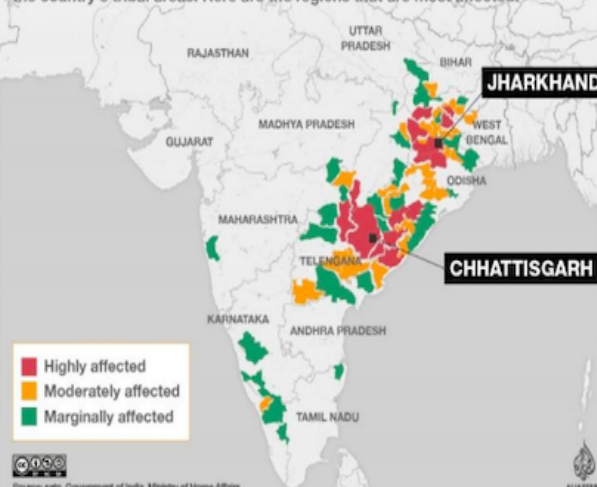
3.11. Outcomes of the coordinated Center-State Strategy

The outcome of a coordinated strategy is telling. Coordinated and concerted efforts from the Centre and Maoist affected states have brought down Maoist sponsored violence to drastic levels, have resulted in elimination of many important leaders of the insurgent organisation, and reduced the dominance to a handful of tri-junction districts in Chhattisgarh, Jharkhand and Odisha.

- The MHA removed 44 districts from Naxal affected list, while the 'worst-affected category' was reduced from 36 to 30.
- Security forces in the recent years have achieved the seemingly impossible by eliminating many top leaders. They have also succeeded in neutralising as many as 26 prominent members of 39 Central Committee in the past two years.

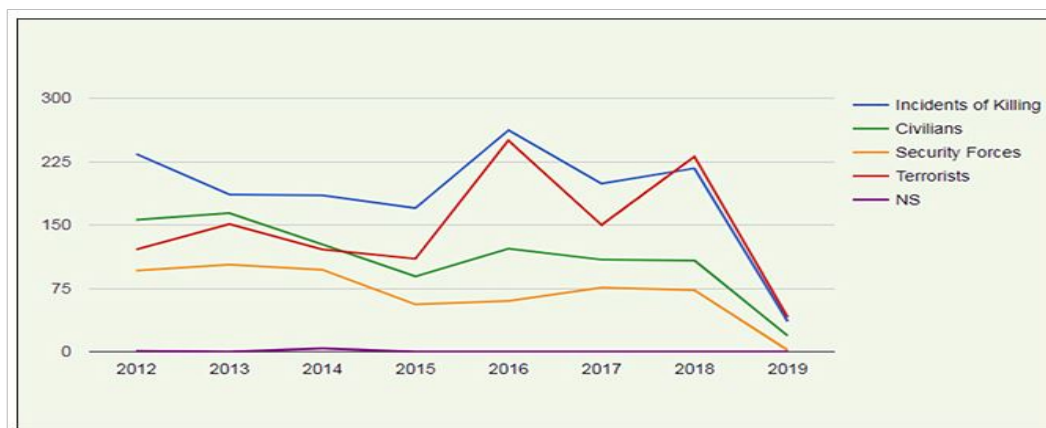
A map of India's Maoist conflict

A crackdown on Maoist rebels has led to a rise in the number of casualties in the country's tribal areas. Here are the regions that are most affected.



- They have captured more than 7,000 active cadres in the last three years, while an equal number of Maoists have surrendered before authorities in various states.
- Incidents of LWE violence down from 2258 in 2009 to 833 in 2018
- Number of deaths dropped from 1005 in 2009 to 240 in 2018 (Civilian deaths declined from 466 in 2004 to 150 in 2019)
- Districts affected by naxal violence reduced from 96 in 2010 to 60 in 2018
- The attacks on economic infrastructure have steadily declined from 365 in 2010 to 64 in 2019

Rapid decline in Maoist-related fatalities



3.11.1. Reasons for the decline in Violence

A combination of improved state actions, change in political economy and internal churns within the organisation have seriously hobbled the insurgency. The major reasons for decline in violence include:

- Greater presence of security forces across the LWE affected States.
- Loss of cadres/leaders on account of arrests, surrender and desertions.
- Loss of strongholds, declining appeal of ideology and leadership crisis
- Rehabilitation program of government along with improved performance from the affected states on socio-economic fronts
- Better monitoring of development schemes in affected areas
- Insurgency fatigue among the Maoist cadres.
- Shortage of funds, arms and ammunition.

3.11.2. Challenges persisting for the government

The Maoist insurgency was not viewed as a serious internal security problem for a long time. Over the years, the Maoists have managed to entrench themselves in remote and inaccessible tribal pockets in a few States. Correspondingly, the state institutions of governance also withdrew gradually from such areas, resulting in a security and development vacuum.

This suited the Maoists, who have set up some form of rudimentary parallel system of administration in these areas. However, during the last few years, the Maoist insurgency has been recognised as a serious internal security challenge. It is also seen as a major impediment to the nation building process.

Hence, the government initiated multi-pronged measures to address the security and development deficits in these areas. These measures have effectively halted the expansion of Maoist movement to new areas and has also resulted in contraction of their area of dominance. Now, the core areas are being gradually addressed. This is a challenging process, but will

ultimately yield the desired results in the long-term and reduce the influence and impact of Maoist insurgency to insignificant levels.

Student Notes:

3.11.3. Important trends and the state of play with regard to LWE in India in 2019

In 2019, the Government of India and state governments affected by Left-wing Extremism (LWE) continued to take steps to deal with what used to be the country's 'biggest internal security challenge'. Today, in terms of its capacities to wreak continuous havoc on the state, the Communist Party of India-Maoist (CPI-Maoist), the forbearer of LWE, is a poor replica of its past. However, its self-preservation efforts as well as its attempts to expand in new frontiers appear to be more successful than the official efforts to eliminate it.

Presently 30 districts in seven states (Andhra Pradesh, Bihar, Chhattisgarh, Jharkhand, Maharashtra, Odisha and Telangana) are covered under the scheme. In 2018, 'most-LWE affected' districts numbered 35. In 2018-19, Rupees 1000 crores (US\$ 140 million) were released to these seven states under the SCA scheme. While these financial allotments portray the intent of the government to resolve LWE, progress on the counter-insurgency (COIN) front, however, appears below par in view of the following trends.

New Surge in Jharkhand

- Under the SCA scheme focusing on infrastructure development in LWE affected states, 44 percent of the funds released to states in the last three years (2016 to 2019) has been allotted only to Jharkhand
- However, it has been established, on the basis of data, that while LWE could indeed be witnessing a battle for survival scenario in most of its erstwhile areas of dominance, it has managed to 'engineer a surge' in Jharkhand.
- According to available official data in 2019 (till 15 November), 160 of the 579 incidents were reported from Jharkhand.

Bastion in Chhattisgarh

- The number of deaths and incidents of LWE has declined over the years. However, Chhattisgarh still remains the worst extremism-affected state accounting for almost 40 percent of the total incidents and 46 percent of the fatalities among the security forces in 2019.
- Although the security situation has significantly improved, many of its interior districts have a vast number of no-go areas under extremist dominance.

Targeting of Infrastructure Projects

- Influence of the extremists continues to be felt in several sectors affecting New Delhi's infrastructure push in the LWE affected areas. Several key road building projects continue to face delays.
- On 2 December 2019, Minister of Road Transport and Highways told the upper house of the Indian parliament that 13 ongoing works for different national highways and 19 state roads sanctioned under LWE scheme are delayed in Chhattisgarh.
- Non-availability of security forces to provide security to these projects, in spite of more than 70 battalions of security forces being deployed in the state, meant that the contractors limited their work only to 3 to 4 hours a day

Cadre Preservation

- In its rare statements, even the CPI-Maoist has spoken of the challenges faced by the 'party' as a result of surrenders, arrests and deaths of its cadres. However, even in this state of absolute weakness during which the CPI-Maoist may not be recruiting too many, it could still be commanding thousands of armed cadres.

- It appears that the CPI-Maoist could have been exaggerating its operational weakness in order to deflate attention of the security forces and provide them with a false sense of triumph. Neutralization of extremists alone cannot be considered to be the most effective method of ending violent extremism.

Forays into the South

- The fact that the CPI-Maoist is not in an exclusively preservation mode and could actually be looking at expanding its influence is clear from a series of events that have taken place in three southern states of Karnataka, Kerala, and Tamil Nadu.
- A number of killings and arrests of the outfit's functionaries in 2019 have bolstered earlier intelligence reports indicating its continued push to expand into these South Indian States. Four Maoists including a cadre of Tamil Nadu and another from Karnataka were killed in Kerala. In May 2019, Karnataka identified almost 12 Maoist cadres who could be involved in a series of subversive activities inside the state.
- These three states do not immediately face the scenario of being overwhelmed by extremist violence, but could serve as areas for gradual build up and consolidation by the outfit

3.12. What more needs to be done?

While India's military approach has failed to make much headway owing to a range of weaknesses among the forces, the development approach too has been critiqued for being too romanticised and unreal for implementation. There is an obvious need for a policy rethink and clarity of approach if the challenge is to be met. It is essential that the policy to deal with the problem needs to consider the following recommendations.

- The country has to arrive at a consensus on the kind of approach it wishes to pursue against the extremists.
- A permanent institutional mechanism in the form of a coordination centre can be established to thrash out emerging differences between the Centre and the States.
- Augmenting the capacities of the police as the primary force against Maoist violence will be key to neutralizing the firepower of the extremists.
- While development is a useful tool against Maoist extremism, it is imperative that a semblance of order precede injection of resources into the extremist affected areas.
- Development must operate in tandem with the security forces. Resumption of administrative activity should immediately follow the clearing of an area by the forces.
- It is essential that the official approach be based on an effective policy of communication that not just brandishes the extremists as essentially bad, but is also honest about its own honourable intentions.
- Holding elections for institutions of local self-government in the affected areas followed by the strengthening of these institutions with additional financial and decision-making powers is a necessity.
- Success of security force operations need to be based on the concept of just war that strives to do the maximum to avoid collateral damage.
- Bridging the trust deficit between the government and the civil society through good governance and IEC campaigns with the involvement of local NGOs and other civil society organisations.
- Government needs to stay away from propagandist claims about winning the war in quick time.
- Security forces operating in the area must be made aware of their new role in this war against COVID-19. Combining operations might have to continue, but health camps, mobile hospitals, etc must be urgently incorporated into the counter-Maoist strategy.
- Free medicines, soaps, masks, and sanitary napkins must be distributed along with government-sponsored rations.

- Local police personnel familiar with vernacular languages as well as surrendered Maoists could be enlisted for public service information dissemination on safety, sanitation, and self-isolation
- An ordinary citizen can do the following things to fight LWE :
 - Condemn the violent and brutal atrocities being perpetrated by the CPI (Maoist) and other LWE groups on innocent civilians in any available forum including the social media.
 - Sensitize fellow-countrymen to the dangers of outdated, failed and deeply flawed Maoist ideology to the nation-building process.
 - Learn to recognize the propaganda war unleashed against the Indian state by the Maoist Front Organizations and Maoist ideologues/sympathizers.
 - Cherish and nurture the democratic way of life deeply enshrined in our Constitution, as opposed to the totalitarian and oppressive nature of the Maoist ideology and percepts.

Urban Naxals

Urban Naxals are educated people in academia, media, NGOs and urban civil society in India who support violent insurrection against the State. They are often motivated by a violent-Left ideology and seek to achieve their objectives via coordinated violence rather than by democratic means. While the Naxalite movement is often associated with remote tribal areas, Urban Naxalism is a phenomenon in cities and urban centers.

Urban Naxals act to amplify and normalize the violent Naxal movements such as the "People's War Group", names among the top ten terror groups in the world, and act as recruiters, propagandists and sources of funds. Naxalism is named as the leading internal security threat to India.

Note: The term has largely been used informally as a political tool. The Left Wing Division of the Union Home Ministry, in response to an RTI, has denied the usage of the term for official purposes.

It is the belief of the Government of India that through a holistic approach focussing on development and security related interventions, the LWE problem can be successfully tackled. However, it is clear that the Maoists do not want root causes like underdevelopment to be addressed in a meaningful manner since they resort to targeting school buildings, roads, railways, bridges, health infrastructure, communication facilities etc in a major way. They wish to keep the population in their areas of influence marginalized to perpetuate their outdated ideology.

Consequently, the process of development has been set back by decades in many parts of the country under LWE influence. This needs to be recognised by the civil society and the media to build pressure on the Maoists to eschew violence, join the mainstream and recognise the fact that the socio-economic and political dynamics and aspirations of 21st Century India are far removed from the Maoist world-view. Further, an ideology based on violence and annihilation is doomed to fail in a democracy which offers legitimate forums of grievance redressal.

4. North-East Insurgency

At the time of independence, the state of Assam covered most of the Northeastern part of India, representing a plethora of culturally distinct populations of people. Over time, the Indian government organised the region into smaller states along ethnic and tribal lines, creating the so-called 'Seven Sister' states of the Northeast. These new states were created, among other factors, in response to sometimes violent disputes that sprang up along ethnic divisions in this isolated region, but this did not entirely subdue the disputes.



Historical Background

The historical connections among the traditional tribes in the Northeast are largely of Tibeto-Burman/Mongoloid stock and closer to Southeast Asia than to South Asia. It is ethnically, linguistically and culturally very distinct from the other states of India. Though cultural and ethnic diversity are not causes for conflict, but one of the major problem areas is that the Northeast is territorially organized in such a manner that ethnic and cultural specificities were ignored during the process of delineation of state boundaries in the 1950s, giving rise to discontentment and assertion of one's identity. Whereas, the colonial rulers took nearly a century to annex the entire region, and administered the hills as a loose 'frontier area', with the result, that large parts of the north-eastern hill areas never came in touch with the principle of a central administration before.

Hence, their allegiance to the newly formed Indian nation-state was somewhat lacking from the beginning – accentuated by the creation of East Pakistan (today's Bangladesh) – which meant the loss of a major chunk of the physical connection between mainland India and Northeast India. Interestingly, 99 percent of the Northeast's boundary is international and only one percent is domestic boundary.

4.1. Causes for NE Insurgency

There are certain valid reasons why the north-east in particular has been wrecked by insurgency. There are five major factors that have promoted insurgency in the region –

- Immigration,
- Language/ethnicity; Tribal rivalry,
- Economic underdevelopment,
- Poorly developed transport and communications links,
- Negligence of the central government, and
- Corruption among local politicians and elites

Other factors include – Control over local resources, governance issues and a widespread feeling of exploitation and alienation have resulted in violence and diverse demands by various Indian Insurgent Groups (IIGs).

The demands vary from sovereignty in some cases to independent State or Homeland or simply better conditions for ethnic groups they claim to represent.

The underground outfits indulge in violent and terror activities and intimidate people with arms in order to achieve their objectives /demands. They maintain cross-border links, procure arms, recruit and train their cadres, and indulge-in unlawful activities such as damaging of public properties, bomb explosions, extortions, killing of innocent civilians, Security Forces Personnel, attacks on/abduction of Government employees, politicians, and businessmen.

Student Notes:

MAJOR INSURGENT GROUPS OPERATING IN NORTH EASTERN STATES AND DECLARED AS “UNLAWFUL ASSOCIATIONS” AND “TERRORIST ORGANIZATIONS” UNDER UNLAWFUL ACTIVITIES (PREVENTION) ACT, 1967

Student Notes:

ASSAM		Listed/declared as -
(i)	United Liberation Front of Assam (ULFA)	Terrorist organization and unlawful association
(ii)	National Democratic Front of Bodoland (NDFB)	-do-
(iii)	Kamtapur Liberation Organization (KLO)	Terrorist organization
MANIPUR		
(i)	People's Liberation Army(PLA)	Terrorist organization and unlawful association
(ii)	United National Liberation Front(UNLF)	-do-
(iii)	Peoples' Revolutionary Party of Kangleipak (PREPAK)	-do-
(iv)	Kangleipak Communist Party (KCP)	-do-
(v)	Kanglei Yaol Kanba Lup (KYKL)	-do-
(vi)	Manipur Peoples' Liberation Front (MPLF)	-do-
(vii)	Revolutionary Peoples' Front (RPF)	-do-
(viii)	Coordination Committee Cor-com (conglomerate of six valley base UG outfits).	-do-
MEGHALAYA		
(i)	Hynniewtre National Liberation Council (HNLC)	Unlawful association
(ii)	Garo National Liberation Army (GNLA)	Terrorist organization

TRIPURA		
(i)	All Tripura Tiger Force (ATTF)	Terrorist organization and unlawful association
(ii)	National Liberation Front of Tripura (NLFT)	-do-
NAGALAND		
(i)	The National Socialist Council of Nagaland (Khaplang) [NSCN/K]	Terrorist organization and unlawful association
(ii)	National Socialist Council of Nagaland (Isak Muivah) – [NSCN(I/M)]	With ceasefire with the Government.
(iii)	National Socialist Council of Nagaland (Kitovi-Neopaokonyak)[NSCN(KN)]	
(iv)	National Socialist Council of Nagaland (Reformation)[NSCN(R)]	

4.2. Reasons for the Existence of the Armed Ethnic Groups

4.2.1. Political motivation

Politics forms the core of insurgent groups' strategy of violence. Most insurgent groups garner popular support for their violent activities by citing a political cause, significantly important to the target population. According to **Mao Tse Tung**, the promise of mobilizing for revolution will exist in any country where the formal administrative structures fail to meet its basic obligations of providing the minimum standard of life to its citizens. Political mobilization is the first vital phase in any armed movement in order to acquire critical mass and create the space for conflict escalation.

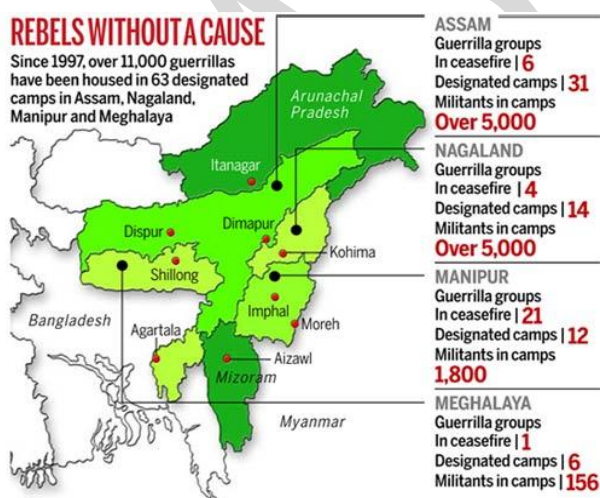
NSCN (IM) demand

A "Greater Nagalim" comprising "all contiguous Naga-inhabited areas", along with Nagaland. That included several districts of Assam, Arunachal and Manipur, as also a large tract of Myanmar.

Similar demand for **Bodoland** has been put forward by the National Democratic Front of Bodoland (NDFB), consists of regions located extreme north of north bank of Brahmaputra river in the state of Assam, by the foothills of Bhutan and Arunachal Pradesh.

4.2.2. Availability of Arms

Insurgent groups utilize violent means for political ends when the opportunity for armed rebellion exists in a given situation. The feasibility hypothesis argues that "where rebellion is materially feasible, it will occur". The material conditions for an armed rebellion to exist are financial and military. The easy availability of arms in Northeast India enables the NSCN (K), NSCN (IM), the ULFA, the UNLF and the PLA to sustain their armed movements.



4.2.3. Popular Support Base

An insurgent group critically depends on its popular support base for purposes of funding, base areas, recruitment, food supply and intelligence networks. Since insurgent groups portray themselves as representatives of a particular ethnic group or community, popular support adds to the legitimacy of the group.

4.2.4. Geographical terrain

The geography and terrain of a particular place is critical for the continuation of insurgent movements. Without supportive terrain, lightly armed, highly mobile insurgent cadres stand little chance to offset the technological superiority of the stronger power.

4.2.5. External Support

Perhaps one of the most critical dimensions of insurgent groups is external support. Support from neighbouring countries could be political, moral, military, economic, territorial or cultural and based on ethnic ties. A **2010 RAND study on insurgencies** indicates that without external support and available sanctuaries, no internal insurgency can thrive over a period of 10 years.

4.2.6. Strategy and Nature of these Outfits

The NSCN (IM), ULFA, UNLF and the PLA have a declared strategy of protracted armed conflict. Interestingly, cease-fires are seen as phases to re-group, recruit, finance and re-arm. This has happened in most cases. The ULFA and the NSCN (IM) have decidedly re-armed and re-grouped during the cease-fire phase.

Who	Wants What?
UKLF(United Kuki Liberation Front) KNF(Kuki National Front)	Wants a separate "Kuki" homeland. Kukis are ethnic tribes of "Mongoloid" origin and spread across Assam, Mizoram, Manipur
NCSN-IM(National Socialist Council of Nagaland)	Wants a unified Nagaland
NDFB(National Democratic Front of Bodoland)	Wants a separate "Bodo" homeland
Dima Haolim	Wants a sovereign states for Dimasas Tribe (Cachar, Nagaon, Karbialong)
ULFA(United Liberation Front of Assam)	The "Father". Wants a separate Assam
KLO(Kamatpur Liberation Organization)	Wants a separate homeland for "Kamatpur" tribe. Kokraihar, Bongaigaon, Dhubri and Goalpara
The political parties and mainstream Indian political parties	Nothing- All they want is Votes from illegal Bangladeshi Migrants so they can enjoy some awesome Assam tea and have a hand in the huge corruption

4.3. Government Initiatives Towards North East Insurgency

State Response to Armed Ethnic Insurgencies in the Northeast can be located within three conceptual parameters. **1. Proportionate use of force. 2. Use of dialogue and negotiations. 3. Structural changes.** Various dimensions for the same are as follows:

- **AFSPA:** Violence became the way of life in north-eastern States of India. State administration became incapable to maintain its internal disturbance. The Act enabled certain special powers to be conferred upon members of the armed forces in **disturbed areas** in the State of Arunachal Pradesh, Assam, Manipur, Meghalaya, Mizoram, Nagaland and Tripura.

This Act has been facing a lot of resistance from various Human Rights groups due to the provision of **sweeping powers and immunity** to the army in these "conflict-ridden" or "disturbed" areas. As of Jan 2020, the act is in force in Nagaland, Assam, Manipur and Arunachal Pradesh.

Peace Process in the North-East Region:

Keeping in view the multiplicity of diverse ethnic groups and the resultant complex situation in the North-East region, the Central Government has been pursuing a **policy for talks/ negotiation** with such groups which abjure violence, lay down arms and seeks solutions peacefully for their problems within the framework of the Constitution of India.

As a result, a number of outfits have come forward or taken with the government and have entered into **Suspension of Operations (SoO) agreements** and some of them have signed **Memorandum of Settlements (MoS)** and have dissolved themselves. At present, the government is engaged in peace talks with various insurgent groups of NE states. Central government has appointed interlocutors for holding peace talks with various insurgent groups in the region.

Assam

SoO with ULFA was signed in 2011 and will continue indefinitely. A tripartite MoS with Bodo groups was signed in Jan 2020

Manipur

-A total of 23 UG outfits under two conglomerates (United People's Front and Kuki National Organisation) are currently under SoO with the government

Nagaland

Ceasefire Agreements signed with NSCN-NK and NSCN(Reformation) extended upto 27-04-2020. The agreement with NSCN (Isak-Muivah) will be valid for an indefinite period **(discussed in detail later)**

Scheme for Surrender-cum-Rehabilitation of militants in North East: The objective is to wean away the misguided youth and hardcore militants who stray into the fold of militancy and later find themselves trapped into that net. The Scheme also seeks to ensure that the militants, who have surrendered, do not find it attractive to join militancy again. It provides for:

- An immediate grant of Rs. 4 lakhs to each surrenderee, to be kept in his/her name as fixed deposit for 3 years
- Payment of stipend of Rs. 6000/- per month to each surrenderee for a period of 3 years
- Incentives for weapons/ammunition surrendered by the militants .
- Vocational training to the surrenderees for self-employment
- Funds for the construction of rehabilitation camps
- 90% of the expenditure incurred on rehabilitation of surrenderees will be reimbursed under SRE Scheme to NE states

Surrenders in different states during last 8 years in the North-East

States	Years							
	2012	2013	2014	2015	2016	2017	2018	2019
Arunachal Pradesh	17	2	7	3	4	3	2	2
Assam	791	92	102	30	15	13	13	49
Manipur	350	513	80	4	0	74	0	0
Meghalaya	20	10	733	78	205	37	19	1
Mizoram	0	0	3	0	0	0	114	0
Nagaland	4	1	0	13	16	2	0	16
Tripura	13	22	40	15	27	1	13	90
Total	1195	640	965	143	267	130	161	158

- **Reimbursement of Security Related Expenditure (SRE):** The Central Government has been implementing a Non-Plan scheme for reimbursement of Security Related Expenditure (SRE) for the States seriously affected by militancy/insurgency. The scheme is being implemented in all States of the region except Mizoram and Sikkim. Under it, the expenditure incurred by them on various items, is being reimbursed. It includes-
 - Raising of India Reserve Battalions,
 - logistics provided to the CAPFs/Army deployed in the State,
 - Ex-gratia grant and gratuitous relief to the victims of extremist violence,
 - 75% of the expenditure incurred on POL (petrol, oil and lubricants) in operations and honorarium paid to Village Guards/Village Defence Committees/Home Guards deployed for security purposes,
 - Expenditure incurred on maintenance of designated camps set up for groups with whom the Central Government/State Governments have entered into agreement for Suspension of Operations

The following changes have been made in the Scheme

- Hike in the wages for the home guards
- Provision of vocational training for SoO cadres
- Enhanced ex-gratia for killed/injured person in extremist violence
- **Civic Action Programme in the North Eastern States:** In order to take the local populace in confidence and **boost the image** of armed forces among the common people, Army and Central Armed Police Forces conduct Civic Action Programme.

Under this Programme, various **welfare/developmental activities** are undertaken viz. holding of medical camps, sanitation drives, sports meets, distribution of study material to children, minor repairs of school buildings, roads, bridges and running adult education centers etc.

- **Advertisement and Publicity:** Keeping in view the peculiar problems of the North East, viz. **militancy, infiltration, and perceived feeling of alienation**, Ministry of Home Affairs implements a scheme of Advertisement and Publicity in North Eastern States with a view to highlight the activities being undertaken by the Government for peace in the region and also with a view to convey that **"Peace pays"**.
- **Modernisation of Police Force:** The Ministry of Home Affairs is implementing a Non-Plan scheme, namely Scheme for Modernization of State Police Forces (MPF) towards modernization of the State Police Forces, especially for meeting the emerging challenges to internal security in the form of terrorism, naxalism etc.

All major items of **Police infrastructure** have been included under the Scheme i.e. construction of secure Police stations, outposts, Police lines, mobility, modern weaponry, security, surveillance, communication, forensic equipment, upgradation of training infrastructure, Police housing, computerization etc.

Other Initiatives

The Central Government is supplementing the efforts of the State Governments through various measures including deployment of additional Central Security Forces and dissemination of intelligence to carry out Intensive counter insurgency operations in a coordinated and focused manner.

- Measures are being taken by the Security Forces to ensure vigilance and surveillance on the border including construction of border fencing and flood lighting along the **Indo-Bangladesh Border**.
- Resettlement of **Bru migrants in Tripura**, due to apprehensions about their security in Mizoram
- **National Register of Citizens (NRC), Assam published on 31.08.2019**
 - A machinery created for detection and deportation of illegal immigrants
 - 'In-principle' approval given for setting up of 1000 additional Foreigners Tribunals (FTs)
 - 'In-principle' approval given to Assam Government for creation of e-Foreign Tribunal platform
- **Government of India, Government of Tripura & National Liberation Front of Tripura led by Sabir Kumar Debbarma (NLFT-SD) sign Memorandum of Settlement**
 - NLFT (SD) to abjure path of violence, join mainstream and abide by Constitution of India
 - Agreed to surrender 88 cadres with their weapons
 - Cadres to get surrender benefits as per the Surrender-cum-Rehabilitation Scheme, 2018
 - Government of Tripura to help surrendered cadres in housing, recruitment, education etc.
 - Government of India to consider proposals of the State Government for economic development of tribal areas of Tripura.
- **Smart Fencing -**
 - Government launched **BOLD-QIT** (Border Electronically Dominated QRT Interception Technique) under Comprehensive Integrated Border Management System (**CIBMS**) on Indo-Bangladesh border in Dhubri district of Assam, as an effective deterrence against illegal infiltration.
 - Two pilot projects covering about 71 Kms on Indo-Pakistan Border (10 Kms) and Indo-Bangladesh Border (61 Kms) of Comprehensive Integrated Border Management System (CIBMS) have been completed.

4.4. Major Initiatives/Achievements during 2019-20

Student Notes:

1. Security Situation in the whole NE region has substantially improved over the last six years

- Insurgency incidents declined by 70%
- Casualties of security personnel declined by 78%
- Civilian deaths reduced by 80%
- 2019 recorded the lowest casualties and. Insurgency incidents since 1997
- Counter Insurgency (COIN) operation lead to neutralization of 12 militants, arrest of 936 militants and the recovery of 312 weapons in 2019 in the region
- Over 158 militant cadres of militant outfits have surrendered and joined the mainstream of the society
- While States of Tripura, Mizoram and Sikkim are completely free from insurgency, there has been a substantial improvement in the situation of other state

Security situation in North-East as a whole

Years	Incident	Extremist killed	Extremist arrested	SFs killed	Civilians killed	Extremist surrendered	Arms surrendered	Arms recovered	Persons Kidnapped
2009	1297	571	2162	42	264	1109	420	1357	230
2010	773	247	2213	20	94	846	351	1057	214
2011	627	114	2141	32	70	491	381	973	250
2012	1025	222	2145	14	97	1195	612	1244	329
2013	732	138	1712	18	107	640	416	1180	307
2014	824	181	1934	20	212	965	151	1104	369
2015	574	149	1900	46	46	143	69	828	267
2016	484	87	1202	17	48	267	93	605	168
2017	308	57	995	12	37	130	27	405	102
2018	252	34	804	14	23	161	58	420	117
2019	223	12	936	04	108	158	67	312	108

2. Armed Forces (Special Powers) Act in the NER

- To deal with armed insurgency, entire states of Nagaland, Assam and Manipur (except for Imphal Municipal Area) are under the Act.
- AFSPA has been completely removed from Meghalaya and has been reduced to 4 police stations/outputs and 3 districts of Tirap, Changlang and Longding in Arunachal Pradesh

3. Banning of insurgent Groups in the North-East

- 17 insurgent groups operating in the North East have been banned declared as "unlawful organisations" and/or "terrorist organisations" under the UAPA, 1967.
- Ban on HNLC of Meghalaya and NDFB and ULFA of Assam has been extended for 5 more years

4. Constitution of HLC for the implementation of Clause 6 of the Assam Accord

- HLC under the Chairmanship of Biplab Kumar Sarma for the assessment of the actions taken since 1985 to implement clause 6 of the Accord and suggest measures to be taken in this regard

5. Constitution of a Multi-Disciplinary Committee (MDC) to look into the developmental issues and special needs of the people of Eastern Nagaland

- This will speed up the process of development of physical infrastructure in the 4 districts of Nagaland (Tuensang, Longleng, Mon and Kirphire)

6. Amendment of Article 280 and Sixth Schedule of the Constitution

- 125th Constitutional Amendment Bill amending Article 280 to strengthen the Autonomous Councils under the sixth schedule was introduced in the Rajya Sabha

7. Tripartite Memorandum of Settlement (MoS) signed with NLFT of Tripura

- As per the MoS, NLFT has agreed to abjure the path of violence, join the mainstream and abide by the Constitution of India
- 88 cadres of NLFT surrendered, along with the arms, in a surrender ceremony, thereby assimilating with the society

8. Home Minister Level talks between India and Bangladesh regarding security related issues and mutual cooperation between countries, including confidence building measures, etc.

9. Sectoral Level meeting between Indian and Myanmar

- To discuss issues of internal security, management of borders, cooperation in the prevention of drug trafficking, wildfire smuggling, etc.
- Act East policy has facilitated stronger ties with Myanmar, which has helped in effectively tackling insurgency and extremism in the NER

10. Signing of agreement for the settlement of Bru migrant in Tripura

- 34,000 Bru migrants will be settled in Tripura and would be given financial assistance/aid by the GoI for their resettlement in Tripura and all round development through the a package of Rs 600 crore

11. Surrender of 644 cadre of NE militant outfits in the starting of 2020.

- All the surrendered militants will be rehabilitated as per the Central and State Schemes

12. Memorandum of Settlement (MoS) with Bodo groups

- Putting an end to 50 years of Bodo crisis, a tripartite MoS has been signed between Central government, Assam government and the Bodo groups

13. National Investigation Agency (Amendment) Act, 2019

- NIA empowered with extra territorial jurisdiction for investigation of terrorism related offences taking place outside India, in which Indian property/citizens are victims
- The mandate of NIA is expanded by inclusion of new offences viz. explosive substances, human trafficking, manufacturing/sale of prohibited arms and cyber terrorism, to its Schedule

14. Unlawful Activities (Prevention) Amendment Act, 2019

- Central Government empowered to designate individual as terrorist
- NIA empowered to seize/forfeit property representing proceeds of terrorism in cases investigated by NIA

4.5. What Needs to be Done?

Although varying in their demands and methods, there is a common thread running through the insurgency infested north-east, that is of identity and development. Hence, some solutions that are common need to be explored with specifics derived from them for specific regions and groups.

- Meeting the political aspirations of groups by giving them autonomy. Implementing sixth schedule provisions in these areas will help them to preserve their identity and culture while giving them greater autonomy. Economic development of the area in a calibrated manner. Any development should be sustainable and should have the participation and acceptance by the locals.
- Improving Governance and delivery mechanisms of the government and administration.
- The pre-condition of complete abjuring of violence for holding peace talks is a flawed notion. If violence is discarded and peace is established then the need for peace talks become futile. Dialogue should be an ongoing process to reach concrete solutions by involving all the stakeholders and not a single group.
- Coordinating operations with the neighboring countries and use of force only when needed. Draconian laws like AFSPA should be repealed as it is one of the causes for inflating insurgency in the north east.

- Rebel groups must also be more pragmatic by seeking greater autonomy within the constitutional mandate rather than demanding newer states and regions based on ever narrowing ethnic and linguistic identities, which are beyond acceptance.
- Centre and states should coordinate in decision making. In the recent agreement of the Centre with NSCN (IM), it did not take concerned state governments and other groups on board. It should be avoided.
- State police and central forces should cooperate on intelligence sharing, investigation and operations against militants. It has been alleged by the army that the June ambush of the army became possible because state police did not share the intelligence about the attack with it. It is unfortunate and counter-productive.
- **Alternative Conflict resolution-** Whenever tempers rise on perceived transgression, there are no social groups that can mediate to cool down the tempers to maintain peace. Under such circumstances, alternative conflict resolution and building capacity for peace through informal initiatives assume significance. Initiatives by people's forum can become 'small steps with big impact', and such small changes may bring about a change in mutual attitude and perception. Such an initiative could assist in the following:
 - **Communication.** First priority is to establish an informal communication between the various warring ethnic groups. Such an initiative can prevent or step-in if there is transgression by any of the ethnic communities. "When a wrong is committed, let us focus on the individuals suspected of culpability, not their clans collectively."
 - **Mediation.** The current state is that normalisation of the situation after every ethnic clash is left to security forces to maintain peace. But it is significant to develop confidence among the people to directly establish communication for mediation through people's forum.
 - **Negotiation.** It is imperative to bring all stakeholders especially the people to negotiation tables not purely for conflict resolution but for conflict prevention so that collateral damages can be prevented. The situation of the blockade on the humanitarian ground can be negotiated. "Use of goodwill is far better than the use of force."
 - **Neutral Fact-Finding.** Under the prevailing circumstances, there is a complete distrust among the ethnic communities. Every group pretends to be a victim and excesses are always put on rival groups. Government reports are either too late or perceived biased. The party that is blamed by the government feels that aggrieved. People's forum can act as neutral fact-finding and can themselves satisfy who has crossed the red line.
 - **Neutral Evaluation of Grievances.** Government sponsored negotiations always fail since grievances are non-addressable. Neutral evaluation and spot visit by the people's forum could set such doubt at rest.
 - **Forum for Dissent, Disagreement, Demonstration and Discussion.** One may disagree, display dissent, demonstrate annoyance, disagree with each other but if at the end of the day they agree to discuss, I think the forum has achieved its objective.
 - **Prevention of Misuse of Media to Fuel Division.** It is very difficult for the government to prevent misuse and spread of rumours through the media. It can best be done by

Alternative Conflict Resolution-

It is a way to resolve the conflicts through informal groups. Recommended composition of alternative conflict resolution committee or forum is as under:-

- Members of all ethnic groups (those who are moderate in their outlook and not hawks), social scientists, individuals trusted by all ethnic groups (Such as Mr. GK Pillai), religious leaders, academicians and social workers.
- A separate group of woman of similar composition.
- There could be sub-committees at the local level to establish communication and to initiate Confidence Building Measures (CBM).

local peace committees by denouncing such rumours since local peace committees can confirm authenticity of the news.

Student Notes:

4.6. Miscellaneous Issues

4.6.1. Assam NRC

Witness to decades of migration from Bangladesh — formerly East Bengal and then East Pakistan — Assam already has an NRC, which was published in 1951 on the basis of that year's Census. The only state with such a document, Assam is currently updating it to identify its citizens.

The update, mandated and monitored by the Supreme Court, is a fallout of the Assam Accord of 1985, which sets March 24, 1971 as the cutoff date for citizenship. Those who entered Assam before that date are recognised as citizens. The final list of Assam's NRC excluded names of over 19 lakh applicants. A total of 3.30 crore applicants had applied to be included in the NRC

Issues involved

- Bengali Muslims felt that they were under greater scrutiny than other groups
- The people not only had to establish that their ancestors lived in Assam prior to 1971 but also their relationship with the ancestor
- Large number of D- voters: D voters or doubtful voters are people who had their voting rights suspended by the Election Commission because their citizenship was suddenly in doubt
- Several flaws have been identified in the appeal to Foreign Tribunals, from the lack of legal aid to ex parte orders declaring people foreigners without even a trial.
- No clarity on what happens to those who lose their cases in the Foreigners' Tribunals, whether they will be detained, deported or allowed to stay on without the rights and privileges of citizenship
- No repatriation treaty under which they can be deported to Bangladesh.

Suggestions

- It is essential to deal with illegal immigration and a proper framework needs to be developed to deal with the post drafting issues in the region. State government should ensure that injustice should not be done to any of its citizens.
- Clearly chart out the course of action regarding the fate of excluded people from final NRC data.
- Need for a robust mechanism of legal support for the four million who have to prove their citizenship to India with their limited means.
- Bilateral engagement with Bangladesh for the repatriation of individuals staying illegally

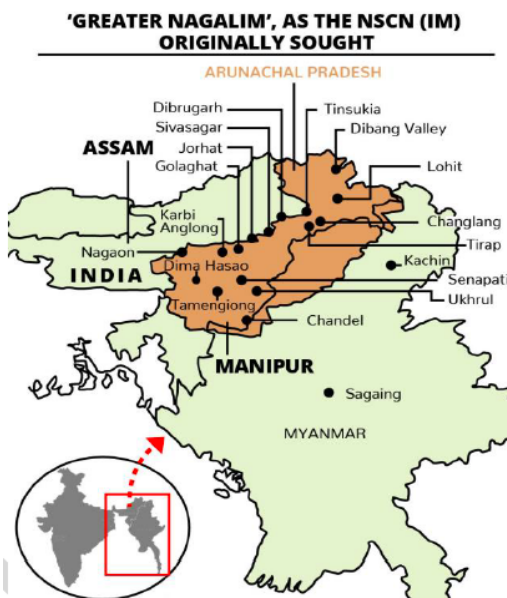
4.6.2. Naga Peace Talks

The October 31, 2019 deadline set by the Union government to conclude the Naga peace talks ended on a somewhat ambiguous note. The deadlock between the government and the National Socialist Council of Nagalim (Isak-Muivah) (NSCN (IM)) over a separate Naga flag and constitution were the issues holding up a final agreement.

Now, NSCN (IM) agreed to a settlement without a Constitution and with a conditional flag that can only be used for nongovernmental purposes. NSCN-IM would have to persuade Manipur, Arunachal Pradesh and Assam to give up parts of their territories inhabited by the Naga people for creation of 'Greater Nagalim'.

Key roadblocks to the Peace talks include:

- The issues of flag and constitution would require fundamental changes in the Indian federal structure
- Article 371-A :An amendment to this Article is critical to the ongoing Naga peace process in order to resolve another substantive issue of settling the question whether Nagas have the right over land and resources, both above and beneath it.
- Integrity of other states: Nobody in three states i.e. Manipur, Assam and Arunachal Pradesh would allow even an inch of their land to be added to a 'Greater Nagalim', if at all that term is part of the accord.
- Similar demand from other groups: Political instability has undermined the role of democracy in the state and has fuelled apprehensions leading to separate agendas and demands by various factions and organisations.
- Federal Structure: Under a federal structure, the central government is not in a position to ask a state to give away parts of its territory. NCSN (IM) has to persuade and convince these states through democratic and political processes.

**Way forward**

- Government should address the confusion due to many interpretations to “special arrangement” implied in the 2015 agreement, particularly on how the shared sovereignty will be exercised.
- The government should not rush into a solution by declaring deadlines. It should involve all stakeholders from within and outside the state of Nagaland, and work towards a solution through a peaceful dialogue process that satisfies all.
- Other sections’ sensitivities also will have to be kept in mind. For example, Kukis, a tribe engaged in tussle with the Nagas in the Manipur hills, are unlikely to accept Naga dominance over their areas.
- Arunachal Pradesh, Assam and Manipur are wary of the NSCN-IM’s concept of Nagalim that could lead to a redrawing of their boundaries. The government and the NSCN (IM) must be completely transparent in their approach and must take into confidence all genuine political formations, civil society and ethnic groups.
- People-to-people contacts need to be built up so that real problems of the people can be voiced on a larger platform. There is a need for more cross-cultural openness, not only between mainstream India and the Northeast, but among the north-eastern states as well.

4.6.3. Bodoland Issue

Bodoland is a state demanded by a tribal community called Bodos in Assam, who comprise of 5%-6% of the state’s population.

National Democratic Front of Bodoland (NDFB), an ethnic insurgent organization, has been leading the charge in the demand for the separate state. Recently, the Union Ministry of



Home Affairs (MHA) has extended the ban on the National Democratic Front of Bodoland (NDFB) by five more years, under provisions of Unlawful Activities (Prevention) Act, 1967.

Student Notes:

Reasons for the demand

- **Massive Illegal Immigration from Bangladesh:** It has led to certain concerns among the Bodos, such as:
 - **Changing Demography:** It might turn them into a minority in their own land.
 - **Inclusion of illegal migrants in the voters list:** It is viewed as a deliberate ploy to empower an outside group, so that the Bodos lose their political power.
- **Threat of loss of distinct language and culture:** Due to forced assimilation.
- **Growing Unease:** Due to the political empowerment of the minority communities in the BTAD in recent years.
- **Failure of The Bodo Territorial Council (BTC):** Weak administrative institutions and divisive politics of the members of the BTC have also added to their insecurity.

Way Ahead

- The government should strengthen the autonomous, administrative divisions in Assam established on the basis of the Sixth Schedule of the Constitution.
- Establish a land record system that is computerised and accessible to the local people, and which can address the fear of loss of land to the outsiders.
- Improve the presence of both the state civil administration and the law enforcement agencies in areas that are identified as highly susceptible to ethnic violence.
- The government should take measures to improve the other economic sectors of the region like development of agro-based industries, tourism and hydroelectricity etc.
- Measures to protect their language and cultural identity should be taken.

4.6.4. Cross Border Linkages in North-East Insurgency

The armies of India and Myanmar carried out a coordinated operation called Operation Sunrise 2 in their respective border areas, targeting several militant groups operating in Manipur, Nagaland and Assam.

Operation Sunrise 2

- The armies coordinated with each other to bust camps of militant outfits, including the Kamtapur Liberation Organisation, the National Socialist Council of Nagaland (Khaplang), the United Liberation Front of Assam (ULFA) and the National Democratic Front of Bodoland.
- The first phase of "Operation Sunrise" was conducted in February 2019 along the Indo-Myanmar border, during which a number of camps of northeast-based militant groups were busted in Bhutan, Myanmar, Bangladesh and even China and Nepal.

Reasons for cross border insurgency

- **Safe Havens:** The shelter and support that the Indian insurgent groups receive from across the border have been one of the most important factors which has helped them in sustaining their rebellion.
- **Economic support:** The Golden Triangle (comprising Myanmar, Laos and Thailand) has provided an economic boom for the insurgent groups to sustain themselves.
- **Availability of weapons:** Easy availability of small arms in neighbouring countries like Bangladesh and Myanmar has been another factor behind the sustenance of insurgency in the region.
- **Ethnic affinity:** Many ethnic groups in the region, especially in the areas bordering the international boundaries, have more in common with the population living across the boundary than with their own nationals.

- **Border issues in North east**
 - **Terrain of Border:** Difficult terrain along the border with different countries in the north east make means of transportation and communication difficult and as a result, the border area remains sparsely populated with depressed economic development.
 - ✓ High mountains, deep river channels together with lush forest characterize the borderland with Myanmar.
 - ✓ Inaccessible forested areas along the Assam– Bhutan border continue to serve as temporary bases and safe havens for the insurgent groups.
 - ✓ River line borders in Bangladesh tend to change course periodically, leading to a host of disputes associated with the difficulties in establishing ownership of the newly created territories.
 - **Boundary issue:** Even though the international boundary between countries like India and Myanmar had been formally delimited and demarcated following the boundary agreement in March, 1967, the boundary has not crystallised on the ground as lines separating two sovereign countries.
 - **Free movement regime:** India-Myanmar border has a unique arrangement in place called the Free Movement Regime (FMR). The FMR permits the tribes residing along the border to travel 16-km across the boundary without visa restrictions.

Way Forward

- **Sensitization of people:** The border community should be sensitised to participate in the nation building project through sustained community interaction programmes.
 - Increase cultural exchanges, tourism and people-to-people contact, including provision of job permits and work visas, for the South Asian countries.
- **Cooperation with neighboring countries:** International borders are best managed when neighbours cooperate to secure their mutual borders. For such cooperation to materialise, political and diplomatic initiatives are required to be carefully crafted.
- **Strengthening of Regional Forums:** Regional groupings like SAARC, BIMSTEC, BCIM can help in enhancing economic and security cooperation with these countries which will lead to a better understanding of the benefits of peace in North-East India.
- **Effective Border Management** through smart borders which ensure quick and easy, legal flow of people and goods, while maintaining a steady momentum in the process of improvement of infrastructure and other facilities at checkpoints.
- **Joint Training and operations:** Exercises like “Hand in hand” with China, “Operation Sampriti” between India and Bangladesh etc. can help to combat terrorism.
- ‘Operation All Clear’ by Bhutan was a landmark operation which was conducted against Assam separatist insurgent groups in the southern regions of Bhutan. These types of joint operations can help fight insurgency in the north east.

4.6.5. Bezbaruah Committee recommendations on racial discrimination against North-Eastern Indians in metros

The Bezbaruah Committee Report headed by M.P. Bezbaruah, Member, North Eastern Council, was set up in February 2014 after the death of Nido Tania. The Committee's mandate was to listen to the issues raised by people from North East living especially in the metro cities. The committee was also asked to suggest measures which could be implemented by the government of India. The major recommendations by the Committee include

New law against Discrimination:

- Either a new law should be promulgated as directed by the High Court of Delhi or the Indian Penal Code should be amended.
- The offence should be cognizable and non-bailable. The investigation of the FIR should be completed in 60 days by a special squad and investigated by a police officer not below the rank of deputy SP or ACP.

- A special prosecutor should be appointed to handle all such cases of atrocities. And the trial should be completed in 90 days.

Fast-track Courts and Special Police Squads:

- The Committee strongly suggests the creation of fast-track courts for handling the cases relating to the North East people, particularly those which are racially motivated and involving heinous crimes against the North East women and children.
- Specially designated public prosecutors should be appointed for cases involving people from the North East. They should also be properly trained and sensitised.

Interventions in Education

- Suitable innovative ways should be devised to integrate each and every aspect of the North East into the consciousness of people outside.
- The Committee recommends that when the next the NCERT takes place, one, all teacher training institutes be advised to make their syllabus in a way that can sensitise their trainees on the North East and, two, universities and schools outside the NorthEast make projects on North East a mandatory part of the course curricula.
- A detailed socio-economic study of the nature of student migration from the North East would be worthwhile as it will provide valuable insight for planning of higher education in the region.

Social Media outreach and Legal Awareness Campaigns:

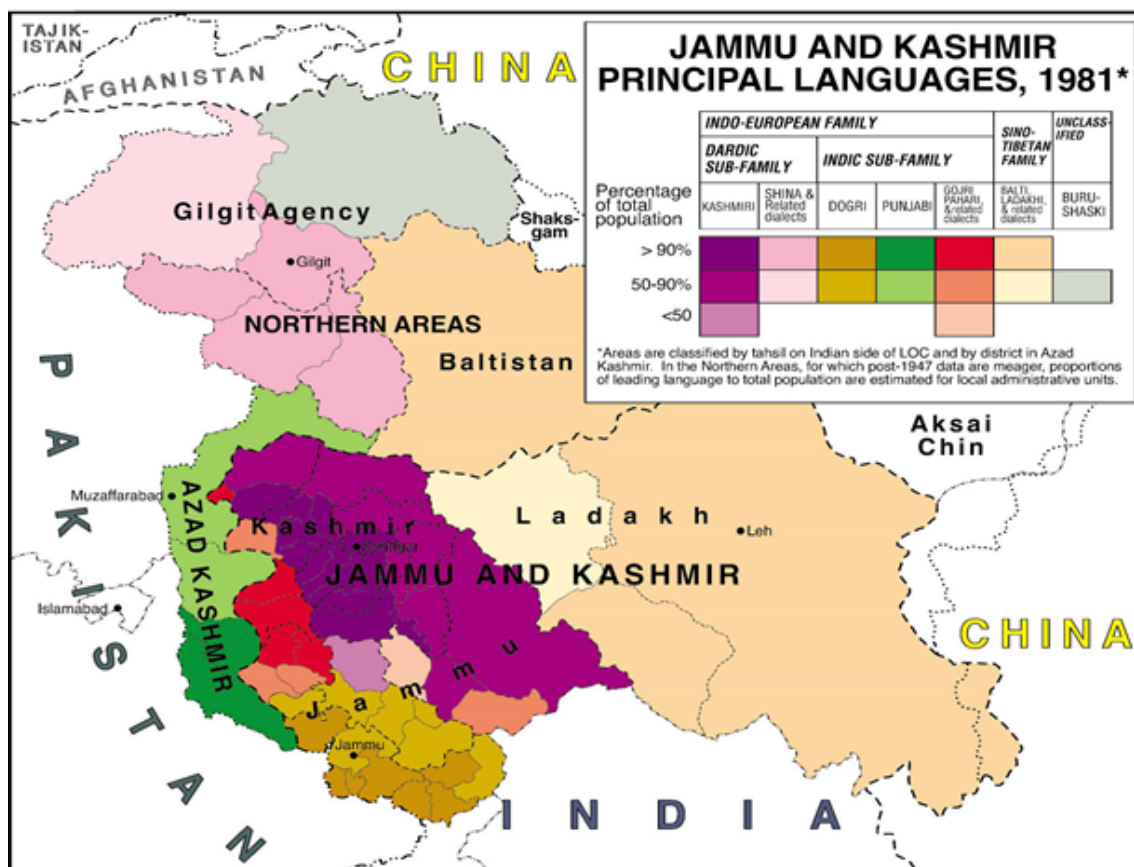
- The committee recommends legal awareness campaigns in neighbourhoods that have a significant presence of members from the North East community and on introducing lectures on legal rights for university students.
- It underlines the role of social media in improving connectivity and communication with the community.
- A dedicated Facebook page should be created and nodal police officers should be in constant touch with members of the community on WhatsApp

Bonding Power of Sports:

- The committee recommends that the Ministry should take steps to hold regular national and international events in the North East as such events will create greater harmony and better understanding. The ministry should, therefore, review the status of present facilities and make an assessment if they are suitable for such events.
- If not, such facilities should be created in every state of the North East. Indigenous games of the North East should be promoted.

5. Jammu and Kashmir Insurgency

Throughout ancient times, the breathtakingly beautiful Valley of Kashmir has stood for peaceful contemplation, intellectual advancement and religious diversity coexisting in an atmosphere of tolerance for the most part. In the modern geopolitical era, this same diversity, evident from the blend of Islam, Hinduism, Sikhism and Buddhism in this single state, has made it a center of warfare rather than cultural advancement. In the late 1980s, an insurgency in the valley threatened not only to rip Kashmir apart, but also pull the rest of the world into a dangerous war.



Historical Background

The origins and development of the Kashmir independence movement is evident since independence. Aspirations for the same never disappeared from the Kashmiri consciousness, despite their accession to India in 1947.

The insurgency in Jammu and Kashmir or the Kashmiri Insurgency is a conflict between various Kashmiri separatists and nationalists sometimes known as "ultras" (extremists), and the Government of India. Few groups favour Kashmir accession to Pakistan, while others seek Kashmir's complete independence. Since 2002, skirmishes with the local insurgents have constituted the main conflict in the Kashmir region. The conflict in Jammu and Kashmir has strong Islamist elements among the insurgents, with many of the "ultras" identifying with Jihadist movements and supported by such.

The **roots of the conflict** between the Kashmiri insurgents and the Indian Government are tied to a dispute over local autonomy. Democratic development was limited in Kashmir until the late 1970s and by 1988 many of the democratic reforms provided by the Indian Government had been reversed and non-violent channels for expressing discontent were limited and caused a dramatic increase in support for insurgents advocating violent secession from India. In 1987, a **disputed State election** created a catalyst for the insurgency when it resulted in some of the state's legislative assembly members forming armed insurgent groups. In July 1988 a series of demonstrations, strikes and attacks on the Indian Government began the Kashmir Insurgency which during the 1990s escalated into the most important internal security issue in India.

5.1. Two Dimensions of the Kashmir Conundrum

There are two dimensions to the Kashmir conundrum as seen from the Indian perspective:

- The external dimension, due to Pakistani involvement and its claims over the erstwhile state of J&K;

- The internal dimension, due to the socio-political demands of the people of J&K from the Indian state.

The external dimension has resulted in four conventional wars, several near-wars, and disquieting nuclear rattles between India and Pakistan. The extension of a proxy war by Pakistan against India through Kashmir has kept our internal security situation constantly on the boil. Besides alienating J&K from the national mainstream, it is a serious bug in India's growth story. It has been a continuous drain on the country's resources, resulting in enhanced defence expenditure. It has also become an impediment in India's proclamation of being a great world power due to allegations of human rights violations and other social restrictions, thus undermining its otherwise flourishing democracy.

The internal dimension of J&K, on the other hand, is a complex interplay between religion and region as well as multi-ethnicity/multi-cultural and political issues. There are several layers of complexities in it. Protests, agitations, and shut downs demanding greater autonomy and exclusive rights have, time and again, brought the state to a standstill, and highlighted the unsettled nature of its polity.

The resolution of the problem has not been easy due to the interplay of several interconnected issues like-

- Indian territorial defensibility,
- The Pakistani state argument, and
- Kashmiri nationalism making it an awkward zero sum game,

All of this prevents any clean win-win situation for the involved parties.

Overall Security Situation 1988-2017

Violence levels in J&K had declined sharply after the internal and external peace processes initiated in 1999 by Prime Minister Vajpayee. The optimism that had built up after the initiation of this peace process was pursued by Prime Minister Manmohan Singh till around 2007. This resulted in a demonstrable trend of a sharp decline in violence levels, cross LoC infiltrations, and Cease Fire Agreement (CFA) violations. Fall in overall violence corresponded to the drastic fall in the ground support extended by local Kashmiris to the terrorists and separatists. The CFA violations again picked up after 2009, after the Jamaat-ud-Dawah (JuD) orchestrated the 26/11 Mumbai attacks and the peace process began to melt down.

In 2015, civilian and security force casualties had dropped, even as more terrorists were eliminated; but in 2016, the numbers of both security forces personnel and terrorists killed have gone up sharply. Thus, while terrorist related violence is down, the separatist emotion in the Kashmiri society has seen a sharp rise over the last few years, and particularly in 2016.

5.2. Reasons for J & K Insurgency

5.2.1. Rigging of 1987 Assembly elections

The insurgency was sparked by the alleged rigging of state elections in 1987. This has contributed to anti-government sentiment. A government report found that almost half of all Kashmiri Panchayat Raj positions were vacant and the reason for this was the destabilising effect of the conflict. The report also noted that their ability to effectively govern was "crippled."

However, the **2014 Assembly elections** saw the highest voter turnout in the last 25 years since insurgency has erupted. It recorded more than 65% of voters turnout which is more than usual voters turnout in other states of India. It is considered as an increase in faith of Kashmiri people in democratic process of India.

5.2.2. ISI's role

The Pakistani Inter-Services Intelligence has allegedly encouraged and aided the Kashmir independence movement through an insurgency due to its dispute on the legitimacy of Indian rule in Kashmir, with the insurgency as an easy way to keep Indian troops distracted and cause international condemnation of India. Federal Bureau of Investigation(FBI), an American government intelligence agency, in their first ever open acknowledgement in 2011 in US Court said that Inter-Services Intelligence(ISI) sponsors terrorism in Kashmir and it oversees terrorist separatist groups in Kashmir.

5.2.3. Mujahideen influence

After the invasion of Afghanistan by the Soviet Union, Mujahideen fighters, with the aid of Pakistan, slowly infiltrated Kashmir with the goal of spreading a radical Islamist ideology.

5.2.4. Sense of Alienation

Jammu and Kashmir is the only Muslim majority state in Hindu-majority India. While India itself is a secular state, Muslims are **politically, culturally and economically marginalised** when compared to Hindus in India as a whole. The Government's decision to transfer 99 acres of forest land to a Hindu organisation (for setting up temporary shelters and facilities for Hindu pilgrims) solidified this feeling and led to one of the largest protest rallies in Jammu and Kashmir.

5.2.5. Humanitarian abuses

After insurgency started in Kashmir valley because of above reasons in late 1980s, Indian troops entered in Kashmir valley to control the insurgency. The troops have been accused of humanitarian abuses and have engaged in extrajudicial killings. Military forces in Jammu and Kashmir operate under emergency powers granted to them by the central government. These powers allow the military to curtail civil liberties, creating further support for the insurgency. The insurgents have also abused human rights, engaging in what some have called an ethnic cleansing by exterminating Kashmiri Pandits from the valley of Kashmir. The government's inability to protect the people from both its own troops and the insurgency has further eroded support for the government.

5.3. Government's Approach Towards Insurgency in J & K

The response of the Indian state towards the political insurgency in Kashmir during the last two decades has gone through various stages. In the final outcome, New Delhi's response to the insurgency has moved from a heavy handed approach devoid of non-violent means for the most part to an active search for dialogue and broader peaceful interventions. As the situation has moved from

Stable peace prior to the troubles of the 1980s to war and back towards crisis and unstable peace along the conflict curve, an increasing emphasis on peacebuilding approaches aimed at bringing about sustainable peace and harmony have been on display. And yet, the Indian state's actions have not fully moved away from militarism that continues to impede faster transformation to a normalized situation.

- **UDAAN Scheme:** Udaan, the Special Industry Initiative (SII) for J&K is funded by the Ministry of Home Affairs and implemented by National Skill Development Corporation (NSDC). The programme is a part of the overall initiative for addressing economic issues and the needs of the educated unemployed in J&K. UDAAN has two objectives:
 - To provide exposure to the graduates and post graduates of Jammu and Kashmir to the best of corporate India and
 - To provide corporate India with exposure to the rich talent pool available in the state
 - ✓ The target was to reach out to 40,000 youth in J&K over a period of 5 years.
 - ✓ UDAAN provides a framework of support to the youth to travel, undergo training in

firms and transit to work.

- **NISHTHA Scheme:** National Initiative for School Heads' and Teachers' Holistic Advancement (NISHTHA) has been launched in the UT of Jammu and Kashmir. It is a capacity building programme for "Improving Quality of School Education through Integrated Teacher Training
- **Himayat Mission:** The project aims to **generate sustainable livelihood opportunities** through self-employment for the youth of Jammu and Kashmir by the crosscutting approaches of holistic entrepreneurship development programs. It aims at providing entrepreneurial skills for sustainable livelihood to 10,000 youth of J&K and facilitate access to finance and support services to at least 50% of them over a period of 3.5 Years.
- **Rehabilitation Policy:** The objective of this Rehabilitation Policy is to offer facility to those terrorists who undergo a **change of heart and eschew the path of violence** and who also accept the integrity of India and Indian Constitution to encourage them join the mainstream and lead a normal life and contribute towards prosperity and progress of the State as well as the Nation.
- **Surrender Policy:** The policy is intended to **facilitate the return of ex-militants** who belong to J&K state and had crossed over the PoK/Pakistan for training in insurgency but have given up insurgent activities due to a change of heart and are willing to return to the State.

Other Initiatives

- Placement of Special Police officers for their services in the state.
- Subsidised Helicopter services in the state.
- Scheme for providing financial assistance to the families of displaced persons of Pakistan Occupied Jammu & Kashmir.
- Central scheme for assistance towards damaged immovable/movable property during action by CPMFs and army in Jammu and Kashmir.

5.4. Challenges faced by the region

- Counter-terrorist operations with a human face.
- Rehabilitation of surrendered militants.
- Disposal/resolution of cases against terrorists for waging war against the Indian nation.
- Rehabilitation of Kashmiri Pandits and other Internally Displaced Persons (IDPs).
- Economic reconstruction of the region, after the revocation of the special status.
- Revival of Kashmiriyat and Sufism to reduce the adverse impact of fanatic jihadi ideology.
- Conflict resolution.
- Role of the media can have polarising effect and make perception management difficult for the State.

5.5. Why has Militancy failed in Kashmir?

The situation in Kashmir can be significantly cooled down by the state and Central governments reducing steps which exacerbate ethnic and religious tensions and by improving the stagnant quality of governance. Following are the few reasons due to which militancy has failed to succeed in Kashmir:

- The Kashmir issue affects just six per cent of the Indian population and is extremely localised. The concerns of the Kashmiri Muslims have failed to find resonance with the Muslim population in rest of India.
- Likewise, the concerns of other ethnic groups like the Kashmiri Pandits, have also failed to find resonance with major segments of the Indian population which are more concerned with fighting cross-border terrorism and getting local issues to the forefront.
- The moderate Kashmiri leadership has failed to emerge and lacks the vision to espouse the Kashmiri cause. The constant bickering, one-upmanship and a congenital disdain and abuse

for anyone seen close to the Indian leadership in New Delhi has cost Kashmiri leaders dearly.

- With the increasing authority and spread of Indian government resources, the ability of terrorists to strike has been eroded and jihadi propaganda has lost its punch. The lure of a secure government job has eclipsed the lure of jumping across the border and pick up the gun.
- The disillusioned Kashmiri youth now want to fight its war on social media rather than adopt guerrilla warfare. Social media has opened new channels for Kashmiris to express their feelings of discontent and dissent.
- World sees Kashmir as a border dispute between India and Pakistan and not an ethnic terror conflict
- Indian soft power has permeated the bowels of the Valley and overthrown Pakistani propaganda and the demonstration of India's pluralistic society is on display at all times. It has played a great role in forming public awareness and shaping public attitudes in Kashmir enhancing India's soft power.

5.6. Removal of Article 370 and its Assessment

President of India in concurrence with the "Jammu and Kashmir government" promulgated Constitution (Application to Jammu and Kashmir) Order, 2019 which states that provisions of the Indian Constitution are applicable in the State. This effectively means that all the provisions that formed the basis of a separate Constitution for Jammu and Kashmir stand abrogated. With this, Article 35A is scrapped automatically.

They key changes include:

- The State of J&K converted into 2 UTs: Jammu & Kashmir and Ladakh.
- UT of J&K will have an assembly.
- Special status provided by Article 370 has been abolished. Consequently, Article 35A also stands nullified.

Significance of the move

- Allow for political mainstreaming of the state, which has largely been alienated for the last 7 decades.
- A major step in the direction of national unity.
- Allow avenues for investments to pick up in the region.
- Extension of benefits like jobs, reservation, etc. for the underprivileged sections of the region, which have been hitherto denied to them.

Assessment of the move:

Positive Outcomes

- Extended the reach of the Parliament and the Indian Constitution to the region. For example, acts like RTI (2005), RPA (1951) are now applicable in the region
- New Domicile rules allow people who despite living in the State for years were denied resident status due to Article 35A
- Construction of transit accommodation for the repatriation of Kashmiri Pandits; Monthly cash relief for the migrants settled in Jammu
- An array of social security measures including insurance schemes like Atal Pension Yojana and other developmental schemes like PM-KISAN, Stand -Up India, PM Jan Dhan Yojana have been extended to the region
- Decrease in terrorism related deaths in the region
- Recruitment of terrorists in the region has fallen significantly in the region
- There have been fewer IED and grenade attacks in the region over the last one year

- Dividing Ladakh from the region as fulfilled the popular aspirations and sent a clear signal to China that it is an integral part of India

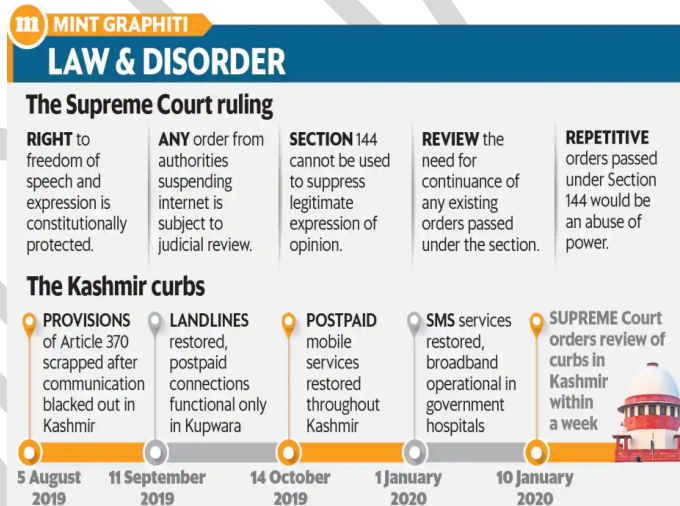
Student Notes:

Negative Outcomes

- Abrogation of article 370 at the time the assembly was suspended has raised the threat perception regarding their Kashmiri identity
- Shutdowns and Internet blockade has severely affected education in the region, especially in the midst of the pandemic where digital education has become the new norm
- Communication blockade, curfews and militant threats have severely affected the agricultural and industrial output in the region
- Tourism which contributes to a large chunk of the economy is in shambles due to the lockdowns
- While terrorism related deaths have decreased, there has been a growing trend of the youth joining militancy. Cross border infiltration attempts although remain high since the abrogation of Article 370
- It has also led to the internationalisation of the Kashmir issue
- Increased cases of Chinese transgressions in the Ladakh region after the bifurcation.

5.6.1. Supreme Court ruling on Internet shutdowns in the region

- Section 144 cannot be used as a tool for repression of the expression of legitimate opinion and grievances of the people
- Indefinite ban on internet access is **impermissible**
- Any measure imposing reasonable restriction on the fundamental rights of the citizens, be it Internet shutdown or Section 144 order, has to pass the test of **proportionality**
- All government orders regarding such restrictions should be made **public** so that they can be challenged in the court of law.



Way forward

- Rebuilding the trust and confidence of the people of Kashmir in the democratic machinery
- Addressing the economic distress in the region through a comprehensive economic recovery package
- Lifting the Internet shutdown in the region
- Robust push to education in the region through special scholarships and adequate funding of the institutions

5.7. What needs to be done?

Professor Amitabh Mattoo has recommended 4D's which shall be implemented to settle down the skirmishes in Jammu and Kashmir. They are as follows:

- Dialogue:** Unconditional continuous dialogue between state and non-state actors.
- Demilitarisation:** Essential to move the process of dialogue and reconciliation ahead.

- **Devolution:** Devolution of power and bringing all three regions of Jammu, Ladakh and Kashmir together. Reconciliation is imperative to prevent polarization on communal lines.
- **Development:** Through the participation of the people of Kashmir.

Few recommendations by various committees to tackle the situation in Kashmir are as follows: (refer infographic)

5.8. Miscellaneous

5.8.1. Kashmiri Pandit Tragedy

The hotly contested circumstances of their departure between January and March 1990, the numbers, and the issue of their return are an important side to the Kashmir story that has fed into the Hindu-Muslim polarisation in India over the years, in turn fuelling the Hindu-Muslim chasm in the Valley

Events in the 1980s-90s

- Sheikh Abdullah had died in 1982, and the leadership of the National Conference passed on to his son Farooq Abdullah, who won the 1983 election. But within two years, the Centre broke up the NC, and installed dissident Ghulam Mohammed Shah as Chief Minister. This led to huge disaffection and political instability
- The Jammu & Kashmir Liberation Front (JKLF) stepped up its activities, and the hanging of the militant leader Maqbool Bhat in 1984 added to the sense of foreboding.
- In 1986, after the Central government opened the Babri Masjid locks to enable Hindus to offer prayers there, ripples were felt in Kashmir too.
- In Anantnag, there were a series of attacks on Hindu temples, and shops and properties of Kashmiri Pandits, blamed on separatist and secessionists
- The rigged election of 1987 after which Abdullah formed the government was a turning point at which militants took the upper hand
- Waves of panic hit the community, especially after a local newspaper published an anonymous message, allegedly from the Hizb-ul Mujahideen, asking Pandits to leave
- The **Gawkadal Massacre** in which the CRPF gunned down 160 Kashmiri Muslim protesters at the Gawkadal Bridge, which has come to be known as the worst massacre in the long history of the conflict in Kashmir. After this, there was a large scale exodus of the Pandits from the valley

- Undertake counter-terrorist operations with a human face.
- Reduce the presence of uniformed men in population centres.
- Increase emphasis on surgical operations, based on specific intelligence.
- Employment of Territorial Army (Home and Hearth) units to fill the deployment gaps.
- Training of CPOs to undertake operations with a human face.
- Transparency in operations and zero tolerance for human rights abuses.
- Rehabilitation of surrendered militants and implementation of cohesive policy for surrender.
- Constructive engagement and employment of youths to insulate them from the lure of militancy.
- Certainty of convictions, with speedy disposal of cases against all those involved in terrorist activities.
- Rehabilitation of Kashmiri Pandits, border migrants and protection of their lives and property after rehabilitation.
- Implementation and monitoring of the reconstruction plan of J&K to ensure inclusive development.
- Constructive role of the media towards the reconciliation, reconstruction and development of J&K and highlighting the contribution of the Indian Army and sacrifices made by the security forces to defeat the evil designs of Pakistan.
- Revival of Kashmiriyat and Sufism through public debates and programmes.
- Engagement of all parties and sections of society for conflict resolution within the framework of the constitution.
- Need to expose the double-speak of Pakistan and their brutal methodology of handling counter-terrorist operations in SWAT and Waziristan.

According to some estimates, notably by the Kashmiri Pandit Sangharsh Samiti (KPSS), of 75,343 Kashmiri Pandit families in January 1990, more than 70,000 fled between 1990 and 1992. The flight continued until 2000. The KPSS has placed the number of Kashmiri Pandits killed by militants from 1990 to 2011 at 399, the majority during 1989-90. Some 800 families have remained in the Valley through these three decades

5.8.2. Role of Over Ground Workers (OGWs)

Over ground workers (OGWs) are people who help militants, or terrorists, with logistical support, cash, shelter, and other infrastructure with which armed groups and insurgency

movements such as Hizbul Mujaheddin and Jaish-e-Muhammad in Jammu and Kashmir can operate. OGWs play a vital role in militant attacks, providing real-time information and support to the tactical elements. Over ground workers have diversified into other roles such as stone-pelting, mob-rioting, ideological support, radicalisation, and recruitment of militants.

In 2020, up until 8 June, around 135 over ground workers were arrested in Jammu and Kashmir by the Jammu and Kashmir police. While the term is used and associated extensively with the Kashmir region, the term has also been used officially in other parts of India where insurgency is still active, such as in the **Naxalite–Maoist insurgency and in Meghalaya for the Garo National Liberation Army.**

Reasons for the rise of OGWs

An official report of the **Crime Wing of Jammu and Kashmir police** has revealed that while on one hand, the number of active militants has gone down since 2017, the network of OGWs have shown a steep rise, raising another concern for the security grid. The following could be the possible reasons:

1. The comparative freedom of movement available to terrorists due to limited resource control measures, emboldens the terrorists to change their strategy by trying to mix up with the population
2. There is an adequate pool of disgruntled unemployed youth both educated and uneducated for recruitment by anti-national elements
3. The individuals booked under Public Safety Act (PSA) of J&K and who spend time in jails with hard core, terrorists provide an ideal breeding ground for potential recruits.
4. As a sense of alienation increases the support for the grey population (separatists & OGWs) increases, who in turn are able to influence the perception of people more adversely and enable disgruntled youth to be recruited

RECRUITMENT: SYSTEMATIC ENTRAPMENT



Role Played by OGWs

1. Previously, OGWs were primarily involved in **logistics support and intelligence gathering**. Of late the distinction has blurred considerably with OGW also capable of carrying out **small scale strikes** while retaining the capability to mix rapidly with the population.
2. OGWs also become a significant tool for **strategic communication and recruitment** by their handlers in J&K.
3. OGWs can constantly work towards the development of a **negative sentiment** in the minds of the so-called grey population or fence sitters in an insurgency. They instigate people on trivial grounds in order to demoralize and discredit the security forces.
4. They mobilise **mass support** for implementing their work, masses are brain washed and mobilised for terror support. OGWs provides **hide out and escape routes**, as they are well aware of local geography, etc.
5. They collect enough support through local elections and mobilize resource and officials to help terrorists and insurgent organisations.

Measures to deal with them

Student Notes:

1. To fight this most important tool of terrorism and proxy war it is important to categorise the OGWs so that separate response strategies can be made for each one of the categories. Although operating as larger network, the OGWs in Kashmir can be broadly categorised under the following heads
 - OGWs for Logistic Support (OGWLS) to Strike teams.
 - OGWs managing Funding (OGWF).
 - OGWs providing Ideological Support (OGWIS).
 - OGWs providing Radicalisation Support (OGWRS).
 - OGWs for Recruitment of Terrorists (OGWR).
 - OGWs generating negative Perceptions and Sentiment amongst the public (OGWPS)
2. **OGWLS and OGWF** are easy to identify as these can be caught in the act during a counter terror operation or by intelligence agencies tracking cyber funding and physical currency as funds for terror
3. **OGWIS, OGWRS and OGWR** can be grouped together for the purpose of response strategies. These workers are omnipresent in all walks of life. Merely picking them up in night raids will only alienate the society further. On the contrary, launching intelligence-based sting operations over a period of time, gathering proof of their damaging activities of recruiting, radicalising or merely pushing the youth into militancy by handing them over guns, will expose them in the eyes of the public
4. The last category is that of **OGWPS** who are the fence sitters and they are just keeping the pot boiling by creating an atmosphere of fear, dejection and helplessness in the youth. An endeavour to change their mind set through Psychological and social rehabilitation as well as strategic communication could be an answer to bring them back into the mainstream.
5. Security agencies and government should **control their social interactions** including digital interactions, especially with local youth and political parties, to control influence.
6. It is necessary to create a **academic system of universities and colleges devoid of such radical ideologies**. If the influence of OGWs is reduced among academicians, there are great chances of dying down of the movement in the future.

The **Perception and Psyche** of the society is the key to the solution of the problem and highest standards of propriety and well thought out strategic communication for the different categories of the OGWs will separate the fish from the pond.

6. UPSC Mains Previous Years' Questions

1. Article 244 of Indian Constitution relates to administration of scheduled areas and tribal areas. Analyze the impact of non-implementation of the provisions of fifth schedule on the growth of Left Wing Extremism.
2. The persisting drives of the government for development of large industries in backward areas have resulted in isolating the tribal population and the farmers who face multiple displacements. With Malkangiri and Naxalbari foci, discuss the corrective strategies needed to win the Left Wing Extremism (LWE) doctrine affected citizens back into mainstream of social and economic growth.
3. The north-eastern region of India has been infested with insurgency for a very long time. Analyze the major reasons for the survival of armed insurgency in this region.
4. Left Wing Extremism (LWE) is showing a downward trend, but still affects many parts of the country. Briefly explain the Government of India's approach to counter the challenges posed by LWE.
5. The banning of 'Jamaat-e - islaami' in Jammu and Kashmir brought into focus the role of over-ground workers (OGWs) in assisting terrorist organizations. Examine the role played by OGWs in assisting terrorist organizations in insurgency affected areas. Discuss measures to neutralize influence of OGWs.

6. Cross-border movement of insurgents is only one of the several security challenges facing the policing of the border in North-East India. Examine the various challenges currently emanating across the India-Myanmar border. Also discuss the steps to counter the challenges.

7. Vision IAS Mains Previous Years' Questions

1. *What are the developmental and institutional provisions by the government for conflict management in left-wing extremist areas? Suggest steps for capacity building towards conflict resolution to complement the same.*

Approach:

After explaining the problem of Naxalism very briefly, lay out the institutional as well as the developmental measures taken by the government to counter Naxalism. Thereafter, give the capacity building steps that can be taken (both with respect to security as well as integration strategy) for conflict resolution to complement the development and institutional measures.

Answer:

Naxalism or Left Wing Extremism (LWE) continues to be the gravest of the internal security challenges facing India. According to the official estimate a total of 223 districts are affected by LWE. Statistics also reveal a perceptible increase in the incidences of violence as well as fatalities caused by Maoists in recent times. The growing severity of their tactical counter offensive campaign which includes attacks, massacres and targeted killings of security forces and high profile individuals, is primarily responsible for the rise in incidences of violence.

In order to counter the grave security threat, the government of India has been taking various institutional, developmental as well as capacity building steps.

Institutional Measures:

- A Police Modernization Scheme in areas affected by Naxal movements. Under this scheme, modernization of police equipment and tactical gear including latest communication, vehicles and infrastructure facilities is taken up and to determine police stations and outposts susceptible to Naxal attacks to be fortified.
- Due to increased use of IED by the Naxalites and the increased number of casualties, providing the forces with Mine Protected Vehicles (MPV).
- Central Para Military Forces have been deployed on a long term basis by the government to help the state governments to fight against the Naxals.
- 40% recruitment in Central Para Military Forces from areas affected by Naxalism to discourage the youth from the path to militancy
- The government, to strengthen the security network in the states, had set-up the Indian Reserve (IR) battalions. These forces along with providing additional security provide youth with employment opportunities.
- Establishment of special security forces like Greyhound and COBRA

Developmental Measures:

- **Integrated Action Plan (IAP)** was formulated as an additional central assistance scheme on 100% grant basis in November 2010, under which the funds were to be placed at the disposal of district level committee which will have flexibility to spend the amount for development schemes according to need, as assessed by it.
- A special scheme to address the development of 33 (expanded now) LWE affected districts.

- **Saranda Action Plan:** It is a rural livelihood development plan for naxal hit areas of under developed regions (Saranda is in West Singhbhum District, Jharkhand) launched by the Government of India in 2011. As Development and security are integral to each other, so the main aim is to bring about rural development, in backward areas, especially tribal and adivasi areas and weed out Maoism in these areas. Similarly Sarju Area Development Plan was started in Sarju Kone area of Latehar.
- The government started the Backward Districts initiative in 2003-2004 and the Backward Regions Grant Fund (BRGF) where worst affected areas in states were to be provided with funds to tackle the problem of Naxalism. Around 250 districts have been included in the BRGF scheme to accelerate socio-economic development in these districts.

Steps for Capacity Building in security arena:

- Revising the sanctioned strength of police stations and filling the vacancies that exist. Strengthening the manpower by transferring district/state armed reserve to police stations can also be done.
- Building the basic infrastructure on a priority basis with timelines in naxal affected districts, particularly improvement of police infrastructure, intelligence and military capabilities along with the formation of specialized forces.
- Many states are adopting the capacity building program based on the reverse application of the revolutionary field tactics used by Maoists, which has been successfully used by the Greyhounds in Andhra Pradesh. For example, while surprise, secrecy and speed have been the driving tactics for the Maoists, the greyhounds in Andhra Pradesh have used a reversal of the same strategy that has proved to be triumphant for the state.

To prevent the spread of Naxalism, the best strategic response would be to work with civil society actors to counter the Naxal narrative and ideology. This requires a fundamental re-conceptualization of the strategy to counter Naxalism. State response must be recalibrated to privilege the use of "brain force" over "battalion force". A consensus needs to be arrived at that can serve as a force-multiplier for the security forces.

2. ***While extreme inequalities are a major source of tension, the developmental deficits in the country are too great to allow developmental interventions to play any defining role in the resolution of existing conflicts within a reasonable time frame. Analyse with respect to the government's approach in tackling left wing extremism in India.***

Answer:

All the regions in which the Naxal, the Maoist and the left wing movement took hold are ones with alarming levels of poverty and inequality. Many of these inequalities have also been a result of the trajectory of the post-independence development that we have followed. These were:

- Unequal development under five year plan:** The economic development under five year plan led to the formation of the growth poles, i.e. unequal development, restricted only to some urban centers.
- Alienation of Forest Land:** In implementing government regulations on forest access, government officials resorted to harassment of the tribals. Loss of access to forest produce and land which had constituted a significant part of their income and social fabric, resulted in their extreme deprivation, poverty, bonded labor etc.

- c. **Policies of agrarian development:** It focused on massively improving output without doing enough to check economic and social disparity.
- d. **Policies of Industrial development:** The land acquisition policies, low compensation to the landowners, degradation of the environment by the industrial setups, all formed the part of the trajectory of the industrial development.

This trajectory of development has created discontent. The Inequality in the form of class inequality, regional inequalities, caste inequality and agrarian and economic exploitations at the hands of the landed class and money lenders manifested itself in the form of unrest against the landowners, petty bourgeoisie, the beneficiaries of this development and the state that failed to address the injustices.

Now with the growth of the left wing extremism in these regions of development deficit, the steps that are required to cure this developmental deficit are further facing major hurdles as mentioned below:

Lack of Infrastructure: The basic infrastructure that is required for the development to reach these remote sites of left wing extremism, majorly do not have transport and communication connectivity and are lack basic infrastructures like bridges, schools, hospitals etc. which bear the brunt of extremist violence.

Skilled Human Resource Deficit: The skilled human resource in the form of doctors, teachers and engineers required to bring development to these regions do not wish to tread these regions due to the threat involved in service to these areas.

Inaccessibility of government schemes in these remote regions: Absence of government machineries and parallel government running in these regions hinder state sponsored development to reach these regions.

Government's approach in tackling left wing extremism in these regions

The government approach to this problem has been to deal with left wing Extremism as a security problem first and clear all the hurdles from developing these areas, so that the discontent fuelling the extremism can be addressed. These include measures like:

Law and Order approach

Police Modernization Scheme in areas affected by Naxal movements. Under this scheme huge sums of money have been provided to the state governments by the central government to modernize their equipment and tactical gear including latest communication, vehicles and infrastructure facility. States have also been told to determine police stations and outposts that are susceptible to Naxal attacks and have to be fortified.

Social Integration approach

The government started the Backward Districts initiative in 2003-2004 and the Backward Regions Grant Fund (BRGF) under which 55 of the worst affected areas in 9 states were to be provided with funds to the tune of Rs. 2475 crores to tackle the problem of Naxalism.

Rehabilitative Approach

Rehabilitation and Resettlement Policy, 2007. The main aim of this act is to minimize the displacement of people and to promote non-displacing or least displacing alternatives.

Forest Rights Act, 2006, The Ministry of Environment and Forests has also allowed use of 1 hectare of land for non-forest purposes and conversion of kutchha roads into pukka roads

Approach of Developing Grassroots Democracy

Panchayats (Extension to Scheduled Areas) Act, 1996 or PESA enable Gram Sabhas to self-govern their natural resources.

These approaches as a whole with an inclusive development and not development alone can solve the problems of left wing extremism in the conflict ridden regions.

Student Notes:

3. ***Although insurgency groups are present in both Kashmir and the North-east, their nature and model of sustenance are entirely different. Analyse. Also, compare the linkages between organised crime and terrorism in both these areas.***

Approach:

Mention the identity based nature of conflict – tribal v/s religious in the two areas. Comparison of the relationship between organised crime and terrorism should follow from presence (in NE) and absence (in Kashmir) of parallel governments, kidnapping and extortion, percolation of government funds to terrorists, etc. should be mentioned. Role of external factors should also be mentioned.

Answer:

Insurgency is a violent rebellion against a constituted authority, where those taking part are not recognised as belligerents. The parameters to differentiate the nature of insurgencies roll back to their originating factors and the targets desired. Differences in models of sustenance can be gauged by (i) structures which support them, such as external state and non-state assistance, (ii) sympathy of locals, mostly through propaganda, and most importantly, (iii) access to sound financial resources. Both J&K and North-east India have witnessed insurgency during larger part in post-independence period; however, there are certain differences in its nature and model of sustenance.

Difference in Nature

- While conflicts in North-east have their origin in distinct tribal identities, the one in Kashmir is based on religious identity.
- Perceived alienation from the mainland has been an important factor in case of north-east, but there is no such element in Kashmir.
- Conflicts in North-east range from insurgency for secession (in Nagaland) to insurgency for autonomy (Karbi-Anglong), from 'sponsored terrorism' (ULFA, NDFB) to ethnic clashes (Meities v/s Nagas) and to conflicts generated as a result of continuous inflow of migrants from across the border as well as from other states. Conflict in Kashmir, on the other hand, is instigated and sponsored from across the border, with an overt demand for independence and a tacit understanding for uniting with Pakistan.
- Guerrilla tactics are an important element in case of north-east militants. In Kashmir, however, the attacks are more overt with an intention to keep alive the separatist cause by flaring up anti-India sentiments.

Difference in model of sustenance

- With extremely weak governance structures in the north-eastern states (Nagaland and Manipur in particular), the insurgents mostly run parallel governments through extortion, kidnappings and keeping people under constant fear. In Kashmir, the governance structures are better established and insurgents have to regularly play victims of the state in order to win some support.

- External state, i.e. Pakistan is heavily involved in sponsoring of terrorist activities in the valley directly through ISI and indirectly through jihadist terror outfits. While many groups in north-east receive support from external states, their role has been limited and the major source for finance is trafficking, smuggling and extortions.

Comparison of linkages between Organised Crime (OC) and Terrorism in J&K and NE:

In India, linkages between OC and terrorism exist both at national and transnational level.

In North east:

- The organised crime network and the militants are virtually inseparable. Apart from kidnappings and extortions as criminal sources of finance, much of the government funds and food supplies are also siphoned-off due to mal-governance. Government servants are often threatened or bribed to award contracts to individuals patronised by the militants. These are clear examples of linkage between OC and terrorism.
- These activities are, however, not sufficient to finance their nefarious acts. This is where transnational linkages through drugs and arms syndicates come into play. Insurgent groups mobilize funds by becoming couriers of drugs, arms and human beings. Moreh in Manipur and Chittagong hill tract on India-Bangladesh-Myanmar border are crucial transit points of the Golden Triangle. Initially the international crime syndicates (ICS) had their own network; however, with these routes being taken over by various insurgent groups in the NE, the ICS have started using these groups as couriers rather than bribing them.

In Kashmir:

- There is minimal reliance on funds from extortion and other means. There are no parallel government structures and the government resources do not easily reach the terrorists, even if they may be lost due to corruption.
- However, external funds compensate more than enough for lack of internal mobilisation. Funds mobilised in Pakistan and Gulf countries, mostly in name of religious or philanthropic activities reach Kashmir through Hawala (money laundering) route.
- Besides, it is also believed that funds from drug trade in the Golden Crescent finance terrorist activities in Kashmir. Counterfeit currency, estimated to be Rs 300 Cr annually, mostly emerging in Pakistan is another major linkage between OC and terrorism, terrorists being the couriers and part beneficiaries.

When ethnic identity, religious fundamentalism and extra-territorial sponsorship of terror fuel violence and disorder, the challenge becomes particularly grave. Such threats to national security need to be addressed by concerted and consistent State action, backed by swift justice, competent governance and democratic legitimacy.

4. ***While the roots of Naga insurgency lay in issues of identity and ethnicity, over the course of time it has evolved into a complex problem with political, social and economic ramifications. Discuss.***

Approach:

- Discuss the roots of Naga insurgency and its evolution into a complex problem.
- Bring out the political, social and economic ramifications of this complex problem.
- Conclude by suggesting ways to ensure long-lasting peace in the region.

Answer:**Student Notes:**

The region of Nagaland is characterized by the presence of various tribes, sub-tribes, clans with varying customs, traditions, dress, language, polity etc. Naga ethnicity struck deep chord with the various tribes even though some of its roots lay not in the feeling of commonality but in the desire to be left alone. There was also a deep distrust of the Indian state due to the unique identity and ethnicity of the Naga people that led to the demand of a separate nation after independence.

The vast heterogeneity of India was homogenized in the Naga consciousness as an exploitative, unpleasant stereotype. This was further fuelled by the influx of migrants in the region leading to heightened anxiousness of losing the unique culture and resources thereby impinging on their identity. There were strong apprehensions about the ownership of community-land and the security of land tenure. The Nagas also feared interference with their traditional methods of livelihood and customs.

This led to the Naga National Council under the leadership of A.N Phizo declaring independence which was subsequently rejected by the central government. This directly led to confrontation and conflict of armed insurrection between a group of Nagas and a counter-offensive launched by the central security forces. The government's efforts to bring the violence to an end was partially successful with the signing of the Shillong Agreement in 1975. However, several disgruntled groups such as NSCN did not accept the agreement and therefore the area continued to be inflicted by violence.

This insurgency is further complicated by international support, inaccessibility due to hard terrain and support from local population to the insurgent militia.

The complex issue now has multi-dimensional ramifications such as-

Political

- The Naga population occupies a vast area of Arunachal Pradesh, Nagaland, Manipur and Myanmar and demand creation of a Greater Nagalim. However, the adjacent states and Meitei insurgents (Manipur) are opposed to any territorial changes.
- There is a lack of consensus on a political solution as there exists various groups with different demands. The negotiation with one group is not accepted by the other leading to continued conflict.
- The alleged international support from Myanmar and China further complicate the politics of the region.

Social

- The insurgent groups have a considerable influence among the people leading to disruptions in the daily life and society of the region.
- The extortion activities and corruption abated by the insurgents disrupt the local economy and society. It gives rise to social ills like drug and alcohol consumption etc.
- Tribes fighting among themselves and raiding the plains of Assam lead to violent ethnic clashes, loss of human life and forced migration.
- Due to the continued confrontation, the region witnesses poor health and educational outcomes.

Economic

- Despite being resource-rich, region does not attract investment from corporates due to instability and insurgency.

- Also, the insurgency hampers the government initiatives for economic and infrastructural development.
- The poor physical, digital and communication connectivity with the rest of the country adversely impacts the well being of the population.
- Further, lawlessness provides fertile ground for illegal activities such as drug trafficking, smuggling etc

Therefore, the government should involve all factions of the underground groups in future negotiations for peace. A lasting solution lies in giving more autonomy to the state, accelerated infrastructural development, new trade routes, and asserting pressure on militant groups.

5. Why is radicalisation seen as a significant security challenge for India? Suggest ways to tackle it.

Approach:

- Briefly discuss what is radicalisation in introduction.
- Discuss why radicalisation is seen as a security challenge for India?
- Suggest ways in which India can tackle the problem of radicalisation.
- Conclude accordingly.

Answer:

Radicalisation is a process with multiple reinforcing pathways of developing extremist beliefs, emotions, and behaviours. Whether based on religious, ethnic or political grounds, extremist ideologies glorify the supremacy of a particular group or cause, and motivate people to use violent means against members of an out-group or in pursuit of the cause.

Radicalisation is seen as a significant security challenge for India due to various reasons:

- Radicalisation is the **first step towards violent extremism**, which in turn may lead to loss of human lives. It has the potential to **tear apart the social fabric** and increase the probability of a polarised society in such a diverse country as India.
- It is **used by the enemy countries or extremist organisations to instigate resentment** amongst the people by taking advantage of the factors like lack of economic development, mis-governance etc. In India, it is spread over many parts of the country - Jammu Kashmir, North Eastern States, Punjab etc. Moreover, radicalisation has also created problems in the South Asian region, which is India's neighbourhood
- Further, with the **rising number of social media users** in India, the threat of internet-facilitated indoctrination becomes imminent as it may lead to rapid increase in recruitment by militant agencies through social media. The Islamic State and other such organisations have indeed used this path. This along with the trend of **reasonably well educated and urban youth** joining militant organisations makes it a prominent security concern.
- As radicalisation is fueled by an ideology, unlike other, more physical manifestations of violence, radicalization cannot be countered by traditional kinetic measures only.

Although India is taking steps like setting up de-radicalisation camps, roping in scholars of ideological or religious affiliation for counselling etc., there are some steps that the government can take to tackle the problem of radicalisation:

- **Developing a comprehensive policy framework** that focuses on de-radicalisation and works in tandem with the peculiarities of each state.
- **Roping in senior citizens and family members** to share their words of wisdom with vulnerable youth and monitor suspicious online activities of children and help bring them back into the mainstream.
- **Building counter-narratives on social media** that would help in tackling social media propaganda originating from other countries as well as from extremist organisations. The government must launch both online and offline campaigns targeting the right audience along with an effective content-based online regulation, blocking of websites and removing extremist propaganda.
- **Training officials and staff members** of the agencies working in counter-radicalisation in matters related to special aspects of different communities' religious and cultural sensibilities and the way investigations against extremism should be conducted.
- **Undertaking efforts towards de-radicalisation and rehabilitation** of the detainees charged with crimes of violent extremism.
- **Developing close cooperation with other countries** in conducting counter-radicalisation programmes including integration and dissemination of information.

The problem of radicalisation has seen an uptrend. There is a need to avoid discrimination between one kind of radicalisation and another. Strengthening social resilience is an important tool in countering radicalisation in all its forms, targeting all types of people. Thus, it is important to conduct meaningful research towards development of a counter-radicalisation framework, which is both preventive and curative in nature and also rehabilitates the misguided youth of the nation.

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LINKAGES OF ORGANIZED CRIME WITH TERRORISM

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1. What is an Organized Crime?

Much like the concept of terrorism, there is no single uniformly accepted definition of organized crime. The **UN Convention against Transnational Organized Crime** does not define organized crime as organized crime's illicit activities are often changing and a definition would quickly become outdated. Instead, it defines an organized criminal group as:

A **structured group** of three or more persons, existing for a period of time and acting in concert with the aim of committing one or more **serious crimes** or offences in order to obtain, directly or indirectly, a **financial or other material benefit**.

- A **structured group** is broadly defined as one that does not require any formal hierarchy or continuity of its membership. Therefore, loosely affiliated groups without any formally defined roles for its members or any developed structure or hierarchy are also included.
- A **serious crime** means any offence punishable by at least four years imprisonment (5 or more years in case of India).
- The **purpose** of the organized criminal group to obtain directly or indirectly, a financial or other material benefit was included in the Organized Crime Convention to exclude groups with purely political or social motives. At the same time, the other material benefit was intended to include sexual gratification through, for example, the receipt or trade of materials by members of peer-to-peer networks sharing online child exploitation material or cost sharing among the network members.

Terrorism

UN General Assembly **Resolution 49/60** aims to criminalize certain armed activities considered to be "terrorist" in nature. In particular, it specifies that "criminal acts intended or calculated to provoke a state of terror in the general public, a group of persons or particular persons for political purposes are in any circumstance unjustifiable, whatever the considerations of a political, philosophical, ideological, racial, ethnic, religious or any other nature that may be invoked to justify them".

The approach adopted in the Convention's definition has been **criticized** by some scholars, who have considered it limited in that States parties have broad discretion as to how organized crime is defined in national legislation, which in turn might lead to disparity in national implementation. On the other hand, like terrorism, organized crime also evolves over time, is **not static**, and varies from region to region. For that reason, the focus of the Convention is on the actors of organized crime - the organized criminal group - rather than the illicit activities.

The Organized Crime Convention also lays out a definition for the transnational aspect of organized crime. The Convention in its article 3 defines **transnationality**:

An offence is transnational in nature if:

- it is committed in more than one State;
- It is committed in one State but a substantial part of its preparation, planning, direction or control takes place in another State;
- It is committed in one State but involves an organized criminal group that engages in criminal activities in more than one State; or
- It is committed in one State but has substantial effects in another State.

2. Characteristics of organized Crime

According to the Presidents Commission on organized Crime 1986, organized crime is the collective result of the commitment, knowledge and actions of three components :

- i) The Criminal groups;
- ii) The Protectors; and
- iii) The Specialist support.

2.1. Characteristics of the Criminal Group

Student Notes:

1. Continuity: The criminal group operates beyond the life time of individual members and is structured to survive changes in leadership.

2. Structure: The criminal group is structured as a collection of hierarchically arranged interdependent offices devoted to the accomplishment of a particular function. It may be highly structured or may be rather fluid. It is, however, distinguishable as the ranks are based on power and authority.

	Traditional organized crime	New transnational crime
The term of fundraising	Long-term financial interests	Short-term financial interests
The history of groups	Longstanding crime groups Such as the Sicilian Mafia, the Russian Mafia, the Hong Kong Triads the Japanese Yakuza	Recently formed crime groups Such as drug-trafficking and human smuggling groups.
Relationship to the Nation-State	Symbiotic relationship, Criminal-Political Nexus, grows with the weak state.	Take advantages of dysfunctional state institutions and porous borders, develops with the weak state.
Relation to Terrorism	Usually rejects association with terrorists. Only if they are seriously crippled by the state authorities.	Frequently seek relates with terror groups for short-term survival.

3. Membership: The membership in the core criminal group is restricted and based on common traits such as ethnicity, criminal background or common interests. The potential members are subjected to a lot of scrutiny and required to prove their worth and loyalty to the criminal group. The rules of membership include secrecy, a willingness to commit any act for the group and intent to protect the group. In return for loyalty, the member of a criminal group receives economic benefits, certain prestige, and protection from law enforcement.

4. Criminality: The criminal group relies on continuing criminal activity to generate income. Thus, continuing criminal conspiracy is inherent in organized crime. Some activities such as supplying illegal goods and services directly produce revenue, while others including murder, intimidation and bribery contribute to the group's ability to earn money and enhance its power. The criminal group may be involved both in legitimate as well as illegitimate business activity at the same time.

5. Violence: Violence and the threat of violence are an integral part of a criminal group. The violence or threat of it is used against the members of the group to keep them in line as also against the outsiders to protect the economic interests of the group. Members are expected to commit, condone or authorise violent acts.

6. Power/Profit Goal: The members of the criminal group aim at maximising the group's profits. The political power is achieved through the corruption of public officials, including legislators and political executive. The criminal group maintains power through its association with the "protectors" who defend the group and its profits.

2.2. Protectors

They are corrupt public officials, attorneys and businessmen who individually or collectively protect the criminal group through abuses of status and/or privilege and violation of the law. As a result of the protector's efforts, the criminal group is insulated from both civil and criminal government actions.

Corruption is the central tool of the criminal protectors. A criminal group relies on a network of corrupt officials to protect the group from the criminal justice system.

2.3. Organised Crime Support

- 1. Specialist Support:** organized criminal groups and their protectors rely on skilled individuals or support to assist the criminal groups on an adhoc basis. They are nonetheless considered part of organized crime. The specialists include pilots, chemists, arsonists, hijackers, shooters etc.
- 2. Social Support:** Social support includes public officials who solicit the support of organized crime figures; business leaders who do business with organized crime figures at social gatherings and thus portray the criminal group in a favorable or glamorous light.



The degree of these characteristics may vary from group to group. The quintessential element of organized crime is continuing illegal activities for generating illegal profits. Conceptually, as long as this condition is satisfied, a group can be termed as an organized criminal group.

Indian experience, however, shows that there is continuing illegal activity by organized criminal gangs, sometimes even in the absence of profit motive. Rigging of

elections, preventing voters from exercising their electoral rights, preventing public servants from the lawful discharge of their duty, and recurrence of caste or communal violence on a continuing basis are such examples. It would be appropriate to bring such crime also under the ambit of organized crime.

3. Types of organized Crime

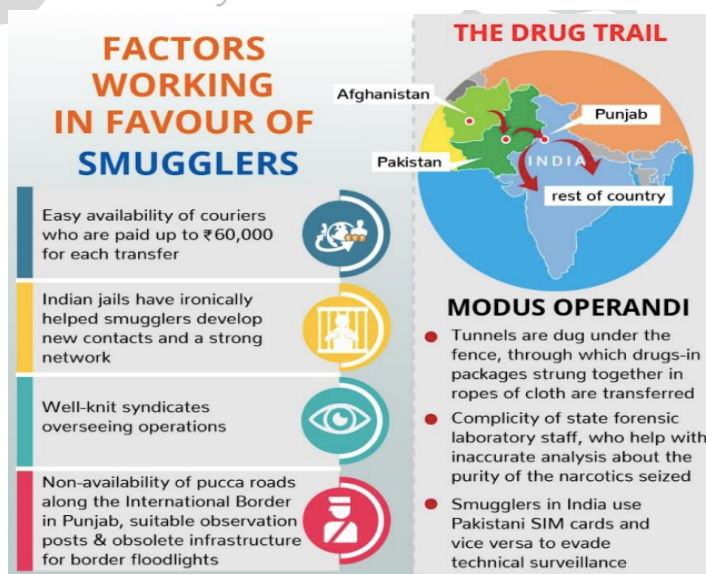
3.1. Drug Abuse and Drug Trafficking

It is perhaps the most serious organized crime affecting the country and is truly transnational in character. India is geographically situated between the countries of **Golden Triangle** and **Golden Crescent** and is a transit point for narcotic drugs produced in these regions to the West.

India also produces a considerable amount of licit opium, part of which also finds place in the illicit market in different forms. Illicit drug trade in India centres around five major substances, namely, heroin, hashish, opium, cannabis and methaqualone.

3.2. Smuggling

Smuggling, which consists of clandestine operations leading to unrecorded trade, is another major economic offence. India has a vast coast line of about 7,500 kms and open borders with



Nepal and Bhutan and is prone to large scale smuggling of contraband and other consumable items.

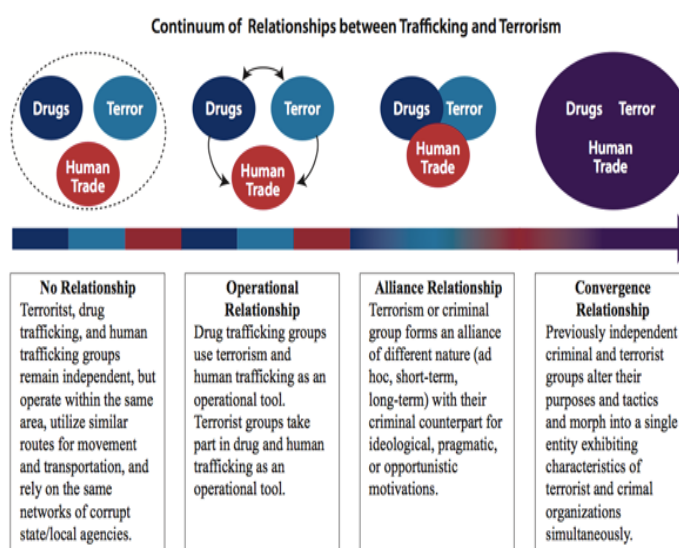
Student Notes:

3.3. Money Laundering & Hawala

Money laundering means conversion of illegal and ill-gotten money into seemingly legal money so that it can be integrated into the legitimate economy. Proceeds of drug related crimes are an important source of money laundering world over. Besides, tax evasion and violation of exchange regulations play an important role in merging this ill-gotten money with tax evaded income so as to obscure its origin.

3.4. Light Arms Proliferation & Trafficking

Light arms proliferation is a global phenomenon. It has extracted a heavy toll in terms of human lives and socio economic development of entire regions, costs of which can never be adequately computed. India has suffered due to trafficking in illicit arms. The twin phenomenon of rising crime as well as armed conflicts and terrorism are directly linked to the global proliferation and movement of weapons.



3.5. Contract Killings

The method adopted in contract killings is by engaging a professional gang for a monetary consideration. Part of the prefixed amount will be paid in advance which is called 'supari'. The rest of the payment will be made after the commission of the crime. The Bombay gangs specialise in contract killings. Dawood Ibrahim gang has been responsible for contract killings of several rich businessmen, industrialists and Politicians.

3.6. Kidnapping for Ransom

Kidnapping for ransom is a highly organized crime in urban conglomerates. There are several local as well as interstate gangs involved in it as the financial rewards are immense vis-a-vis the labour and risk involved.

3.7. Prostitution

Trading in sex and girl-running is a very profitable business in which the underworld plays an important part. Flesh trade has been flourishing in India in various places and in different forms. The underworld is closely connected with brothels and call girl rackets, making plenty of money through this activity.

Prostitution is not an offence in India. However, running brothels, inducing girls for the sake of prostitution, detaining girls in brothels or running brothels in the vicinity of public places is a criminal offence. There is evidence of underworld networks running the brothels and the existing law has not been found strong enough to tackle the menace.

4. Similarities between organized Crime and Terrorism

- A **similar personality profile of members** belonging to a terrorist or an organized crime group. Both entities seem to be recruiting their members from the marginal social groups

exposed to and burdened by social or political frustrations. They are the persons attracted by excitement, thrill and risk taking, who despise socially accepted norms.

- They are both **punishable by law**. Their illegal activities often involve the abuse of the latest technological developments and entail novel high-tech forms of criminal activity.
- Another common characteristic is a **detailed planning and preparation** of their illegal activities. Both criminal groups display a respect of strict discipline, which includes rigorous rules of behavior and an internal system of punishment for any form of disobedience.
- Organized crime and terrorism are also characterized by **secrecy and confidentiality** of their activities, use of violence for the purpose of accomplishing certain goals or interests and intimidating the surroundings.

Both are characterized with significant similarities, which are one of the main factors that contribute to their being regarded as mutually interchangeable and intertwined. Thus, the criminal activities committed by certain terrorist organizations are financed by organized crime, whereas some criminal organizations, having acquired financial power, exhibit political ambitions which they endeavor to realize with the help of terrorism.

5. Differences between organized Crime and Terrorism

- Criminology traditionally defines that the basic difference between organized crime and terrorism lies in **different motives** of perpetrators. Terrorists are supposed to act out of idealistic goals aimed at reforming social reality, immaterial of a particular terrorist organization's vision of that reform and transformation. On the other hand, members of organized crime are believed to act with the aim of gaining personal criminal profit.
- Terrorist acts are aimed at accomplishing particular political goals with the help of forbidden and socially unacceptable means. On the other hand, the goals of organized crime are predominantly economical, devoid of any political dimension, aimed at gaining and enlarging their own profit. Their goal is the ultimate economic power followed by the legalization of the acquired profit.
- These two entities differ regarding the "**visibility**" of their activities. Organized crime groups do not reveal their goals publicly, never show their political aspirations openly and aspire to keep their activities fairly "invisible". Terrorists, on the other hand, not only declare their goals openly but they do that in order to gain support from particular target groups of people so that their determination in accomplishing their goal becomes clear to everyone.
- Terrorist organizations claim **responsibility** for terrorist attacks, whereas members of the organized crime groups never assume any responsibility for their criminal acts.
- Although it is frequently said that terrorism and organized crime have the same enemy: the state, their **relationship towards the state** is another distinctive feature. While terrorism is characterized by a constant confrontation with the existing establishment and an attempt to change the government, organized crime is known for its infiltration, bribery of state officials and a selective antagonism towards certain levels of government.

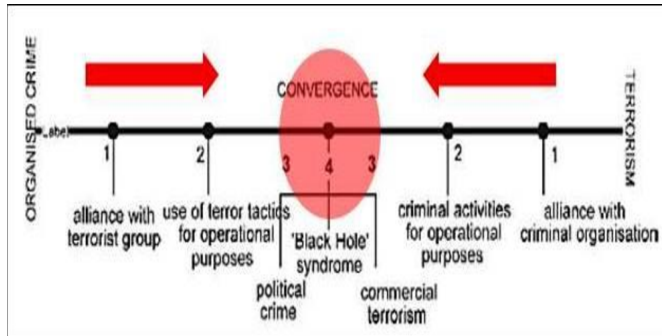
6. Linkages of Organized Crime with Terrorism

The importance of examining the connection between these two phenomena coincides with the importance of the fight against terrorism and organized crime. Adequate anti-terrorist and anti-criminal policy at the national and international level largely depends on understanding each problem separately as well as on understanding their versatile correlations. Despite the obvious organizational and operational characteristics common to both actors, who thereby acquire similar methods as well, they have divergent ultimate goals.

The connection between the two may exist as an association, union, cooperation, symbiosis, convergence and metamorphosis. One of the most obvious aspects of their inter-relatedness is the functional one, which implies putting organized crime in service of terrorism by engaging in

6.1. Financing Terrorism

- The global war on terrorism constricted the flow of financial support to terror groups and, in order to circumvent international measures, transnational terrorist organizations moved deeper into the sphere of organized crime.
- Many organized crimes have refused to cooperate with terrorist groups because of their long-term and stable financial strategies. The only possible way for this situation to change is for these "traditional" groups to be threatened by government authorities to the extent that they are forced to cooperate with terrorist groups, for their own survival.
- However, the recently formed criminal groups that do not have the stability in terms of cash flow see cooperating with terrorist groups as a way of achieving high profits.
- The link between terrorism and organized crime is thoroughly analyzed and monitored by the UN Office on Drugs and Crime (UNODC), which has pointed out that the profit from criminal activity is increasingly used to finance terrorist acts, and that the arms trade and money laundering, as forms of organized crime, have become an integral part of terrorism.
- Some of the commonly used examples would be the financing of the Taliban through opium production in Afghanistan and trafficking in cocaine, kidnapping and extortion to finance activities of the Revolutionary Armed Forces of Colombia (FARC).



Due to the development of technology, communications transport and finance, networks of terrorists and organized criminal groups operating at the international level can now connect with each other more easily. By joining resources and expertise, they significantly increase their capacity to inflict harm. The process of globalization, which proved to be a double-edged sword, contributes to this situation. Open borders, the single market, as well as the ease of travel and communication are, to a large extent, being used by terrorist organizations and organized criminal groups.

6.2. Narco-Terrorism

- According to the US Drug Enforcement Administration (DEA), narco-terrorism is "a subset of terrorism," where groups or individuals participate directly or indirectly in the cultivation, manufacture, transportation or distribution of controlled substances and the money derived from these activities".
- The very concept is of a dual nature, depending on whether the emphasis is put on drug trafficking or on terrorism. However, it might be argued that the difference in emphasis matters little since the concept of narco-terrorism can be seen as a mid-way convergence of two phenomena: drug trafficking and terrorism, with organizations doing a bit of both.

6.3. Financing terrorism through money laundering

- Financing terrorism through money laundering is a very complex process involving various relations that are aimed at attempting or a successful ensuring or collecting funds or property, with the intention of using it, in whole or in part, for carrying out a terrorist act.
- Apart from the banking systems, financial supporters of terrorist activities use various forms of transfer of assets, such as: physical transfer of cash across the state border, alternative systems of transport, humanitarian and non-profit organizations that serve as fronts for money laundering and financing terrorism, etc.

- The most significant consequences of money laundering and terrorist financing are: undermining stability and transparency of the financial system of the state, economic instability, reducing the number of investments, undermining the reputation of the state and endangering national security.

6.4. Human Trafficking and Terrorism

- The link between terrorism and drug trafficking has been the matter of analysis for a long time, but only recent activities by ISIS and Boko Haram have drawn the attention of the international community to human trafficking.
- Currently, human trafficking is not only a method of collecting revenue for terrorist organizations but also a way to achieve other objectives, such as: increase of manpower, sexual abuse, intimidation/harassment, etc.
- Human trafficking is also used to form military units that serve terrorist organizations. According to the UN reports, in the last decade, there has been an increase in the number of recruited child soldiers and girls who were subsequently sexually exploited and/or used as logistic support or informants.
- Just as weapons and narcotics, women and children are sold as commodities on the black market. Human trafficking has developed into a complex industry that annually makes a profit which can be measured in billions of dollars. The proceeds from this lucrative industry are used for financing the operations of terrorist organizations and organized crime groups.

6.5. Intellectual Property Crime and Terrorism

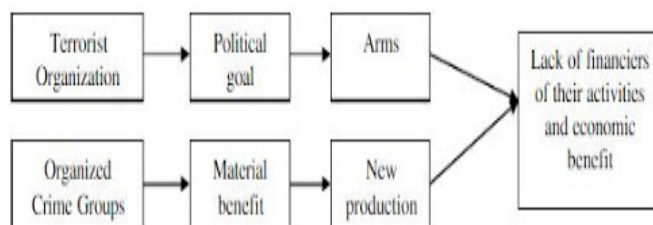
- Intellectual Property Crime (IPC) includes the manufacturing, transporting, storage and sale of counterfeit or pirated goods where the consent of the rights holder has not been obtained. It usually takes the form of trademark, patent, trade dress or copyright infringement, although these are not mutually exclusive.
- The illicit market in counterfeit and pirated goods has expanded rapidly in recent decades and some scholars consider it to constitute the largest black-market economy, surpassing the global narcotics trade. Several terrorist organizations have been identified as participating in the illicit trade of cigarettes.
- In 2016, terrorist organizations in North Africa were allegedly responsible for a contraband tobacco trade valued at \$1 billion (Institute for Economics and Peace, 2016). The smuggling of both cigarettes and counterfeit products is also reported as a significant source of funding for Al-Qaeda.

7. Linkages in the Indian Context

Crime and terrorism can potentially have a very close linkage. While there may or may not always be a linkage between the two, however, both international case studies and those in India do point towards it. If we look at some of the regions in the country affected by terrorism, this linkage becomes apparent.

7.1. North-East India

- In the Northeast, extortion is the fundamental basis for funding all forms of terrorism. In addition to this, kidnapping has been used extensively for spreading terror and raising funds. Human trafficking, drug trafficking and gun running are some of the other criminal activities that have been common in these areas.
- Government officials in conflict zones are either threatened or bribed to award contracts



Terrorist Organizations and Organized Crime Groups Activities

to individuals patronised by the militant groups.

- Contracts apart, essential commodities like rice and fuel reach the militant groups directly which are then sold to the public at much higher prices. This phenomenon is a clear example of the linkage between organized crime and terrorism in India.

7.2. Jammu and Kashmir

- Unlike in the North-East, reliance on funds from extortion and kidnapping is minimal.
- However, external funds compensate for the inadequate internal resource mobilisation. Cross-border mobilisation of funds from Pakistan and Gulf countries to select organisations and individuals in Kashmir finally reach the militants. Money Laundering and Hawala transactions play a critical role in the transfer of these funds.
- In J&K, counterfeit currency has been a major source of funding terrorism. Terrorists are the main couriers of Indian counterfeit currency in Kashmir, which then spreads to the rest of India.

7.3. Maoist affected regions

- In the Maoist terror movements, extortion is yet again a common phenomenon. They have also indulged in robberies of banks to fund their movement. There have also been reports of cuts being enforced on drug yielding crops in the region.

The Indian Mujahideen has also resorted to crime to raise funds. This includes robberies, kidnappings, etc. There are also a number of insurgent groups which over a period of time have morphed into crime syndicates. What began as an ideological movement is now merely a means of generating profit. This is especially the case with insurgent groups in Northeast India.

8. Steps taken to tackle organized crime

8.1. Indian Initiatives

- **Anti-Trafficking Nodal Cell** has been set up by MHA to act as a focal point for communicating various decisions and follow up on action taken by the state governments to combat human trafficking.
- The Ministry of Women and Child Development funds NGO-run shelter and rehabilitation services for women and children through the **Ujjawala** program, specifically for female sex trafficking victims, and the **Swadhar** program for women in difficult circumstances.
- The government has also signed agreements with Bangladesh, Nepal, and Bahrain etc. to curb trafficking.
- **Drug trafficking**
 - **Statutory Measures:** India has enacted Narcotics Drugs and Psychotropic Substances Act, 1985 (NDPS Act) and Prevention of Illicit Trafficking of Narcotics Drug and Psychotropic Substances Act, 1988 through which the country is addressing various aspects of drug problem
 - **International Conventions:** India is signatory to all three UN Conventions namely, the

Problems in Control Efforts against organized Crimes

1. **Inadequate legal structure** to deal with organized crimes as it targets individuals and not the criminal groups and enterprises.
2. **Difficulties in obtaining proof:** As the groups are structured in a hierarchical manner, the higher echelons of leadership are insulated from law enforcement.
3. **Slow pace of trials and low conviction rates** turns the citizens apathetic and non-cooperative in the control efforts.
4. **Lack of resources and training:** State governments have seen a deterioration in their fiscal health and hinders their ability to substantially fund and train the police force.
5. **Criminal, Political and bureaucratic nexus:** The various crime syndicate/mafia organisations have developed significant muscle and money power and established linkages with Governmental functionaries, political leaders and others to be able to operate with impunity.

Single Convention on Narcotics Drugs, 1962, the 1971 UN Convention on Psychotropic Substances and the 1988 UN Convention against Illicit Trafficking of Narcotics Drugs, Psychotropic Substances and has also supported the global efforts led by UN office on drug and crime (UNODC) to curb perpetrating drug menace

- The government introduced **“The Trafficking of Persons (Prevention, Protection and Rehabilitation) Bill, 2018”** in Lok Sabha with the following features:
 - Establishment of investigation and rehabilitation authorities at the district, state and national level. Anti-Trafficking Units will be established to rescue victims and investigate cases of trafficking.
 - Rehabilitation Committees will provide care and rehabilitation to the rescued victims.
 - Protection and rehabilitation: The Bill requires the central or state government to set up Protection Homes, to provide shelter, food, counseling, and medical services to victims.
 - Set up anti-trafficking committees at the district, state and national levels to ensure the rehabilitation of victims.
 - Special Courts: The Bill provides for setting up designated courts in each district, which will seek to complete trial of trafficking cases within a year.
- While India does not have a national law on organized crime, the introduction of Maharashtra Control of organized Crime Act (MCOCA), 1999 has helped both Maharashtra and Delhi police quell the activities of notorious gangsters and crime syndicates.

8.2. Global Initiatives

- **The United Nations Convention against Transnational Organized Crime**
 - Adopted by General Assembly resolution 55/25, it is the main international instrument in the fight against transnational organized crime.
 - The Convention represents a major step forward in the fight against transnational organized crime and signifies the recognition by Member States of the seriousness of the problems posed by it, as well as the need to foster and enhance close international cooperation in order to tackle those problems.
 - States that ratify this instrument commit themselves to taking a series of measures against transnational organized crime, including the creation of domestic criminal offences (participation in an organized criminal group, money laundering, corruption and obstruction of justice); the adoption of new and sweeping frameworks for extradition, mutual legal assistance and law enforcement cooperation; and the promotion of training and technical assistance for building or upgrading the necessary capacity of national authorities.
 - The Convention is further supplemented by **three Protocols**, which target specific areas and manifestations of organized crime:
 - a) The Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children;
 - b) The Protocol against the Smuggling of Migrants by Land, Sea and Air; and
 - c) The Protocol against the Illicit Manufacturing of and Trafficking in Firearms, their Parts and Components and Ammunition.
 - Countries must become parties to the Convention itself before they can become parties to any of the Protocols.

9. What more needs to be done?

The globalization of the economy has created favorable conditions for terrorist organizations and criminal groups to coordinate their activities cooperate and share their resources, whereas the national and international legislation have unfortunately failed to keep pace with the evolving development of organized crime and terrorism.

The following steps can be taken to regulate the existing and emerging threats:

- Need to improve coordination and set up specialised units to deal with organized crime.
 - Setting up of a **National Level body** to collect, collate, analyse, document and act as central exchange of information relating to international gangs operating in India, the Indian gangs operating abroad and the major gangs operating in the States.
 - Setting Up of organized Crime Wings in City Police Organisations.
 - Setting Up organized Crime Cells at the District Level for investigation of important organized crime cases, collection of intelligence against the criminal gangs and proper documentation about their activities.
- Enhanced international cooperation against organized crime and terrorism.
 - Speedy extradition can be a very effective method of bringing the fugitive criminals and terrorists to justice.
 - Need to make agreements on Mutual Legal Assistance with countries for effective investigation and prosecution of transnational crimes and terrorist activities.
 - Strengthening the role of Interpol in breaking the link between the organized crime and terrorism.
 - States party to the organized Crime Convention should ensure its effective implementation by establishing criminal offences of participating in organized crime in their respective countries.
- Public awareness
 - The surest means of curbing organized crime is to involve people in its prevention and investigation and to build up public opinion against it through the print and electronic media, workshops, seminars, and by socially boycotting organized crime figures.
- Capacity building
 - Developing good military and intelligence expertise to neutralise terrorist groups.
 - Developing arrangements with states to disrupt terrorist support networks and assist states by sharing intelligence and exchanging personnel to fight transnational terrorist networks.
- Effective implementation of the stringent laws like MCOCA, Gangster Act, etc. to deal with organized crime.
- The most effective way to combat these phenomena is mutual cooperation, which must include data exchange, a common/unified approach to "tear" the links between terrorism and crime, and joint action of relevant national and international institutions.

(Note: The measures to tackle terrorism have been mention in detail in the document on "The role of external state and non-state actors in internal security challenges")

In addressing the Security Council, UN Secretary General at the time, Ban Ki Moon, stressed that the international community's response to this problem must be coordinated and global, such as the one taken so far to combat trafficking in human beings and drugs, or in the so called "**Kimberley Process**", in order to prevent smuggling of natural resources to finance armed conflicts.

Despite the views about the absence of any clear link between organized criminal groups and terrorist organizations, and claims that their relationship is considerably less frequent than the one between criminals and politicians, there is no doubt that organized crime and terrorism, their versatile connections and hybrid entities that are constantly evolving and adapting to new circumstances, require full attention of the entire international community.

10. UPSC Mains Previous Years Questions

1. India's proximity to two of the world's biggest illicit opium-growing states has enhanced her internal security concerns. Explain the linkages between drug trafficking and other illicit activities such as gunrunning, money laundering and human trafficking. What counter-measures should be taken to prevent the same? (2018)

11. Vision IAS Mains Previous Years Questions

Student Notes:

1. *The Corruption, Black Money and Organized Crime triad enlarges the threat to security. Analyze this nexus vis a vis security issues.*

Approach:

Explain the three terms, viz. corruption, black money and organized crime mentioned in the question. Then move on to explain how the three of these enhance the threat to security (which can be taken here to imply national security.) You can also discuss security in terms of internal and external dimensions and discuss how each of these is affected by the aforementioned problems.

Answer:

Corruption is the lack of integrity and honesty (especially susceptibility to bribery); use of a position of trust for dishonest gain. Transparency International defines corruption as "the abuse/misuse of public office for private gain."

On the other hand, black money usually refers to any income on which the taxes imposed by government or public authorities have not been paid. Such wealth may consist of income generated from legitimate activities or activities which are illegitimate per se, like smuggling, illicit trade in banned substances, counterfeit currency, arms trafficking, terrorism, and corruption. Thus it includes assets or resources that have neither been reported to public authorities at the time of their generation nor disclosed at any point of time during their possession.

Organized crime refers to any group having some manner of a formalized structure and whose primary objective is to obtain money through illegal activities. Such groups maintain their position through the use of actual or threatened violence, corrupt public officials, graft, or extortion, and generally have a significant impact on the people in their region, or the country as a whole. Organized Crime in India may be associated with criminal organizations categorized as being part of the Indian Mafia. The term 'Indian Mafia' can be utilized as a designation for any mafia 'syndicate' dedicated to sophisticated criminal activities based in India.

This triad of corruption, black money and organized crime is not only inter-linked but affects the security of the country as well. Consider the following points in support of this argument:

- Corruption is not only a significant reason behind state weakness but has affected the defence sector of the country as well. This has made the security architecture of the country fragile; and prone to the malfunction.
- If the legislators or the political executive of the country are deemed to be corrupt, it may breed protests, rebellions and conflict in the country, as has been witnessed for quite some time in India now.
- The state may become incapable of providing essential services like health care, education, employment etc. efficiently if it is marred by corrupt practices. This often leads to governance failure, which is a precursor to a weak state and consequently a threat to security of the country.
- The security agencies have the primary responsibility of maintaining law and order and ensuring security of the citizens. The acts of omission or commission of the personnel of these agencies due to corruption has a huge impact on the national security architecture and creates serious gaps in the security apparatus.
- Black money poses a threat to security because it is most widely circulated in anti-national activities both at internal and external level. For instance, many terrorist

outfits set up business enterprises, like restaurants, real estate, shipping etc. and utilize part of the proceeds to siphon off funds for terrorist activities.

- Hawala has, on multiple occasions, been used to finance terrorist activities. Interpol has on many occasions reported verifiable accounts of terrorist funds passing through hawala channels in India and elsewhere
- Many terrorist outfits today imitate criminal enterprises. Intimidation of small businesses, individuals and even some State enterprises to extort funds has become common.
- Terrorist organizations have come to be associated with organized crime syndicates. Jehadi and non-jehadi terrorist outfits seek, and enter into, partnerships with Organized Criminal Syndicates, and outsource fund-raising to the latter. This is largely true of metropolitan cities. It takes many forms, but mainly bank robberies and kidnapping for ransom.
- Funds from drug cultivation and trafficking in narcotics are extensively used to fund terrorist outfits. The sharp rise in opium cultivation in Afghanistan - which has more than doubled during the past few years - raises concerns of more funds becoming available to terrorists. According to Indian Agencies at least 1/8th of their major interdictions reveal a drugs- terrorist nexus.

2. What are the linkages between terrorism and organized crime? Explain their relevance and effect in the context of India.

Approach:

The question demands one to establish how terrorism is linked to organized crime and the how one feeds on another. It is also required to answer the relevance as well the negative effects it has specifically in the case of India.

Answer:

Organized crime and terrorism result from ineffective governance and have developed a symbiotic relationship. While organized crime involves many activities, its linkages with terrorism stem from illegal trafficking of drugs, arms and human beings and money laundering. Terrorist groups, whether indigenous or sponsored by outside states, need arms and money for their fight against the security forces. Organized crime conglomerates need a clientele and couriers who can smuggle drugs, arms and human beings across the countries and regions.

Thus following linkages can be established between the two-

1. Terrorists engage in organized crime activity to support themselves financially.
2. Organized crime groups and terrorists often operate on network structures and these structures sometimes intersect, terrorists can hide themselves among transnational criminal organizations.
3. Both organized crime group and terrorists operate in areas with little governmental controls, weak enforcement of laws and open borders.
4. Both organized criminals and terrorists corrupt local officials to achieve their objectives.
5. Organized crime groups and terrorists often use similar means to communicate-exploiting modern technology.
6. Organized crime and terrorists launder their money, often using the same methods and often the same operators to move their funds.

In India, the linkages between the two exist at national and transnational levels. At the national level, both terrorists and those involved in organized crime are within

India. At the international level, collaboration exists between transnational syndicates and terrorists from inside and outside India.

In India's **northeast**, almost all the militant groups run a parallel government or have their areas of influence and are involved in collecting money directly from the people. Much of the government funds reach the militants indirectly due to mis-governance. Government officials in conflict zones are either threatened or bribed to award contracts to individuals patronized by the militant groups. Contracts apart, essential commodities like rice and kerosene reach the militant groups directly which are then sold to the public at much higher prices. This cycle is a clear example of the linkage between organized crime and terrorism inside India.

Extortion, kidnap, contracts, and black marketing still fall short of financing the nefarious activities of the militants. This is where transnational drugs and arms syndicates come into play. Terrorist organizations in India, especially in the northeast, mobilize funds by becoming couriers of illegal drugs and arms and at times even human beings from one point to another within the country. Some of the infamous entry points from Southeast Asia include Moreh and the entire Chittagong Hill tracts, especially Cox's Bazaar.

In **Kashmir**, the linkages between terrorists and organized crime exist at a different level. External funds reach the militant organizations fighting in Kashmir through various means. For instance, enormous funds that are mobilized in Pakistan and other countries, especially in the Gulf, are channeled through various organizations in Pakistan to Kashmir. Money laundering plays a significant role. Hawala (money laundering) transactions take place swiftly and effectively in Kashmir. Besides, it is also believed that the ISI uses drug money to fund militant activities in Kashmir.

Another significant relationship between organized crime and terrorism, especially in Kashmir, is through the spread of counterfeit currency. Terrorists are the main couriers of Indian counterfeit currency inside Kashmir, which then spreads all over India. Even guides for the militants from across the border are paid with counterfeit money. In fact, when some of the 'indigenous' militants were also paid with counterfeits, it resulted in squabble between them and the so-called guest militants.

Besides Kashmir and the northeast, sporadic incidents in other parts of India like the Bombay blasts, for instance, have exposed the connection between terrorism and organized crime. This is distinct from the traditional linkages flourishing between organized crime syndicates and local criminals.

3. ***Today's terrorist organisations succeed on the basis of a sound underlying business model of organized crimes. Why do terrorist organisations find it beneficial to enter into organized crimes or partner with organized criminals? Illustrate.***

Approach:

The linkage should be clearly identified and supplemented with suitable examples. The coverage of the reasons responsible for coverage should be comprehensive and not restricted to only financial aspects.

Answer:

A decade ago, motivations for terrorism and organized crime were different. The main objective of terrorism was to pursue power; acquisition of power and to use power through political, ideological, religious or ethnic means but of organized crime was money and power through criminal activity.

Student Notes:

Today, most terrorists are engaged in some form of organized crime and a growing number of organized crime cartels are engaging in political violence. While some terrorist organizations may only profit briefly or indirectly from organized crime, others converge and become a hybrid organization displaying both characteristics.

There exist multiple linkages between terrorist organizations and organized crime some of which are:

1. They share tactics and methods like Internet and cyberspace for recruitment, propaganda, planning, logistics, fund raising, money laundering.
2. Terrorist organization may indulge in organized crimes to support themselves financially.
3. All militant groups run a parallel government or have their areas of influence in which they are involved in collecting money directly from people, and from government funds due to misgovernance. The government officials are threatened or bribed to award contracts and essential commodities like rice and kerosene are sold to public at much higher rate. Eg. Insurgent groups in North east.
4. Another relationship is through the spread of counterfeit currency. Terrorists are the main courier of this currency. Eg. Terrorist organizations active in Kashmir
5. They may need each other for logistics support, carrying arms and ammunition for each other, acting as a courier etc.
6. They get access to human resource of each other's organization.
7. They may provide each other access to their network of supporter, sympathisers and even corrupt government officials.

Convergence of organized crime and terrorism has become an important threat for international peace and security. Its widening base at grassroots level was the cause of many failed states like Afghanistan, Kosovo etc. and is weakening many other states like Pakistan, North Korea etc. Its eradication is possible only through cooperation at international level.

4. ***The root cause of drug proliferation in the society lies in the inability to curb their cross border movement. Enumerate the challenges involved in curbing their movement and give possible solutions.***

Approach:

Direct question. Students should focus on how cross border movements proliferate the use of drugs in the society, references should be made to geo-strategic location of India to add depth to the answer. Thereafter, enumerate the challenges faced by the Border Management in controlling drug menace. Suggest methods to curb the same.

Answer:

For the last three decades, India, located between two of the world's largest illicit drug producing regions, has been a transit country making it highly vulnerable to the problem of smuggling of drugs into and out of the country and drug abuse.

India is located close to the major poppy-growing centres of the world the "**Golden Crescent**" on the North-West and the "**Golden Triangle**" on the North-East. Proximity to Afghanistan and Pakistan makes smuggling rampant across Punjab border as the electric fencing is switched on intermittently.

The nexus between drug traffickers, organised criminal networks and terrorists have created a powerful force to cause instability in the country. It is estimated that money generated by illegal sale of narcotics accounts for 15% of finances of militant groups in J&K and also insurgents in the North East.

Challenges differ at different borders. These are:

Indo-Pak

1. Porous borders
2. Disturbance in the area (Sikh militancy in 80s and Kashmir militancy in 90s)
3. Proximity to traditional routes
4. Closing of traditional Balkan route during Iran-Iraq war
5. Support from Pakistan
6. Local demand

Indo-Nepal and Indo-Bhutan

1. Open and poorly guarded borders
2. Relaxed visa restrictions

Indo-Myanmar

1. Proximity to Golden triangle
2. Demand from locals
3. Insurgency problem, criminal networks
4. Existence of strong trans border ethnic linkages

Indo-Bangladesh

1. Porous borders and strong ethnic linkages
2. Dense settlements
3. Well developed rail road and river network
4. Large volume of formal and informal trade
5. Existence of criminal networks

Some possible solutions to curb the supply of drugs at borders are:

- a) Increased vigil by border patrolling forces
- b) Training and sensitisation of local police
- c) Judicial and other monitoring over local constabulary
- d) Use of novel technology to monitor the borders constantly. Example use of cameras on UAVs in different to reach areas
- e) Village volunteer forces to be strengthened for improving local intelligence
- f) Setting up of more Check posts in border areas

5. ***With the Golden Crescent and the Golden Triangle in India's neighbourhood, drug trafficking poses a great threat to India's security. Analyse. Examine the role of non-state actors in drug trafficking in India.***

Approach:

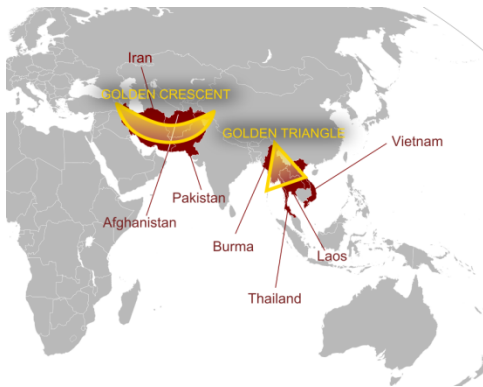
- Briefly write about the Golden crescent and Golden Triangle in India's neighbourhood.
- Write about the effects on India and the factors responsible.
- Briefly explain what are non-state actors and then write about the role of various non-state actors in drug trafficking in India.

Answer:

Golden crescent refers to the mountainous area of Iran, Afghanistan and Pakistan. Golden triangle is the region of Myanmar, Laos, Vietnam and Thailand, south of the Chinese border. Opium has been grown for hundreds of years in these two regions and

they are the two major sources of narcotic drugs in the world.

With the 'Golden Crescent', and the 'Golden Triangle' in India's neighbourhood, drug trafficking poses a serious threat to our security.



- The proximity of the India-Pakistan border to the 'Golden Crescent', has made it vulnerable to the trafficking of heroin and hashish.
- Porous borders, disturbance in the areas, closing traditional Balkan route via Iran during the Iran-Iraq war (1980-1988), outbreak of the Sikh militancy in the mid-1980s and the Kashmir-militancy in the late 1980s, support from Pakistan etc. are the major reasons behind drug trafficking across India-Pakistan border.
- A growing demand for Nepalese and Bhutanese cannabis in India and a corresponding demand for codeine based pharmaceutical preparations as well as low-grade heroin in Nepal and Bhutan have resulted in two way smuggling of narcotics and drugs through the India-Nepal and India-Bhutan borders.
- Growing demand for drugs among the locals in the North east, political instability and insecurity brought about by numerous insurgencies, a porous and poorly guarded border provide a proliferating environment for smuggling heroin and psychotropic substances into the country through the India-Myanmar border.
- High demand for codeine based cough syrups in Bangladesh, a highly porous border, dense settlement along the border, and strong trans-border ethnic ties contribute towards drug trafficking along the India-Bangladesh border.

Non-State Actors (NSA) are any organized group with a basic structure of command operating outside state control that uses force to achieve its political or allegedly political objectives. They include 'rebel groups' and governments of entities, which are not (or not widely) recognized as states.

The role of Non-State Actors in illicit drug trafficking in India:

- Involvement of Non-State actors in drug trafficking in India provides for multiple benefits for them. It is a good financial resource to support their cause; and drug trafficking disturbs the internal security of the nation and weakens the state.
- Further, drug trafficking facilitates other activities of Non-State actors such as arms trafficking and human trafficking since they use the same networks and routes to smuggle people, arms and contraband.
- Various insurgent groups in North East exploit the situations of political disturbance to support drug trafficking along the border as various routes across the border are controlled by the insurgents.
- It has been estimated that money generated from the illegal sale of narcotics accounted for 15 per cent of the finances of militant groups in Jammu and Kashmir.
- Similarly, militant groups in Punjab used drug trafficking across India-Pakistan border to fund their activities.

Student Notes:

6. What are the major issues in controlling organized crime in India? Discuss how tackling organized crime is an important step in India's fight against terrorism.

Student Notes:

Approach:

- In the introduction briefly explain organized crime.
- Identify and enumerate the challenges in controlling organized crime in India.
- Bring out the relation between organized crime and terrorism and discuss how eliminating the former is important to eliminate the latter.

Answer:

Organized crime operations range from illegal protection economies and extortion rackets to cybercrime, oil theft, money laundering, counterfeiting, maritime piracy and trafficking of illicit drugs, humans, firearms and wild-life.

These activities weaken stability of politico-economic system, harm investors, hamper free competition, burden interstate and foreign commerce, threaten domestic security and undermine general welfare of people.

Major issues in controlling organized crime in India

- Absence of a national level coordination agency for organized crimes which may collect intelligence related to organized crimes, train law enforcement officers and coordinate in rescue and rehabilitation of victims.
- Weak Criminal justice system: states are not in position to spare adequate resources for criminal justice system agencies. Number of police personnel is inadequate. There is a lack of training facilities for investigation. Protection of witness and huge pendency of cases are further dampeners. Lack of Participation by Public: Public is unwilling to help police due to the fear of police harassment or threat from criminals.
- Globalization – Has led to spanning of organized crime across borders making it much more difficult to track and address.
- Technological sophistication of organized crimes: New technologies open up many possibilities for criminals to carry out traditional financial crimes in new ways.
- Criminal, Political & Bureaucratic Nexus: States affected by corruption become targets for drug traffickers, money launderers etc. that encourage lawlessness. In the process, rule of law and democratic process are undermined.
- Porous borders- drug and human trafficking-India's strategic location, between Southeast and Southwest Asia, the two main sources of illicit opium, make it a drug transshipment area.
- Weakness of financial system- prevalence of cash economy, parallel transactions through hawala, money laundering etc.

Tackling Organized crime to control Terrorism

There is a close symbiotic relationship between organized crime and terrorism. Terrorist groups, whether indigenous or sponsored by outside states, need arms and money for their fight against security forces. While, organized crime conglomerates need a clientele and courier who can pay them, smuggle drugs, arms and human beings across countries and regions. In India, linkages between the two exist at national and transnational levels. For example:

- In North-East, Terrorist organizations mobilize funds through illegal drugs, arms and human trafficking,
- Terrorists are main couriers of counterfeit currency inside Kashmir, which then spreads all over India. Incidents like 1993 Bombay blasts, 26/11 Mumbai attacks have exposed connection between terrorism and organized crime.

Hence, it is imperative that organized crime is also controlled to curb terrorism. Though organized crime has declined from the levels of 1990s but still crime syndicates are operative in different parts of country. Government initiatives like curbing black money, benami properties, money laundering, UAPA, special courts etc. have curbed organized crime. However, a lot more can be done:

- Implementing CCTNS for intelligence gathering and sharing between different agencies.
- National Counter Terrorism Centre (NCTC) as federal anti-terror agency.
- Strengthening capacity of police and investigation agencies.
- Effective implementation of POCA, Lokpal etc. to curb corruption to break criminal-politics-bureaucratic nexus.
- Witness protection and police sensitization towards them.
- Public participation while people becoming eyes and ears of agencies.

The Supreme Court has recently directed the Centre to set up Organized Crime Investigating Agency (OCIA). This can be a positive step in combating organized crime which in turn can be helpful in tackling terrorism.

7. *Why is India deemed as a source, destination and transit for human trafficking? Critically assess the steps taken by the Indian government to combat the menace of human trafficking.*

Approach:

- Give an overview of human trafficking in India.
- State reasons for increase in human trafficking cases in India and explain why India has emerged as the source, destination and transit for human trafficking.
- Assess the steps taken by the government to combat the menace and suggest way forward.

Answer:

As per National Crime Records Bureau data (NCRB) 2015, human trafficking has emerged as the fastest rising crime in India, with an increase of over 25 per cent compared to previous year with more than 40 percent of cases involving children being bought, sold and exploited as modern day slaves. Assam, West Bengal, Tamil Nadu and Telangana reported the highest number of such cases.

Reasons

- Economic deprivation. Members of lowest caste groups, tribal communities, religious minorities etc. are lured in the guise of employment, sham marriages etc. Women are then sold within the country or are sent abroad.
- Porous borders with the neighbouring nations, like Nepal and Bangladesh. Moreover, policemen and security officers in the Border States are not adequately trained and equipped to combat instances of trafficking.
- Forced labour also constitutes one of the largest trafficking problems; men, women, and children in debt bondage—sometimes inherited from previous generations—are forced to work in brick kilns, rice mills, agriculture etc.
- Devadasi tradition is still prevalent in some states wherein daughters are dedicated to Lord Shiva when they are very young for temple service. However, there are reports of girls being sexually abused and being sold to brothels.

Assessment of measures taken by the government to address the issue

Student Notes:

- The government has passed several legislations to combat the issue such as The Immoral Traffic Prevention Act, 1956, Protection of Children from Sexual Offences Act, 2012, Bonded Labour System (Abolition) Act, 1976, among others. However, conviction rate of offenders under these legislations remain low.
- The government is in the process of drafting an anti trafficking bill to ensure stringent punishment to offenders and rehabilitation to victims. But, there has been backlash against the draft bill by NGOs and civil society groups due to many loopholes in the bill.
- Anti-Trafficking Nodal Cell has been set up by MHA to act as a focal point for communicating various decisions and follow up on action taken by the state governments to combat human trafficking. However, the police and security forces are not adequately trained to monitor and combat the issue.
- The Ministry of Women and Child Development funds NGO-run shelter and rehabilitation services for women and children through the *Ujjawala* program, specifically for female sex trafficking victims, and the *Swadhar* program for women in difficult circumstances.
- The government has also signed agreements with Bangladesh, Nepal, Bahrain etc. to curb trafficking. However, cross border trafficking still remains a vital threat. In fact the victims of trafficking in various cases are charged with the offence of illegally trespassing the border.

There is an increasing need to identify trafficking survivors as victims and not as defendants and there should be an increase in prosecutions and convictions for all forms of trafficking, including forced and bonded labour so that it acts as a deterrent for future offenders. Infrastructure both physical and human should be adequately strengthened to enable quick response, rescue and rehabilitation of the victims

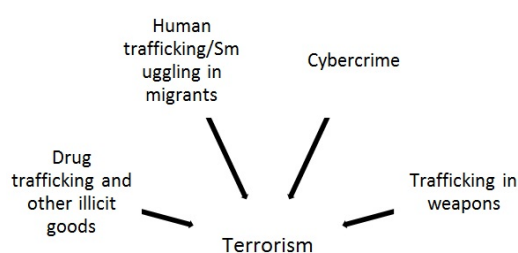
8. *The UNODC (United Nations Office on Drugs and Crime) has pitched for the need of an integrated approach in order to address the difficulties in preventing, detecting, investigating and prosecuting Transnational organized Crimes (TOC). Elaborating on these difficulties, discuss how an integrated approach can help in tackling TOCs.*

Approach:

- Briefly discuss about Transnational Organised Crimes (TOC) and its different forms of manifestation.
- Discuss the difficulties specific to preventing, detecting, investigating and prosecuting TOC.
- Outline an integrated approach so as to tackle TOC.

Answer:

Transnational organized crime (TOC) is organized crime coordinated across national borders, involving groups or networks of individuals working in more than one country to plan and execute illegal business ventures.



It is a serious cause of concern for both national and international security due to its close links with terrorism. Terrorist groups benefit from TOC by trafficking of arms, persons, drugs, illicit trade in natural resources, kidnapping for ransom, and bank robbery. Its spread beyond national boundaries presents difficulties in prevention, detection, investigation and prosecution in TOC, which can be understood from the following:

Prevention

- Weak preventive, regulatory and security measures in place to control illegal trade in weapons.
- Due to state sponsored terrorism prevention becomes difficult in regions with porous borders.
- Rising of unlicensed manufacturing of weapons.

Detection

- Complex and dynamic hidden activity and no regular flows, weak intelligence network.
- Porosity of borders and weak border control capacity.
- Use of modern technology and new trends and modalities of trafficking For example, 3D guns; trafficking in parts etc.

Investigation

- Lack of specialized skills to investigate complex cases of firearms trafficking and its links to terrorism.
- Insufficient information exchange and coordination among law enforcement agencies and prosecutors.
- Lack of proactive investigative approaches.

Prosecution

- Weak and outdated legislative and institutional frameworks
- Insufficient judicial cooperation and bilateral agreements for prosecution and extradition

To counter organized crime there is a need to foster effective international cooperation and information exchange. For this an integrated approach is required with focus on the following:

Legislative and policy development

- Support ratification and implementation of UNTOC and Protocol with comprehensive assessment of legislative regime & gap analysis.
- Promotion of synergies between international and regional instruments
- Development of legal tools

Implementation of Preventive and Security Measures

- Support for marking of firearms and effective record keeping
- Security and safety of firearms and ammunition stocks
- Cryptocurrency investigation training for detecting suspicious transaction.

Strengthening Criminal Justice Response

- Strengthen national capacity to detect, investigate and prosecute trafficking of various forms and its links to terrorism and organized crime

- Need to promote more proactive investigative approaches, greater use of special investigative techniques, more operational cooperation and inter-disciplinary actions at law enforcement and judicial level
- Comprehensive training curriculum

International cooperation and Information exchange

- Support cooperation through regional and cross regional meetings, along specific trafficking route
- Promote international cooperation in tracing and criminal investigations
- Collect and develop cases of good investigative / cooperation practices

Transnational organized crime is an ever-changing industry, adapting to markets and creating new forms of crime. In short, it is an illicit business that transcends cultural, social, linguistic and geographical boundaries and one that knows no borders or rules. Hence an integrated approach as advocated by UNODC is a necessary step in this regard.

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ROLE OF EXTERNAL STATE AND NON-STATE ACTORS IN CREATING CHALLENGES TO INTERNAL SECURITY

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1. Introduction

India's internal security problems are a manifestation of **internal weaknesses and external attempts** at waging a proxy war. Inadequate socio-economic development, apathy towards the genuine grievances of the people, political brinkmanship amongst other reasons, has created internal contradictions, which have led to decades of internal strife. Similarly, a number of internal security challenges faced today are fueled and controlled from Pakistan. The presence of hostile neighbours allows the internal conflicts to get external support, which includes money, arms and sanctuaries. The vested interests exploit these conditions to pursue their own schema.

Given the large population, diversity of groups and identities and shrinking share of resources, conflicts are bound to rise in the society. When the democratic institutions and the state structure fails to fully resolve these conflicts in a peaceful manner, violence erupts. The **hostile external forces**, taking advantage of this situation through subversive propaganda, further highlight these conflicts. They give **material and political support** to worsen this sense of grievance to such an extent that a small minority are willing to become tools in their hands to undermine the stability and security of the nation.

According to some experts, India does not face an external threat in the conventional sense, but **only internal security threats from external sources**. These external sources, consist of both state and non-state actors, combined with those anti-state forces within India, have made the situation more intricate. All over the world, few countries are placed in an unfavourable, troubled and uncertain security environment as India is. External sources of threats to India's internal security spring from almost all countries of its neighbourhood.

Overview of the challenges posed by external state and non-state actors in the internal security.

Challenges posed by External State Actors	Challenges posed by Non-state Actors
1. Threats posed by Pakistan 2. Threats posed by China and other neighbours	1. Terrorism 2. Insurgency/Ethnic Group Violence 3. Left Wing Extremism 4. Drug Cartels Human Trafficking 5. Issues posed by NGOs and civil society organisations 6. Transnational and Multinational Corporations

1.1. Challenges posed by External State Actors

• Pakistan

- The issues in Jammu and Kashmir and Terrorism in the hinterland are a direct manifestation of Pakistan's influence. It is part of Pakistan's state policy to bleed India through a thousand cuts, given its obvious disadvantages on the conventional war fighting front.
- The **use of non-state actors** is essentially the employment of a proxy element, which gives the state of Pakistan a **degree of deniability**.
- There is no doubt that none of the so called non-state actors like the **Lashkar-e-Taiba (LeT)** could have operated with impunity without the active funding, logistical and military support of Pakistan.
- The close linkages of the ISI and proxy groups are well documented as is their direct involvement in attacks like 26/11. These groups aim to not only create instability in states like J&K, they also have a larger aim of destabilising the country. This is done through sporadic terrorist strikes, which spreads terror and panic.
- The flooding of the country with counterfeits is also a way of weakening the economy. Therefore, the non-state actors operating from Pakistan are the proxies of the state, functioning under a clear charter of state policy.

- **China**
 - Historically, China has provided financial support, arms and sanctuaries to Naga, Mizo and Meitei extremists to fuel instability in India's internal security.
 - China has its interests in the North-East as well as Left- Wing extremism in India, and uses its as a leverage to brew internal security challenges in the India.
 - China has built a relationship of convenience and an alliance of opportunism between China and Indian militant groups. For example, the Maoist movement got its philosophical, moral, financial and intellectual support from China.
- **Bangladesh**
 - The issue of illegal migration has been the source of communal and ethnic tension in India, resulting in large scale demographic changes in the North-East region.
 - The trans-border relocation has been the cause of social and economic insecurity for the local communities, which has often erupted in communal violence.
 - While there is no evidence of direct state involvement in this case, it is its inactivity to resolve the issue that is concerning.

1.2. Challenges posed by Non-State actors

- **Drug Trafficking:** Proximity to the largest producers of heroin and hashish-the **Golden Triangle and Golden Crescent** (Afghanistan-Pakistan-Iran) - has made India's border vulnerable to drug trafficking. Trafficking of drugs takes place overwhelmingly through land borders followed by sea and air routes
- **Human Trafficking:** Human trafficking in India, although illegal under Indian law, remains a significant problem. People are frequently illegally trafficked through India for the purposes of commercial sexual exploitation and forced/bonded labour. Although no reliable study of forced and bonded labour has been completed, NGOs estimate this problem affects 20 to 65 million Indians.
- **Left-Wing Extremism:** It is one of the major security threats faced by the nation, which prevents developmental processes in the least developed regions of the country and misguide the people through its propaganda.
- **Insurgency in the Northeast:** Inter-tribal conflicts, unemployed youth, illegal migration from across the border has provided a breeding ground for non-state actors to run insurgency like an industry in the region.
- **Terrorism:** South Asia Terrorism Portal has listed 180 terrorist groups that have operated within India over the last 20 years, many of them co-listed as transnational terror networks operating in or from the neighboring South-Asian countries such as Bangladesh, Nepal and Pakistan.
- **Civil Society Organisations:** Serious charges of misuse and misappropriation of funds received as grants-in-aid from governments, foreign donors and their involvement in riling up discontentment in the local communities against developmental projects has raised questions on these organisations working as foreign policy tool of foreign governments

Note: The challenges associated with Insurgency in North-East and Jammu & Kashmir, Left Wing Extremism, drug and human trafficking have been discussed in detail in separate Security documents. This particular document delves into the details of Terrorism and the role played by State and Non-State actors in it.

2. Terrorism

Although there is no current agreement regarding a universal legal definition of the term, there has been some debate about the possible existence of an, at least partial, customary definition of terrorism. Along with terror and intimidation, there are many factors often considered crucial to delineating when actions taken by a group or an individual constitute terrorism or not. These **factors** include but are not limited to violence, harm, and threats; randomness or indiscriminate

violence; political motivation; the targeting of civilians, non-combatants and so-called innocents; and deliberate attempts to publicize the acts of terror.

The difficulty in defining “terrorism” is in agreeing on a basis for determining when the use of violence (directed at whom, by whom, for what ends) is legitimate; therefore, the modern definition of terrorism is inherently controversial. The use of violence for the achievement of political ends is common to state and non-state groups. The majority of definitions in use has been written by agencies directly associated with government, and is systematically biased to exclude governments from the definition.

Critics accuse the United States of terrorism for backing not only the Israeli occupation, but other repressive regimes willing to terrorize their own citizens to maintain power. Palestinian militants call Israel terrorist, Kurdish militants call Turkey terrorist and the nation-states call the militants who oppose their regimes “terrorists”. Like “beauty”, “terrorism” is in the eye of the beholder. One man’s freedom fighter is another man’s terrorist. Hence, the difficulty in defining Terrorism.

The **UN General Assembly Resolution 49/60** titled "**Measures to Eliminate International Terrorism**," contains a provision describing terrorism as: “Criminal acts intended or calculated to provoke a state of terror in the general public, a group of persons or particular persons for political purposes are in any circumstance unjustifiable, whatever the considerations of a political, philosophical, ideological, racial, ethnic, religious or any other nature that may be invoked to justify them.”

2.1. Framework for defining Terrorism

While the consensus on a universal definition of terrorism is difficult to bring about, there is an agreement on some of its features. Terrorism is a **violent** phenomenon:

- That develops incrementally deriving from **contextual factors**, i.e. exogenous and endogenous stimuli as well as reactions by the state and society. These stimuli and reactions by various sources produce contexts which provide the motivation and rational justification for its perpetuation.
- Which at its root is essentially a **reactive communicative act** that transitions into an offensive tactic when equipped with an evolved doctrine;
- Which is composed of **heterogeneous** set of expressions and behaviors: (i) emotional (anger, hatred, fear), (ii) cultural and moral (revenge, self-righteousness), (iii) instrumental politics (coercion, power projection, competition, exclusion of unfriendly section of the society and elites), (iv) religious (exclusiveness, exclusion through apostatization and othering), (v) ideological (revolutionary jihad, deviance, defiance), (vi) criminal (organized crime);
- Which by following a protean **targeting philosophy** entailing civilians, law enforcement personnel and combatants alike, that operationalizes in a performative manner through variable means or methods;
- Eventually seeks to acquire unchallenged **social control** and capture **political power** by imposing a discrete governance order.

Analytic variable	Themes or operational expression
Motivation	Revenge, anger, jihad, self-righteousness, exclusiveness
Intent and planning	Rationality, flexibility
Politics	Coercion, power pursuits, competition, exclusion, criminalized violence, differentiated victimization, challenge / deviance
Targets and tactics/methods	Instrumentality, exclusion, hatred, social control, victim and targeting variability, fear, intimidation
Public statements	Propaganda, justification, branding

2.2. Classification of Terrorism

Terrorism in India, according to the Home Ministry, poses a significant threat to the state. Terrorism in India are of basically two types i.e. sponsored by **external agencies and domestic (internal)**. *External* terrorism emerge from neighboring countries and *Internal* terrorism emulates from religious or communal violence and Naxalites–Maoist insurgency.

Terror activities involve either Indian or foreign citizens. In fact, most of the domestic terrorism today has linkages with foreign agencies. Transnational Jihadis Terrorism, sponsored by external agencies and other countries to achieve their geo-strategic objectives, currently poses the major threat to the country.

2.2.1. State terrorism

- Defined as acts of terrorism conducted by governments or terrorism carried out directly by, or encouraged and funded by, an established government of a state (country) or terrorism practiced by a government against its own people or in support of international terrorism. Examples include the recent killing of Saudi journalist Jamal Khashoggi in the Saudi consulate in Istanbul allegedly by Saudi government agents; an ex-Russian spy and his daughter poisoned with a nerve agent in Salisbury, apparently by Russian intelligence agents, etc.
- “State terrorism” is as controversial a concept as that of terrorism itself. Terrorism is often, though not always, defined in terms of four characteristics: (1) the threat or use of violence; (2) a political objective; the desire to change the status quo; (3) the intention to spread fear by committing spectacular public acts; (4) the intentional targeting of civilians. This last element—targeting innocent civilians—is problematic when one tries to distinguish state terrorism from other forms of state violence.

2.2.2. State sponsored terrorism:

In this type of terrorism, the government supports army which is engaged in violence activities. Based on the general **degree of government support and attitude** towards terrorists, they can be categorised into:

- Intimidated governments
- Ideologically supportive regimes
- Generally facilitative supporters
- Direct Support in incidents by governments
- Official Participation

Types of support provided by a state to terrorist groups:

- **Ideological support** where terrorist organizations act as convenient instruments to spread the ideology of the State
- **Financial support** to operate and grow in their territory. For instance, in the case of Iran and Pakistan.
- **Military support:** The state supplies the terrorist organization with weapons, provides military training, organizes courses for them, etc.

- Pakistan appears to be in the general facilitative stage. It usually involves governments permitting terrorists to establish safe houses and train on their soil, general government training of umbrella guerilla bands which have terrorist appendages, large financial contributions to these bands, and arms provision to or lax supervision of third party arms transfer to these groups
- In the contemporary period, the states that support terrorism and insurgent groups are now primarily motivated by geopolitics rather than ideology, ethnic affinity or religious sentiment.

2.2.3. Violent Non-State Terrorism

- It is carried out by non-state armed actors or non-state armed groups (NSAGs), that are wholly or partly independent of state governments and which threaten or use violence to achieve their goals.
- Violent Non-State Actors (VNSAs) vary widely in their goals, size, and methods. They may

include narcotics cartels, popular liberation movements, religious and ideological organizations, corporations (e.g. private military contractors), self-defence militia, and paramilitary groups established by state governments to further their interests.

- While some VNSAs oppose governments, others are allied to them. Some VNSAs are organized as paramilitary groups, adopting methods and structure similar to those of state armed forces. Others may be informally structured and use violence in other ways, such as kidnapping, using improvised explosive devices, or hacking into computer systems.

Based on the different **strategies** used by the terrorist to achieve their goals, terrorism can also be classified into the following types:

Cyber-Terrorism	• Unlawful attacks and threats of attacks against computers, networks, and the information stored therein when done to intimidate or coerce a government or its people in furtherance of political or social objectives. It is an unconventional method of terrorism • In cyber terrorism, by using information technology would radically interrupt the services which are connected with internet. For example, cyber terrorists can hack into networks housing for getting critical financial information or disable networked emergency systems.
Ethno-Nationalist Terrorism	• They focus either on the creation of a separate State or on the elevation of the status of one ethnic group over others. Tamil Nationalist groups in Sri Lanka and insurgent groups in North East India are examples
Nuclear Terrorism	• Nuclear terrorism means different type of use of nuclear material by the terrorists. It includes attacking nuclear facilities, preparing nuclear weapons or purchasing nuclear weapons, or finding ways to scatter radioactive materials. • A terrorist assault on a nuclear research centre or nuclear power plant can be cause of the release of nuclear material. The consequences of an attack on a nuclear research centre or nuclear power plant could equal or exceed the effects of the 1986 Chernobyl disaster in USSR
Ideology Oriented Terrorism (Right and Left Wing Terrorism)	• The aim of Right wing terrorists to overthrow government and to establish a nationalist or fascist government. The persons include in this type of terrorism are fascist skinheads, hooligans, youth sympathizers and intellectuals who deem that the government must send foreigners, out of country, for protecting its original citizens. • Left-wing extremists, universally known as Maoists and Naxalites, want to remove the capitalist government and to establish communist or socialist based government. They want to attack the established system in order to remove class distinction
Narco-Terrorism	• The attempt by narcotics traffickers to influence the policies of the Government by systematic threat or use by violence
Bio-Terrorism	• Biological toxins are used to hurt and frighten innocent citizens, in the name of a political or other cause. The U.S. Center for Disease Control has categorized the viruses, bacteria and toxins that could be used in an attack They are: ✓ Anthrax ✓ Botulism ✓ The Plague ✓ Smallpox ✓ Tularemia

2.3. History of Terrorism in India

2.3.1. Jammu & Kashmir

The roots of insurgency in Jammu & Kashmir can be traced to the later part of the 1940s when Pakistan attacked India with a view to capture Jammu & Kashmir. Ever since there has been a section of population which believes in secession from India. These groups aided and abetted

from across the border have often indulged in terrorist activities. The **rise of Islamist fundamentalism** and emergence of Al-Qaeda has added another dimension to the insurgency in Jammu & Kashmir.

2.3.2. Punjab

The quest for a **separate Sikh identity** manifested itself, after Partition, in their demand for a separate State in India. Even after the formation of a separate State of Punjab, some related issues remained unresolved such as demand for Chandigarh as the State capital, sharing of river waters etc. The situation was further aggravated when terrorist elements demanded secession in the form of '**Khalistan**'.

2.3.3. Growth of Hinterland Terrorism in India

1970-80

- After failing in two conventional wars, Pakistan adopted the path of sub-conventional/proxy war with the motto of '**bleeding India with a thousand cuts**'.

1980-90

- The seeds of present terrorism were sown in the Khalistan movement in the 1980s, which aimed at creating a buffer sovereign state between India and Jammu & Kashmir.
- After Punjab, Pakistan targeted Kashmir in the late 1980s, by tapping into the anti-India sentiment of the separatist sections of the Kashmiri population. Terrorism in Kashmir is basically operated by PoK based terrorist organisations created, trained, inspired and directed by the ISI.
- Students Islamic Movement of India (SIMI) was formed with the motive to liberate Indian Muslims from the Western influence and make them follow the path of Islam. They adopted a very radical posture and were subsequently banned under Unlawful Activities Prevention Act in 2001.

1990-2000

- After the Ayodhya incident in 1992, there was a subsequent rise in reactionary activities all over the country, providing a ripe opportunity for the ISI to further its objective of spreading terrorism and communalism in India.

2000 onwards

- Indian Mujahideen was formed to project to the world that terrorism in India is purely an indigenous development, borne out of the ill-treatment meted out to the Muslims. This was to refute India's position that terrorism in India sponsored from across the border.
- There have been constant efforts by the ISI to exploit the communal fault lines in our society and ensure that the Muslim community remains vulnerable to mobilisation, recruitment and radicalisation.
- Rise in the reactionary right wing extremist activities in the form of bomb blasts in Malegaon, Ajmer Sharif Dargah, Samjhauta express etc. and the subsequent alleged implication of innocent Muslim youth gave another boost to the radicalisation of Muslim youth by the terror outfits.

2.4. Key Issues

2.4.1. Terrorism in the Age of Technology

The modern terrorism is **instantaneous and unpredictable**, a global threat that hit its targets, but at same time hits a wide audience due to use of technology. Terrorists have been using cyberspace to find resources, make propaganda activities and from which it is possible to launch the attacks against enemies everywhere in the world.

Social media is an essential element of modern terrorism; these powerful platforms allow terrorists to communicate, to make propaganda and recruit new sympathizers at the same time maintaining anonymity to the user.

How technology is being used in propagating extremism?

- **Propaganda:** It generally takes the form of multimedia communications providing ideological or practical instruction, explanations, justifications or promotion of terrorist activities. It is being used for promotion of violence, recruitment, incitement and radicalization.
- **Financing:** Online payment facilities offered through dedicated websites or communications platforms make it easy to transfer funds electronically between parties. Financial support provided to seemingly legitimate organizations, such as charities, may also be diverted for illicit purposes.
- **Training:** Instructional material are being made available with use of technology which imparts training and facilitate online counter-intelligence and hacking activities.
- **Planning:** Technology also facilitates the preparation of terror activities thorough communication channels, both within and between the terror outfits located in different geographies.
- **Execution:** Internet communications may also be used as a means to coordinate the execution of physical acts of terrorism.
- **Cyber-attacks:** These attacks are typically intended to disrupt the proper functioning of targets, such as computer systems, servers or underlying infrastructure.

2.4.2 Terror Financing

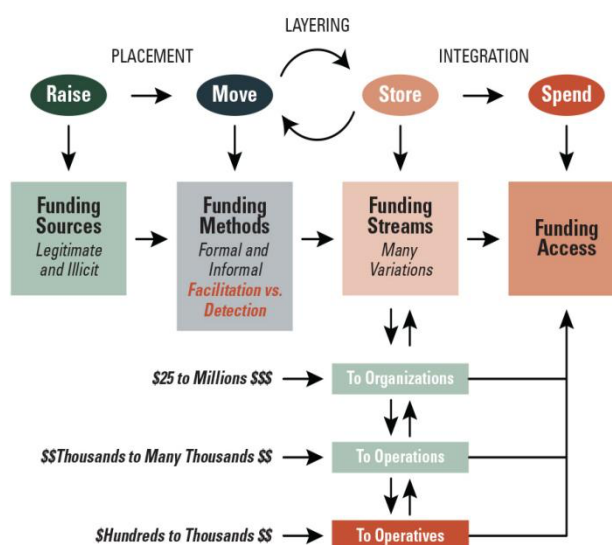
Terrorist activities in most cases require substantial financial support. In fact, **Terrorism finance (TF)** can be termed as the **life blood of terrorism**, one of the most important factors sustaining its continuing threat, both from within and without. They use the following methods to raise funding for terrorists' activities:

- Terrorists gets funds by involving in illegal operations
- Funding could also be sourced even from the proceeds of lawful activities. Supporters of a militant ideology could well make financial contributions to terrorist organizations from their known sources of income. Such contributions could also be made to some non-profit or charitable institutions acting as a front for terrorist organizations, knowingly or un-knowingly.
- By resorting to or working in concert with cartels involved in drug trafficking, narcotics trade etc. – without having to resort to money-laundering per se.
- Funding could also involve counterfeiting of currency, currency smuggling etc.

Communication Circle of Terrorism



Figure 1: Funding: Sources / Methods / Access



- International organized crime makes use of a wide range of methods and networking to transfer funds with a view to launder the proceeds of crime.
- Terrorist organizations also take recourse to bulk cash smuggling and use of informal channels of transfer of money (like hawala).
- Defrauding financial institutions and the public at large.

2.4.3. Urban Terrorism

Urban terrorism is the use of terrorism in cities and other urban areas, targeting the urban populace. Urban terrorism in South Asia is a relatively new phenomenon. In recent years, terrorists are visibly moving away from activities near the borders to the cities and towns.

Reasons for increase in such attacks

- **Easy Targets-** Density of built environment in urban agglomerations and urban mass transport infrastructure result in mass gathering making them easy targets to maximize the impact of terrorist attacks.
- **Scope for Anonymity-** Unlike in rural areas, inhabitants in cities and towns are more heterogeneous, which provides more scope for anonymity making suicide bombings extremely difficult to detect or prevent in time.
- **Availability of facilities-** Logistical support like arms, public transport etc. are readily available in urban areas.
- **Easier Recruitment-** because it is the city that nurtures dissidence in general.
- **Attacking credibility of the government-** by attacking high profile symbolic targets to make a point that if a government fails to protect high value targets, it is obvious that it may not be in a position to protect the normal ones.
- **Protection from indiscriminate counter terrorism operations-** due to vast collateral damage.
- **Less demanding operations-** in terms of brute physical strength and endurance than required in mountainous or rural terrain. And they also do not need sophisticated long-range weapons to inflict the desired damage.
- **Easy spread of fear-** Since terrorism is 'propaganda by the deed', the attention-seeking goal of terrorists is well served in the urban environment where the immediate audience is greatest and where representatives of the print and electronic media are readily available and quite eager to report. Such coverage also magnifies the fear generating capabilities of terrorist acts.
- **Vulnerabilities due to internet:** Increasing availability of personal data has made individuals vulnerable to terrorism. Such information can be used for the purpose of radicalisation or targeting for the acts of violence.

Recent examples of Urban Terror in India and neighboring countries

India has been a witness to several urban terror attacks such as the 1993 Bombay bombings, 1998 Coimbatore bombings, 2000 terrorist attack on Red Fort, 2001 Indian Parliament attack, 2005 Delhi bombings, 2008 Bangalore serial blasts and 2008 Mumbai attacks.

In Bangladesh, in 2016, an unprecedented attack on Dhaka Holey Artisan Bakery in Gulshan city resulted in the death of 29 people including 17 foreigners. Pakistan is teeming with urban terrorism with the regions of Karachi, Peshawar and Quetta being hot targets.

2.4.4. Lone-Wolf Attacks

- A "lone wolf" is a person who **prepares and commits violent acts alone**, outside of any command structure and without material assistance from any group.
- It is an efficient way of spreading terror in hard-to-access places for organised terrorist groups. Prominent recent examples across the globe include Boston marathon bombing of

2013, Sydney hostage crisis of 2014, recent attacks in New York and London where vehicles were used to run over and kill a number of people.

- Volatile neighborhood of India acting as terror hotbeds, fast growing population especially youth with access to mass media and social media, heavy concentration of people in public areas with limited security and inadequate capacities of local police increase India's vulnerability to lone wolf attacks.
- However various other factors tend to pose challenges in growth of lone wolf attacks in India:
 - Unlike in the US where sophisticated weapons can be easily bought by ordinary citizens, gaining access to such weaponry in India is difficult.
 - Indians have not displayed the psychological willingness to undertake high risk attacks.
 - The absence of past examples of lone wolf attacks in India inculcates the fear of the unknown in the minds of potential volunteers.

2.4.5. Use of Terror as a foreign policy instrument by External States

Deep State is a body of people, typically influential members of government agencies or the military, believed to be involved in the secret manipulation or control of government policy. Deep State in Pakistan has nurtured Islamic Radical Groups (Mujahideens) as strategic assets to be used against its adversaries.

This strategy was increasingly adopted after the success of US-funded Mujahideens in Afghanistan against USSR. There are primarily three types of such groups

- **Ones who act against India-** e.g. Lashkar-e-Taiba, Jaish-e-Mohammed
- **Ones who act against Afghanistan-** e.g. Al-Qaeda and Taliban
- **The Pakistani Taliban (Tehreek-e-Taliban-Pakistan)-** this group has become rogue and fighting against the Pakistani establishment itself.

Pakistan has largely remained in denial mode and has taken sham actions on terrorist assets in order to avoid international pressure. Some scholars believe that these groups have grown so powerful now that the Pakistani State lacks the capacity to deal with them militarily.

Issues in dealing with Pakistan's terror infrastructure

- It has been difficult to completely isolate Pakistan in the international community for long time, because it has-
 - Large population
 - Nuclear Capabilities
 - Islamic nations are backing Pakistan
- The organs of Pakistani state, be it the Executive or the Judiciary or the Civil Society- have been **overshadowed by its deep state**. Whenever in the past, any of the other organs tried to stand, they have been crippled by the deep state.
- The **illness of its Deep State run so deep**, that it has become incurable. If nuclear weapons come in the hands of Terror groups, it may become a danger for international peace.

Change in Indian Approach to Pakistan based terror groups

- On 14th February, 2019- a vehicle bound suicide attack led to death of 40 CRPF personnel in Pulwama, Jammu and Kashmir.
- The links to this attack were again traced to Pakistan based terror group Jaish-e-Mohammed.
- On 26th February, the Indian Airforce hit a training camp of the group in Balakot, Pakistan.
- This marked a change in Indian response, as it was a **pre-emptive strike** on non-military, non-civilian target to fight terror.
- It was a mature decision to achieve the target, as well as, prevent any escalation towards war

2.4.6. The challenge of IS and Al-Qaeda in India

Islamic state previously known as the Islamic state of Iraq and Syria (ISIS), is a terror group which envisages to establish an "Islamic state based on Sharia law or Islamic Caliphate". IS's

Amaq News Agency has announced its new province in India, that it called “Wilayah of Hind”, but did not elaborate on the branch's geographical remit. In the past, IS had vowed to convert India into Khurasan State, a historic name for a region that covers Afghanistan, Pakistan, parts of India, and other surrounding countries.

Student Notes:

Why Islamic State is a challenge for India?

- **Involvement of other state actors-** such as Pakistan’s Inter-Services Intelligence (ISI), which can provide a well-established intelligence and logistic network, in a symbiotic relationship. The NIA reported in 2014, the recruitment of more than 300 Indian youths by Pakistan-based Tehreek-e-Taliban (TTP), which had joined hands with ISIS.
- IS losing territorial ground in other areas- such as Middle East to US-led forces, now IS is seeking to strengthening its global affiliations. Such a strategy was highlighted by ISIS chief Abu Bakr al-Baghdadi in the past. At the same time, ISIS views India as a potential hotbed for radicalization due to the demographic structure.
- **Efforts of radicalization-** The IS have published recruiting materials in Hindi, Urdu, Tamil and other languages spoken in India. In 2015, it released an e-book to spread its propaganda and making direct reference to Indian Prime Minister accusing him of spreading communal disharmony. So far (as of 2019), India has had some 82 active cases of investigations on individuals suspected of engaging in pro-ISIS activities.

Al Qaeda released maiden video on Kashmir

Even though Al Qaeda- has been active in the Indian subcontinent (Al-Qaeda in the Indian Subcontinent (AQIS) was founded in 2014), it has largely been unable to carry out large-scale attacks and struggled to attract support outside of Pakistan.

Reasons for the new-found interest of Al Qaida in India:

- The **aging leadership** of Al Qaeda is struggling to compete with the IS for young radicalized recruits. As IS remain majorly involved in West Asia, it suits to the Al Qaeda’s strategy to “invest” in the East.
- Another reason is due to the fact that India has substantially increased its **engagement with Afghanistan** since the fall of the Taliban government. So, India’s growing influence may deter Al Qaeda’s reemergence to power in Afghanistan

2.5. India’s Counter Terrorism Strategy

A strategy for fighting terror in India has to be evolved in the overall context of a national security strategy. To tackle the menace of terrorism, a multi-pronged approach is needed.

- **Socio-economic development** is a priority so that vulnerable sections of society do not fall prey to the propaganda of terrorists promising them wealth and equity.
- **Administration** need to be responsive to the legitimate grievances of people so that these are redressed promptly and cannot be exploited by terrorist groups.
- **Strong measures** are required to deal with criminal elements but with respect for human rights.
- **International Cooperation** becomes crucial as terrorism is a global threat and cannot be handled by nations acting in silos. Active participation in bilateral, regional and multilateral forums forms a crucial part of India’s strategy against terrorism.

Dealing with the menace of terrorism would require a comprehensive strategy with involvement of different stakeholders – the Government, political parties, security agencies, civil society and media. The necessary elements of such a strategy are listed below:

- **Political consensus:** Union Government should have intensive interactions with the States and Union Territories while drawing up the national strategy, the latter would be required to do their part in close consultation with the nodal ministry of the Government of India.
- **Good governance and socioeconomic development:** This would necessitate high priority

being given to development work and its actual implementation on the ground for which a clean, corruption-free and accountable administration at all levels is an imperative necessity.

- **Respect for rule of law:** Governmental agencies must not be allowed to transgress law even in dealing with critical situations caused by insurgency or terrorism. If an extraordinary situation cannot be dealt with by the existing laws, new laws may be enacted so that law enforcement agencies do not resort to extra-legal or illegal methods.
- **Countering the subversive activities of terrorists:** Government must give priority to defeating political subversions (e.g. by terrorists and Maoists). The emphasis should be on civil as opposed to military measures to counter terrorism and insurgency.
- **Providing the appropriate legal framework:** The ordinary laws of the land may not be adequate to book a terrorist. This may require special laws and effective enforcement mechanisms, but with sufficient safeguards to prevent its misuse.
- **Building capacity:** The capacity building exercise should extend to the intelligence gathering machinery, security agencies, civil administration and the society at large.

2.5.1. India's preparedness against terrorism

The status of India's preparedness in performing key roles in countering terrorism activities is as follows:

- **Intelligence gathering**
 - Presently, the task is undertaken by the state police and the Central government agencies.
 - NATGRID and Multi-Agency Center (MAC) have been set up after 26/11.
 - However, vital inputs and information regarding various government departments and NGOs has to be streamlined.
- **Training and Operations**
 - Resource crunch at the level of the State police acts as a bottleneck in upgrading their training capability.
 - As of now, for operations, IB plays the role of the coordinator with the police of different states, but if operations need to be carried out simultaneously in many states, there is no unified command.
- **Investigation**
 - The NIA Act was enacted in the aftermath of the Mumbai terrorist attacks of 2008. A decade later, the Act was amended with the objective of speedy investigation and prosecution of certain offences, including those committed outside India.
 - Widening the ambit of the act and strengthening the role of NIA would make terrorist investigations in the country more efficient and would help in creating a good data bank of the various terrorist network operating inside and outside the country.
 - There remains a major scope of improvement in the investigating capabilities of the state police.
- **Prosecution**
 - Rampant delays due to procedural aspects in the criminal justice system acts as a bottleneck on the pace of the trial.
 - The 2019 NIA amendment allowed the central government to designate Sessions Courts as Special Courts for the trial of scheduled offences under the Act.

2.6. Steps taken by the government

2.6.1. Enabling a strong legislation framework.

- **NIA Act, 2019:** The NIA is now empowered to investigate offences related to "(i) human trafficking, (ii) offences related to counterfeit currency or bank notes, (iii) manufacture or sale of prohibited arms, (iv) cyber-terrorism, and (v) offences under the Explosive

Substances Act, 1908”.

- **UAPA Act, 2019:** Parliament cleared the Unlawful Activities (Prevention) Amendment Act, 2019 to designate individuals as terrorists on certain grounds provided in the Act.
 - The Act empowers the Director General of National Investigation Agency (NIA) to grant approval of seizure or attachment of property when the case is investigated by the said agency.
 - The Act empowers the officers of the NIA, of the rank of Inspector or above, to investigate cases of terrorism in addition to those conducted by the DSP or ACP or above rank officer in the state.

2.6.2. Institutional framework to tackle terrorism

- **NATGRID:** It seeks to become the one-stop destination for security and intelligence agencies to access database related to immigration entry and exit, banking and telephone details of a suspect on a “secured platform”.
 - (NATGRID) has signed a memorandum of understanding (MoU) with the National Crime Records Bureau (NCRB) to access the centralised online database on FIRs and stolen vehicles.
 - The MoU, signed in March, will give NATGRID access to the Crime and Criminal Tracking Network and Systems (CCTNS) database, a platform that links around 14,000 police stations.
- **National Cyber Coordination Centre (NCCC)** has been established as a cyber security and e-surveillance agency in India.

2.6.3. Combating Terror Finance

Government has taken various steps to combat terror financing in the country, which inter alia, include:

- **Strengthening the provisions in the Unlawful Activities (Prevention) Act, 1967** to combat terror financing by criminalizing the production or smuggling or circulation of high quality counterfeit Indian currency as a terrorist act and enlarge the scope of proceeds of terrorism to include any property intended to be used for terrorism.
- A **Terror Funding and Fake Currency (TFFC) Cell** has been constituted in National Investigation Agency (NIA) to conduct focused investigation of terror funding and fake currency cases.
- An **advisory on terror financing** has been issued in April 2018 to States/ Union Territories. Guidelines have also been issued in March, 2019 to States/ Union Territories for investigation of cases of high quality counterfeit Indian currency notes.
- **Training programs** are regularly conducted for the State Police personnel on issues relating to combating terrorist financing.
- Fake Indian Currency Notes (FICN) network is one of the channels of terror financing in India. **FICN Coordination Group (FCORD)** has been formed by the Ministry of Home Affairs to share intelligence/information among the security agencies of the states/center to counter the problem of circulation of fake currency notes.
- **Intelligence and security agencies** of Centre and States work in tandem to keep a close watch on the elements involved in terror funding activities and take action as per law.

2.6.4. India's Involvement at the UN

- India has prioritised the adoption of an intergovernmental framework to combat terrorism. India introduced the **Comprehensive Convention on International Terrorism (CCIT)** in 1996 that defined terrorism and enhanced “normative processes for the prosecution and extradition of terrorists.”
- **Active participation in several counter-terrorism discussions**, such as
 - Drafting a Global Counter-Terrorism Strategy in the General Assembly in 2006,

- Serving as a founding members of the Global Counter-Terrorism Forum (GCTF),
- Supporting counter-terrorism mechanisms established by UN Security Council Resolutions, such as Resolution 1373 establishing the Counter-Terrorism Committee, and Resolution 1540 addressing the non-proliferation of Weapons of Mass Destruction to terrorist organisations

2.7. Various Global Actions for countering Terrorism

United Nations oversees various conventions that target different aspects of terrorism, including terrorist financing, hijacking, acquiring weapons of mass destruction, and hostage taking, to name a few.

- UN General Assembly unanimously adopted in 2006 the **Global Counter terrorism Strategy (GCT)**.
- **Counter-terrorism Implementation Task Force (CTITF)**—a partnership of bodies created by UN in 2005, which now includes more than thirty UN entities plus INTERPOL, to streamline and coordinate counter terrorism efforts within the UN.
 - UNSC established the Counter terrorism Committee (CTC).
- The **RATS (Regional Anti-Terrorist Structure)** aims to promote better coordination among members of the Shanghai Cooperation Organisation (**SCO**) on terrorism. India considers RATS as an important and effective organisation in fight against terrorism as it possesses data on 2,500 suicide bombers and 69 terrorist organizations.
- **Terrorist Travel Initiative** was launched under auspices of Global Counter terrorism Forum (GCTF).
 - It will bring together national and local governments, law enforcement and border screening practitioners, and international organizations to share expertise on how to develop and implement effective counter terrorism watch listing and screening tools.
 - The initiative will develop a set of good practices which will reinforce countries and organizations to use border security tools prescribed in UNSC Resolution 2396 to stop terrorist travel.
- Financial Action Task Force (**FATF**) and the Group of Eight (G8) Counter terrorism Action Group (CTAG).
- European Union's the EU judicial cooperation unit, **EUROJUST** and the EU's police force, **EUROPOL**
- **Christchurch Call To Action:** It outlines collective, voluntary commitments from governments and online service providers intended to address the issue of violent extremist content online and to prevent abuse of the internet, while maintaining international human right laws.
- **Global Internet Forum to Counter Terrorism (GIFCT)** is an industry led initiative, working in close partnership with the UN Counter Terrorism Executive Directorate (UNCTED) to substantially disrupt terrorists' ability to promote terrorism, disseminate violent extremist propaganda.

FATF puts Pakistan on its "Grey List"

- The FATF maintains two lists – a **blacklist** and a **grey list**. Countries on its blacklist are those that the watchdog deems non-cooperative in the global effort to curb money laundering and terror-financing.
- The Grey list, on the other hand, officially referred to as '**Jurisdictions Under Increased Monitoring**,' constitute those nations that present significant risks of money laundering and terror-financing but which have committed to working closely with the FATF in the development and implementation of action plans that address their deficiencies.
- The FATF placed Pakistan on the grey list in 2018 and asked it to implement a plan of action to curb money laundering and terror financing by the end of 2019, but the deadline was extended due to the COVID-19 pandemic.

(Also discussed in the topic of money laundering)

2.8. What more needs to be done

2.8.1. Strengthening the technology framework to deal with extremism

Role of Online service providers	Role of Government and civil society
• Terms of Use: Updating terms of use, community standards, codes of conduct, and acceptable use policies to expressly prohibit the distribution of terrorist and violent extremist content. • User Reporting of Terrorist and Violent Extremist Content: Providing easy to use methods within online platforms and services for users to report or flag inappropriate content. • Enhancing Technology: Prevent the upload & dissemination of terrorist and violent extremist content, with a mechanism for automatic identification and immediate & permanent removal. • Transparency Reports: Publishing on a regular basis transparency reports regarding detection and removal of terrorist or violent extremist content on online platform	• Shared Technology Development: Share technology with other industries, governments, and NGOs, such as data sets and open source content AI detection tools. • Crisis Protocols: Creating a crisis protocol for responding to emerging or active events, on an urgent basis, so relevant information can be quickly and efficiently shared, processed, and acted upon by all stakeholders with minimal delay • Combating Hate & Bigotry: Support research and academic efforts to better understand and attack root causes of extremism and supporting capability and capacity of NGOs to promote pluralism • Education: Collaborate with industry, governments, educational institutions, and NGOs to help educate the public about terrorist and extremist violent content online & how to report it

2.8.2. A 360- degree approach

It is necessary for India to effect changes in its internal security architecture and further empower its intelligence and investigation agencies for enhanced preparedness, along with some diplomatic measures to counter terrorism in the whole of the sub -continent.

- Cross platform recruitment of specialists dealing with social media, big data analysis, terrorism finance and technical intelligence.
- Developing a well-operated online intelligence network for intelligence sharing, joint online operations and database convergence to keep a check on ISIS's influence on the internet.

2.8.3. Early prevention and De-Radicalisation

A comprehensive strategy of early prevention, targeted repression and intervention and involves government and non-governmental actors.

- Influential Minority Religious leaders should be roped in to appeal to youth against radical propaganda, especially those coming through social media and other internet platforms.
- The government should work with social groups, NGOs and student bodies, which can reach out easily to the population at large, as compared to state institutions.

2.8.4. Strengthening the role of the police force

Enhancing their training capabilities and providing them with modern equipment for surveillance, investigation and operations is the need of the hour

3. UPSC Mains Previous Years' Questions

1. Indian government has recently strengthened the anti-terrorism laws by amending the unlawful activities (Prevention) act (UAPA), 1967 and the NIA Act. Analyze the changes in the context of prevailing security environment while discussing the scope and reasons for opposing the UAPA by human rights organizations. (2019)
2. The scourge of terrorism is a grave challenge to national security. What solutions do you suggest to curb this growing menace? What are the major sources of terrorist funding? (2017)
3. 'Terrorism is emerging as a competitive industry over the last few decades.' Analyse the above statement. (2016)

4. Vision IAS Mains Previous Years' Questions

1. **Highlighting the key changes made by the National Investigation Agency (Amendment) Act, 2019, discuss the objections that have been raised against these.**

Approach:

- Give a brief account on the NIA Act.
- Enumerate the amendments made in the Act.
- Discuss the objections that have been raised against the amendments.
- Conclude on the basis of the above points.

Answer:

National Investigation Agency (NIA) is a central agency to combat terrorism in India, established under the **National Investigation Act, 2008**. It has wide powers such as, to take *suo motu* cognisance of terror activities in any part of India and register a case, to enter any state without permission from the state government, and to investigate and arrest people.

The **NIA (Amendment) Bill, 2019** was passed by the Parliament amending the original Act of 2008. Following are the amendments made:

- It **expanded the type of offences that the NIA could investigate and prosecute**. It can now investigate offences related to human trafficking, counterfeit currency, manufacture or sale of prohibited arms, cyber-terrorism, and offences under the Explosive Substances Act, 1908.
- The NIA will have the **power to investigate scheduled offences committed outside India**, subject to international treaties and domestic laws of other countries. A special court will preside over such cases.
- The amendment enables the **central government to designate session courts as special courts for NIA trials** under Section 11 and 22 of the NIA Act 2008.

However, the following **objections** have been raised against the recent amendments:

- The **new amendment has diluted the nature and operation of the Act**, which was enacted to prosecute offences affecting national security, by incorporating offences such as trafficking of minors for sexual exploitation etc., which **may not be related to terrorism**.
- The **expanded scope** of scheduled offences may be prone to **misuse by government**, which can categorize them as acts of terrorism. This is especially dangerous when the terms/ phrases like '**terrorism**', '**affecting the interest of India**' have not been **defined** under the Act, which may be interpreted to **curb dissent**.

- The expanded jurisdiction covers matters (such as offences under the Explosives Act) which are also in the domain of the state governments leading to possible **encroachment on their jurisdiction**.
- The provision to designate the existing Sessions Courts as Special Courts will dilute the **exclusivity** of the NIA Act. These sessions courts would run on similar lines as they do under other Central Acts, thus **eroding the special character** of this Act. Also, these courts are **already overburdened with pending cases** and this move will further increase their burden.
- The power to investigate cases outside India would not be useful **without any cooperation and extradition treaties with other countries**.

The amendments have been brought to strengthen the National Investigation Agency. However, the aforementioned concerns need to be addressed so that there is a coordinated effort for the fight against terrorism.

2. Bring out the importance of international cooperation in fighting terrorism. In this context, throw light on UN Global Counter-Terrorism Strategy.

Approach:

- Briefly write an introduction about terrorism as a global threat.
- Bring out the importance/need for international cooperation in fighting terrorism.
- Throw light on UN Global Counter-Terrorism Strategy.

Answer:

In the modern world, terrorism has evolved from local to a truly international threat. According to Global Terrorism Index, 67 countries experienced at least one death from terrorism in 2017. Although, the total number of deaths by terrorism fell by 27 per cent between 2016 and 2017, the number of terrorist incidents increased especially in Europe. Consequently, there is a **need for international cooperation around fighting terrorism** because of the following factors:

- **Incapacity of Individual state to control terrorist threats:** Multilateral initiatives bolster state capacity to build institutions and programs that strengthen a range of activities, from policing to counter radicalization programs.
- **Effective criminal justice cooperation** among states is necessary to deny safe havens and bring to justice those who commit or attempt to commit terrorist crimes.
- **Enormous efforts:** Given the number of players involved, the enormity of the task and the limited resources available, effective coordination is crucial.
- **Cross border linkages:** Terrorist groups can operate from every corner of the globe by taking advantage of porous borders and interconnected international systems—finance, communications, and transit as well as using social media and emerging technologies.
- **Changing and evolving nature of terrorism:** Its associated motivations, methods of attack and choice of targets are often evolving. International cooperation can ensure effective vigilance against it as well as deny misuse of any emerging technology such as artificial intelligence, drones etc.

Recognizing this need for international cooperation to combat terrorism, the United Nations General Assembly adopted the **Global Counter-Terrorism Strategy** in 2006. Its objective is to enhance national, regional and international efforts to counter terrorism. The General Assembly reviews the Strategy every two years, according to member states' counter-terrorism priorities. The Global Counter-Terrorism Strategy is composed of **4 pillars**:

- Addressing the conditions conducive to the spread of terrorism.
- Preventing and combating terrorism.
- Building states' capacity to prevent and combat terrorism and strengthening the role of the United Nations system in this regard.
- Ensuring respect for human rights for all and rule of law as the fundamental basis for the fight against terrorism.

Most recently, a series of actions have been taken by the UN to increase effectiveness in tackling the challenges of terrorism and violent extremism, such as:

- Establishing the UN Office of Counter-Terrorism (UNOCT), which has been a major reform in the UN counter-terrorism architecture.
- UN Global Counter-Terrorism Coordination Compact was signed in 2018 by 36 UN entities, INTERPOL, and the World Customs Organization. It is aimed at ensuring that the United Nations system provides coordinated capacity-building support to Member States in implementing the UN Global Counter-Terrorism Strategy and other relevant resolutions at their request.

However, deep divisions still remain between member states on issues such as the utility of the prevention approach to violent extremism, the identification of the conditions and drivers to radicalization, the important role of civil society in ensuring an effective global strategy. Furthermore, concerns about failure to adequately address the human rights abuses being committed and the increasing erosion of international humanitarian law in the name of combatting terrorism need to be addressed urgently.

3. *The use of Internet creates both challenges and opportunities in the fight against terrorism. Discuss.*

Approach:

- Briefly write about the use of internet by terrorists.
- Bring out the challenges and opportunities presented by internet.
- Conclude on the basis of the above points on a positive note.

Answer:

Internet has brought about a revolution in the way people share information and collaborate – quickly, effectively, across borders, to an almost limitless audience. Internet, however, is also being exploited by the terrorist organizations to create a new brand of '**internet-enabled**' terrorism.

The multivariate use of Internet for propagating terrorism poses corresponding challenges for security agencies worldwide:

- **Disseminating Propaganda:** Use of internet by terrorist organisations to facilitate recruitment, promote radicalization, and incite violence through videos, games, and online chat rooms has enhanced their reach, which is becoming increasingly difficult to moderate.
- **Transnational Operations:** It is being facilitated by internet which helps them evade national jurisdiction and prosecution.
- **Illicit Fund Raising:** It is almost getting impossible to identify the funds received through shell companies or a complex web of online transactions.
- **Lending Anonymity:** Use of internet has decentralized terrorist operations such as training, planning and execution of attacks (like lone wolf attacks) which lends anonymity to perpetrators and leaves behind no trace.
- **Procuring weapons:** It is emerging as a source of procuring sophisticated weapons easily and anonymously at the click of a button via dark web, which are difficult to trace.

- **Cyber-Terrorism:** Use of digital platforms by terrorists can threaten critical infrastructures like power, banking, transport and communications which can destabilize an entire nation.

The use of internet by terrorist organizations, also presents opportunities to governments and security agencies to counter them:

- **Intelligence gathering:** It can help governments and security agencies to pre-empt attacks by analysing the online communications and activities of the terrorists. Big Data Analytics can also be employed to proactively identify and deter such attacks.
- **Counter Propaganda:** Internet can be helpful to disseminate sound counter-narratives to a wide-audience (in multiple languages with ease) as well as the targeted groups who are likely to be radicalized.
- **Evidence collection:** Internet can be used to gather evidences which can be used for prosecution.
- **Effective Transnational Co-operation** between intelligence/security agencies in real-time can amplify the global effort to counter terrorism.

The internet is a prime example of how technological advancement can prove to be a double-edged sword. A united, global response is the only hope for the international community to defeat 'internet-enabled' terrorism. India recently joining the Christchurch Call to counter terrorism and radicalization online including social media is a step in the right direction. India should look to build upon such initiatives.

4. *Urban terrorism has been on the rise in recent times. Identify the factors that make urban centres susceptible to terrorist attacks. What lessons can be learnt from the past attacks to put in place effective measures to combat it?*

Approach:

- Give a brief background about the increased incidence of urban terror attacks in India and their consequence.
- Exploring different dimensions, account for reasons as to why urban environments offer better choice to terrorists.
- Mention some effective measures in order to counter the menace of growing urban terrorism in India.

Answer:

In recent times, cities such as Mumbai, New York, Paris and London have faced the brunt of terrorism. This indicates towards a trend of rise in urban terrorism. Following factors can be attributed for this phenomenon:

- Urban centres have become a target because they are centres and symbols of political, economic and cultural power.
- Population is not only high in cities, but also diverse, dense and concentrated in certain geographical pockets.
- Unlike rural areas, urban areas offer more scope for anonymity which enables the 'terrorist fish to swim in urban waters easily'.
- Logistical support like arms, medicines, food, and lodging are readily available in an average urban area.
- Maneuverability of terrorists is guaranteed by the presence of public and private transport.
- Terrorist groups generally find it easier to recruit prospective terrorists in a predictable manner.
- Urban areas have administrative, economic, and political headquarters with critical infrastructure, where more damage can be afflicted with relative ease.

- Ready availability of print and electronic media whose wide coverage also magnifies the fear-generating capabilities of terrorist acts.

Consequences of urban terrorism

- Terror attack on cities undermines India's booming economy and vitiating the investment climate.
- Large area suffers destruction and contamination where normal life is paralysed for several days.
- It also weakens the fabric of social cohesion.

Combating Urban Terrorism

- **Strengthening actionable intelligence:** It is imperative to strengthen local intelligence for pro-active counter-terrorist measures. This must be accompanied by community policing.
- **Target Hardening:** Terrorists usually choose high-profile soft targets like markets, railway stations etc. Target hardening through blast walls, attack-resistant bollards and shatter-proof glass is one way to deal with this. Also, surveillance cameras, metal and explosive vapour detectors and X-ray scanning machines should be installed at key access points.
- **Trained manpower:** Security personnel should be sensitised to spotting and segregating suspicious objects that are left behind besides training them in rescue and relief operations. City planners can also introduce strategies to undermine radicalization by strengthening social bonds between different urban communities.
- **Counter-terrorist operations:** National Security Guard (NSG) must be equipped with state-of-the-art technology and equipment to enable the commandos to enhance their operational performance and minimise their own casualties. Every state should have a NSG-type of commando force to counter lethal terror strikes.
- **International cooperation:** Government must enter into extensive cooperative arrangements with friendly countries to maximize the advantages of intelligence sharing, seek training assistance and acquire expertise available with countries like Israel and the United States etc.

Urban terrorism is a phenomenon that poses grave threat at a time when more and more people are moving to cities. The challenge is to safeguard cities against terrorism while ensuring their cosmopolitan, diverse and dynamic character. Thus, a multidimensional approach - involving inter-city cooperation police-community relations and intelligence, security and emergency response services - is the need of the hour.

5. *In what ways does the physiography of India pose a challenge to its counter-terrorism efforts? What can be done to deal with these challenges?*

Approach:

- Identify features of physiography of India along its land and sea borders, that become the entry points of terrorists and their host locations – one may use physical map of India
- Relate these geographical features with the vulnerability of these borders to terrorism and hampering of counter-terrorism efforts
- Discuss steps that can be taken to overcome these barriers

Answer:

The physiography of India is marked by diverse features, most prominent being its long land and maritime borders. Vast coastline, rugged terrain, specifically forests, and

international borders have effectively aided terrorist groups in various parts of India. Multiple challenges to counter-terrorism efforts emanate from various geographical features and climatic variations discussed in the table as per markings given on figure:

Student Notes:

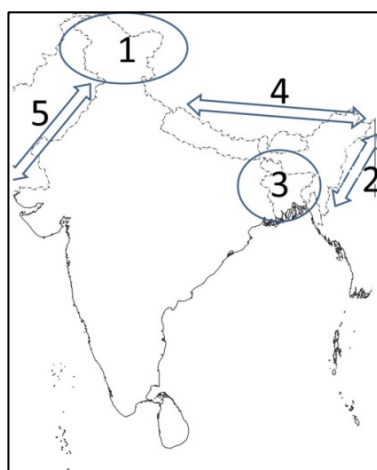


Figure: Frontiers of India

Border region (see figure)	Physiography	Challenges posed to counter-terrorism efforts
1	Mountain ranges, rivers and streams, Passes open even during winters	Beyond surveillance range; provide spaces for terrorists to ingress-attack-exit
2	Thickly forested region – home to many ethnic communities	Illicit drugs, arms trade and trafficking; free movement of NE insurgents
3	Plains, riverine belts, hills with hardly any natural obstacles; adverse climatic conditions such as flooding	Heavily populated and cultivated area; land acquisition is difficult; repeated submergence of fences etc.; illegal migration/trafficking
4	Himalayan ranges with steep rugged slopes	Fake currency, open borders, shifting boundaries due to changing course of rivers
5	Seasonal floods along Gujarat border; river crossings along Punjab border	Movement of drugs, illicit trade along the gaps, shifting sand dunes making fencing ineffective, terrorist infiltration
Coastline	Shallow sandy beaches and dunes, lagoons, dissections by rivers and estuaries, residual hills, rocky highlands	Patrolling requires special vehicles, boats etc. with relevantly trained personnel

schemes such as the Border Area Development Programme, following steps can be taken to deal with physiographical challenges:

- Fencing and flood lighting, with periodic maintenance, along India's all land borders, as has been done along Punjab and Rajasthan's international borders.
- Construction of strategic border roads and Border Out-posts for better patrolling.
- Deployment of hi-tech e-surveillance equipment like Night Vision Devices, Handheld Thermal Imagers, Unattended Ground Sensors etc. as proposed under

Comprehensive Integrated Border Management System (CIBMS) and implementing it along all land borders.

- Special trainings for coastal security forces and state police personnel in maritime activities.
- UAVs can aid the border security by surveilling in inaccessible and difficult locations.

Beside these infrastructural mechanisms, updating of border agreements with all neighbouring nations, to ensure sustainable peace, is indispensable.

6. *China's move to block India's attempts of designating certain individuals as terrorist at the UN is not purely bilateral, rather it reflects a larger trend of fragmenting global consensus on terrorism. Critically analyse.*

Approach:

- In the introduction, briefly explain India's attempt to designate individuals such as Masood Azhar as terrorist at the UN through 1267 committee.
- Identifying China's role, delineate the factors that can be cited as the example of a lack of consensus on terrorism globally.
- Towards the end also identify how bilateral impetus cannot be denied in explaining the Chinese move. Conclude by suggesting a way forward.

Answer:

India's attempts to designate individuals involved in planning and orchestrating acts of terror on its soil, such as Masood Azhar, as a global terrorist under UNSC Resolution 1267 has been put on technical hold by China. In this context, it has been observed by many that this represents a trend of consensus on combating terrorism globally.

Fragmentation is explained by the following:

- **Economic interest:** China is building CPEC with Pakistan, therefore China is blocking any move which it sees is against Pakistan's interests.
- **Outreach towards Taliban:** Though, 9/11 attack started as an offensive against Taliban in Afghanistan, but of late many countries (like Russia, China, US etc.) are in talk with it to stabilize the government in Afghanistan. This dilutes war against terrorism. Even USA is pushing to remove some groups from UN sanctions committee which is being opposed by Russia.
- **Tussle between US and Russia:** This difference is seen in every sphere, including fight against terrorism.
- **Emerging axis of Pakistan-China-Russia:** In a trilateral meeting in December 2016 they have decided to remove names of some Taliban leaders from UN Sanctions committee. At the BRICS summit in October and the Heart of Asia conference in December, it was the Russia-China combine that kept India's desire for tough statements on "cross-border terrorism" from Pakistan at bay.
- **Lack of global consensus:** The delay in moving ahead with ban on the new head of Taliban or India's proposed Convention Against Terrorism.
- No consensus on a globally acceptable definition of "terrorism" at UN General Assembly to formulate a global framework on terrorism.
- **Good and bad terrorists:** A dichotomy is apparently developing as terrorists who are good or bad. For e.g.: while Indian and Afghanistan governments oppose any negotiation with Taliban while Russia, China and Pakistan are ready to negotiate with certain factions of Taliban.

Thus, it shows that, every country is choosing its own terms to pursue its own objectives. This dilutes the fight against terrorism, and reflects the larger narrative of fragmentation of global consensus against terrorism.

Nonetheless, the bilateral aspect in the whole development cannot be ignored either.

Chinese interests in Pakistan and its differences with India on border issues, South China Sea as well as Indian Ocean region provides ground for argument to be made for a bilateral impetus behind China's action in the 1267 committee.

At the global stage, Masud Azhar's ban is a piece in a much larger jigsaw puzzle of terrorism. In the face of weakening global consensus, that once helped it apply pressure on Pakistan, India needs to concentrate on bilaterally engaging China while simultaneously pushing forward with its attempt at forging a global consensus on terrorism at multilateral forums by revitalizing initiatives such as the Comprehensive Convention on Terrorism.

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VARIOUS SECURITY FORCES AND AGENCIES AND THEIR MANDATE

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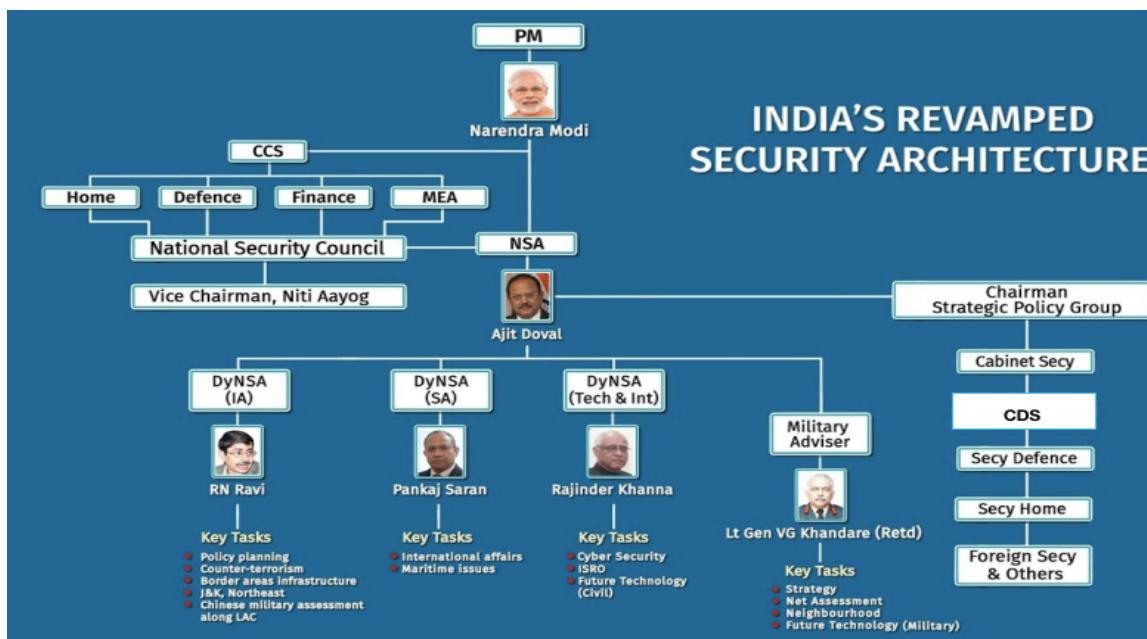
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1. National Security Architecture of India

Student Notes:



Functions of various Organisations

Cabinet Committee on Security (CCS)

- It is the apex body for executive action on matters of national security.
- CCS is responsible for Political oversight and decision making on national security ensuring the democratic principle of civilian and political control of the apparatus.
- Both National Security Council and CCS have a common membership which helps in easier decision making and implementation.

Strategic Policy Group (SPG)

- It is mandated to publish National Defense Review- a draft of short term and long-term security threats and defense matters for consideration of NSC.
- The SPG shall be the principal mechanism for inter-ministerial coordination and integration of relevant inputs in the formulation of national security policies.
- The Cabinet Secretary will coordinate the implementation of SPG decisions by the Union Ministries and departments and State governments.

Defence Planning Committee

- It is tasked to recommend policy measures to improve India's defence capability and preparedness, and national security in general.
- To assist in the creation of national security strategy, international defence engagement strategy, roadmap to build a defence manufacturing ecosystem, strategy to boost defence exports, and priority capability development plans.

1.1. Issues in the structure

- **No national security/defence vision:** Ideally, the country should have an overall national security document from which the various agencies and the arms of the armed forces draw their mandate and create their own respective and joint doctrines which would then translate into operational doctrines for tactical engagement.
- **No regular meetings:** Given that the NSC and the Cabinet Committee on Security have exactly the same membership, the former rarely meets which weakens the national security system of the country.

- **No legal power and accountability to parliament:** NSA has no legal powers as per the government's allocation of business rules and it is not accountable to Parliament.
- **Lack of coordination:** There is little conversation between the armed forces and the political class, and even lesser conversation among the various arms of the forces.
- Politicization of the actions of the armed forces.

1.2. Suggestions

- **More accountability and legal formality:** The job of the National Security Adviser needs to be reimagined by making him accountable to the parliament. The **K.C. Pant Task Force** in the late 1990s had recommended the creation of an NSA with the rank of a Cabinet Minister.
- **More powers to NSC:** If the NSC is to be made more useful, the government's allocation of business rules should be amended to give more powers to the NSC and its subordinate organisations, such as the Strategic Policy Group.
- **Increasing professionalism:** Professionalizing the IAS and IDAS cadre and creating a specialized national security cadre with requisite technical expertise.
- **Creation of a coordinating center:** For effective operationalisation of terror related intelligence inputs that was sought to be earlier addressed by setting up a National Counter-Terrorism Centre (NCTC).
- **Manpower policy:** There is need for the manpower policy of the Government for intelligence and security agencies to attract the best talent and to retain them.
- **Comprehensive National Security Strategy:** There is also an urgent need for India to evolve a bipartisan policy on security-governance by developing a Comprehensive National Security Strategy.

Differences between army and paramilitary

- Paramilitary forces are all under Home Ministry while military is under the Defence Ministry.
- In ideal case, Army is deployed mostly for border warfare and sometimes in natural calamities.
- Paramilitary forces are deployed for internal disturbances, insurgency, border protection, elections, VIP protection, terrorism etc.
- Paramilitary's working hours are mostly longer and inflexible than defence personnel.

2. Indian Armed Forces

- The Indian Armed Forces are the military forces of the Republic of India. It consists of three professional uniformed services: The Indian Army, Indian Navy, and Indian Air Force. Additionally, the Indian Armed Forces are supported by paramilitary organisations and various inter-service commands and institutions such as the Strategic Forces Command, the Andaman and Nicobar Command and the Integrated Defence Staff.
- The President of India is the Supreme Commander of the Indian Armed Forces. The Indian Armed Forces are under the management of the Ministry of Defence (MoD) of the Government of India. With strength of over 1.4 million active personnel, it is the world's second-largest military force and has the world's largest volunteer army.
- It also has the third-largest defence budget in the world. As per 2015 Credit Suisse report, the Indian Armed Forces is the world's fifth-most powerful military, whereas the 2020 Global Firepower report lists it as the fourth most-powerful military.

2.1. Integrated Theatre Command

Background

- The Indian armed forces currently have 17 commands. There are 7 commands each of the Army [Northern, Eastern, Southern, Western, Central, South-western and Army Training Command (ARTRAC)].
- Air Force has [Western, Eastern, Southern, South-western, Central, Training and Maintenance]. Navy has 3 commands [Western, Eastern and Southern]. Each command is headed by a 4-star rank military officer.

- In addition, there are 2 tri-service commands [Strategic Force Command (SFC)] and Andaman and Nicobar Command (ANC)] which is headed by rotation by officers from the 3 Services. ANC is an integrated theatre command. The other tri-service command, SFC, looks after the delivery and operational control of the country's nuclear assets. Since it has no specific geographic responsibility and a designated role, it is an integrated functional command, not a theatre command.

What is an Integrated Theatre Command?

- An integrated theatre command envisages a unified command of the three Services, under a single commander, for geographical theatres that are of security concern.
- **A composite and cohesive whole:** Enmeshing the three Services together at different levels and placing them under one commander for execution of operational plans.
- **Efficacy and Efficiency against the enemy:** The integrated theatre commander will not be answerable to individual Services. He will be free to train, equip and exercise his command to make it a cohesive fighting force. The logistic resources required to support his operations will also be placed at the disposal of the theatre commander so that he does not have to look for anything when operations are ongoing.

Arguments for

- Avoids duplication, economy of resources and ensures optimum utilisation of available resources.
- With a single commander, you can have all the military assets under him. This will result in combat efficiency. For example, nations like U.S and China have integrated commands.
- In fact, Chinese border with India has a single command during war times, functions on the principle of consensus. This makes decision making delayed on jointness in operations can become difficult.

Arguments against

- India is not geographically large enough to be divided into different theatres, as resources from one theatre can easily be moved to another theatre.
- We have shortage of military infrastructure. For example, with only 34 out of 45 fighter squadrons present, dividing already scarce resources is infeasible.
- The US has global roles where it can't move assets from one theatre to another. India has no such problems of distance and time.
- There are fears among the smaller services that such a change would diminish their importance and the power of the service chiefs.

Way forward

- Good starting point to the creation of integrated theatre commands would be the appointment of a Chief of Defence Staff or Permanent Chairman, COSC.
- There has been a demand for other integrated functional commands, such as the cyber, aerospace and Special Operations commands, but the government is yet to approve any.
- Creation of integrated theatre commands will require sustained political will. It must be a phased reform. There is a need for greater jointness among the three services, it is not appropriate to move to integrated theatre commands anytime soon.
- a permanent chairman of the CoSC. It was recommended that CDS will also be in charge of the country's tri-Service Commands:
 - Strategic Forces Command (SFC) - dealing with India's nuclear forces.
 - Andaman and Nicobar Command (ANC).

2.2. Chief of Defence Staff (CDS)

- The first proposal for a CDS came from the Kargil Review Committee (KRC), set up in 2000. Later, the Group of Ministers Task Force that studied the KRC Report and recommendations, proposed to the Cabinet Committee on Security that a CDS would be created.
- In 2011, the **Naresh Chandra Committee** on defence and security also suggested a watered-down version of the CDS proposal. **Shekatkar Committee** which submitted its report in 2016 also opined for CDS, having recommendations pertaining to tri-service integration.

Current Structure in India

The Chief of Staff Committee (**CoSC**) consists of Army, Navy and Air Force chiefs.

- It is headed by the senior-most of the three chiefs in rotation till the he retires.
- It is a platform where the three service chiefs discuss important military issues.
- It advises the Defence Minister and through him all the matters relating to military are seen further by Cabinet Committee on Political Affairs.

About CDS

- The post of Chief of Defence Staff created in the rank of a four-star General with salary and perquisites equivalent to a Service Chief. The post is created to
 - Promote jointness in procurement, training and staffing for the Services through joint planning and integration of their requirements.
 - Facilitate restructuring of Military Commands for optimal utilisation of resources by bringing about jointness in operations, including through establishment of joint/theatre commands.
 - Promote use of indigenous equipment by the Services.
- Central government has set 65 as the maximum serving age for the CDS. The Chief of Defence Staff will also head the Department of Military Affairs (DMA), created within the Ministry of Defence and function as its Secretary.
- He would be primus inter pares or first among equals. He is also vested with the authority to provide directives to the three chiefs. CDS will act as the principal military adviser to the defence minister on all tri-services matters. The three Chiefs will continue to advise Defence Minister on matters exclusively concerning their respective Services.
- As the Permanent Chairman of Chiefs of Staff Committee, CDS will perform the following functions:
 - CDS will administer tri-services organisations including those related to Cyber and Space.
 - Be a member of the Defence Acquisition Council (DAC) chaired by the Defence Minister and the Defence Planning Committee headed by National Security Advisor
 - Function as the Military Adviser to the Nuclear Command Authority.
 - Implement the five-year Defence Capital Acquisition Plan (DCAP) and the two-year roll on Annual Acquisition Plans as a follow up of the Integrated Capability Development Plan.
 - Assign inter-Services prioritisation to capital acquisition proposals based on the anticipated budget.
 - Bring about reforms in the functioning of three Services aimed at augmenting combat capabilities of the Armed Forces by reducing wasteful expenditure.

Arguments in favour of CDS

- Better Coordination:** It will improve jointness in military command by integration in projects and resource sharing. For example, during 1962 and 1965, all three segments of the armed forces face difficulties in coordination.
- Unfragmented advice:** The CDS is envisaged as a single-point military adviser to the government.

- **Better defence acquisition:** It would also improve capacity of the armed forces on defence acquisition by removing time and cost overruns.
- **Quick Decision-making during War:** Often during war a difficult decision can only be made by a specially selected defence chief and not by a committee like the CoSC that operates on the principle of the least common denominator.

Challenges

- **Threat to Democratic Process:** It is apprehended that the Defence Services will become too powerful and subvert civilian control over the military with possibilities of a military coup.
- **Status Quo:** The arrangement of Chief of Staff Committee (CoSC) had served us well over the years and hence there is resistance against “unnecessary change”.
- **Resistance within the armed forces:**
 - There is said to be inhibition amongst Service Chiefs over the years that their position would get undermined if the CDS were to be appointed.
 - The feeling among the smaller Services, particularly the Air Force, of Army dominance in defence policy formulation. Some fear that a CDS may lead to a situation like the one that prevailed before 1947, when the Army was the dominant Service.
- **Resistance within Bureaucracy:** There is said to opposition by the civilian bureaucracy as their control over the higher defence set up would be diminished.
- **Ceremonial Post:** There is also a concern that the post may become a ceremonial post without any clear cut roles and responsibilities.

2.3. Women in Combat Role

Women Representation in Armed Forces

- Currently the Army has 3.80 per cent of its workforce as women, the Air Force has 13.09 per cent and the Navy 6 per cent.
- Currently, women are allowed in select areas such as medical, legal, educational, signals and engineering wings of the Army.
- The Indian Air Force is the only armed force in India to put women in combat roles. It has inducted about five women fighter jet pilots, all of whom are presently at various levels of training.
- Recently, the Ministry of Defence has decided to induct women as sailors in the Indian Navy

Arguments in favor of Women in Combat role

- **Increasing gender Representation:** It would be a radical move to gender parity in one of the world's most-male dominated professions. This is the trend globally as well.
- **Military Readiness:** Allowing a mixed gender force keeps the military strong. The all-volunteer forces are severely troubled by falling retention and recruitment rates. Widening the applicant pool for all jobs guarantees more willing recruits.
- **Effectiveness:** The blanket restriction for women limits the ability of commanders in theater to pick the most capable person for the job.
- **Tradition:** Training will be required to facilitate the integration of women into combat units. Cultures change over time and the masculine subculture can evolve too. Many previously masculine professions have been successfully opened to women over the past century.
- **Cultural Differences & Demographics:** Allowing women to serve doubles the talent pool for delicate and sensitive jobs that require interpersonal skills not every soldier has. Having a wider personnel base allows militaries to have the best and most diplomatic soldiers working to end conflict quickly.
- **Career advancement:** As combat duty is usually regarded as necessary for promotion to

senior officer positions, denying female personnel this experience ensures that very few will ever reach the highest reaches of the military.

- **Technology advancement:** Landscape of modern warfare has changed with more sophisticated weapons, greater focus on intelligence gathering and emergence of cyberspace as arena of combat. Brute force, often a reason for non-inclusion of women, is less necessary today.

Arguments against Women in Combat Role

- **Condition in Army:** The field conditions in the Army are much more rugged and proximity to comrades and adversary poses greater challenges.
- **Physical Ability:** Traditionally women are seen physically not suited for certain jobs. The standards of physical fitness have been set to suit men, and women attempting to reach them will over-stretch themselves.
- **Military readiness:** Certain situations such as pregnancy can affect the deployability of a unit when the unit has a disproportionate number of women or is understaffed.
- **Tradition:** Men, especially those likely to enlist, maintain traditional gender roles. Harassment and resentment of the presence of women in a military subculture can likely become a problem.
- **Abuse by Enemy:** Both male and female prisoners are at risk of torture and rape, which raises question regarding safety and dignity of women.

Recently, Government took a decision to induct women for the first time ever in Personnel Below Officer Rank (PBOR) in corps of Military Police in a graded manner to eventually comprise **20 per cent of total Corps**.

All matters concerning the security of the country have to be considered in a dispassionate manner. The whole concept of women's induction in the services, therefore, has to be viewed in a holistic and objective manner and not as a question of conquering the so-called 'last male bastion'. Therefore, there should be a gradual integration of women in the services along with continuous and periodical performance auditing of both male and female soldiers. The army of the future could be all the stronger for being all inclusive.

2.4. Defence Production

Current Status of Defence Production in India

- Although Russia's share of the Indian weapons market has declined from 72% to 56%, India remained the world's second-largest arms importer during 2015-19, with Russia as its largest supplier.
- Estimates suggest the Indian armed forces could spend about \$130 billion to procure defence equipment in the next five years. The share of domestic procurement in overall Defence procurement is about 60 percent.
- The size of India's defence industry is estimated to be Rs 80,000 crore. "While the contribution of the public sector is estimated to be Rs 63,000 crore, the share of private sector has steadily grown to Rs 17,000 crore over the years.
- **Defence exports:** In 2018-19, they were worth Rs 10,745 crore, a growth of over 700 per cent since 2016-17. India exports to more than 40 countries.
- The defence industry is ably supported by a strong base of over 8,000 MSMEs that provide strength and vibrancy to the defence supply chain.

Challenges in improving Defence Production

- Absence of designing and development capabilities, resulting in associated lack of design rights and patents in defence technology.
- Limited participation of the private sector as seen from the aforesaid data.

- Lack of industry-academia-defence linkage leading to a disconnect between industrial capabilities & academic research and defence needs.
- Defence procurement is a highly specialized activity that requires a prior estimation of the development and production timelines involved, which is extremely difficult.
- India's export market is very limited vis-à-vis the size of its domestic industry.

Initiatives taken to boost defence Production

- **Naval Innovation and Indigenisation Organisation (NIIO):** The NIIO puts in place dedicated structures for the end users to interact with academia and industry towards fostering innovation and indigenisation for self-reliance in defence. It was accompanied by a compendium of Indian Navy's Indigenisation perspective plans titled 'SWAVLAMBAN'.
- **SRIJAN:** It is a 'one stop shop online portal that provides access to the vendors to take up items that can be taken up for indigenization. There are over 3000 unique items with a value of over Rs 10,000 Crore that are available through the portal.
- **Draft Defence Production and Export Promotion Policy (DPEPP) 2020:** Recently, Ministry of Defence proposed Draft Defence Production and Export Policy 2020 with an aim to double India's defence production in five years.

15th Finance Commission (Financing of security-related expenditure)

- The ToR of the Commission required it to examine whether a separate funding mechanism for defence and internal security should be set up and if so, how it can be operationalised.
- In this regard, the Commission intends to constitute an expert group comprising representatives of the Ministries of Defence, Home Affairs, and Finance.
- The Commission noted that the Ministry of Defence proposed following measures for this purpose:
 - Setting up of a non-lapsable fund,
 - Levy of a cess,
 - Monetisation of surplus land and other assets, (iv) Tax-free defence bonds, and
 - Utilising proceeds of disinvestment of defence public sector undertakings.
 The expert group is expected to examine these proposals or alternative funding mechanisms.

3. Central Armed Police Forces

- There are five Central Armed Police Forces (CAPFs) namely Border Security Force (BSF), Central Industrial Security Force (CISF), Central Reserve Police Force (CRPF), Indo-Tibetan Border Police (ITBP), Sashastra Seema Bal (SSB) and one Central Paramilitary Force (CPMF) namely Assam Rifles (AR) under the Ministry of Home Affairs.
- Out of these, **AR, BSF, ITBP and SSB** are the 'Border Guarding Forces' while **CRPF** is deployed to assist the Civil Administration under the State Governments / UT Administrations in matters relating to maintenance of Public Order, internal security and counter insurgency. The Rapid Action Force (**RAF**) and Commando Battalion for Resolute Action (**CoBRA**) are specialized wings of the CRPF to deal with the riots and Left Wing Extremism / insurgency respectively.
- **CISF** provides security and protection to vital installations of national / strategic importance including Public Sector Undertakings (PSUs), airports, atomic power plants, space organizations, industrial units, important national museums, Government buildings in Delhi and other important sensitive organizations.
- In addition, National Security Guard (**NSG**) is a specialized strike Force trained in the counter terrorism and anti-hijacking operations. It is also entrusted with the task of securing high risk VIPs and acts as sky marshal for securing domestic and international flights.

3.1. Border Security Force (BSF)

Student Notes:

- Border Security Force was raised in 1965 with strength of 25 Battalions and 03 Coys. Over the years, the Force has grown in size and as on date, it has 192 Battalions including 03 NDRF Battalions.
- The tasks of the BSF are divided as follows:

1. Peace time:

- a) Promote a sense of security among the people living in the border areas.
- b) Prevent trans border crimes, unauthorized entry into or exit from the territory of India.
- c) Prevent smuggling and any other illegal activity.

2. War Time:

- a) Holding ground in less threatened sectors so long as the main attack does not develop in a particular sector and it is felt that the local situation is within the capability of BSF to deal with. The BSF units can continue to remain deployed in particular sector even in a war situation to release the Army for offensive tasks. In the event of a major attack developing, which is not within the capacity of the BSF to deal with, the Army can be expected either to reinforce the BSF with Artillery or other support, or relieve the BSF from its role in the particular sector
- b) Protection of vital installations particular air-fields against enemy commandoes/para troopers or raids. The role can be entrusted to the BSF Units which are placed under the Army's operational Control.
- c) Providing extension to the flanks of main defence line by the holding of strong points in conjunction with other units.
- d) Limited Aggressive action against para military or irregular forces of the enemy within the overall plan of the Armed Forces.
- e) Performing special tasks connected with intelligence including raids. These are tasks which might be entrusted to BSF Units by the Army in a war situation according to local necessity. It would, however, be expected that the state of training and equipment of the particular BSF Units would be kept in view in assessing their adequacy for the tasks.
- f) Acting as guides in an area of responsibility where routes are known. This is a task which the BSF should be able to perform.
- g) Maintenance of law and order in enemy territory administered under the control of Army. Normally, ordinary civil police force would be utilised for this task but the BSF could be used to supplement the civil police or to act in lieu thereof in a situation where civil police is not readily available.
- h) Provision of escorts.
- i) Guarding of prisoners of war cages.
- j) Assistance in control of refugees. It is the intention to utilise civil police force and armed Home Guards etc. for these tasks but again depending upon local exigencies, the BSF might be entrusted with these tasks.

Various Achievements of BSF

- Its operational responsibility is spread over 6,386.36 km of International Border with Pakistan and Bangladesh. It is also deployed on the Line of Control (LoC) in J&K under the operational control of the Army.
- In its fight against Militancy/Left Wing Extremism, the BSF apprehended and got militants/Maoists surrendered apart from effecting seizure of arms and ammunition.
- The Border Security Force has one Formed Police Unit deployed with United Nations Stabilizations Mission in Democratic Republic of Congo (MONUSCO)
- The BSF troops are performing their duties in exemplary manner to ensure the UN mandate in all spheres of their duties.

- k) Anti - infiltration duties in specified area. This is an important responsibility which will have to be performed by security forces. The exact responsibility of the BSF in this matter is still under consideration and separate instructions are expected to be issued.

3.2. Central Industrial Security Force (CISF)

- Raised in the year 1969, Central Industrial Security Force (CISF) is providing security cover to 345 units including 61 domestic and international airports and fire protection cover to 102 Industrial Undertakings. In a span of four decades, the Force has grown manifold.
- With globalization and liberalization of the economy, CISF is no longer a PSU centric organization. Instead, it has become a premier multi-skilled security agency of the country with the mandate:
 - a) To provide security to the strategic establishment, including the Department of Space, the Department of Atomic Energy, the Airports, the Delhi Metro, the ports, the historical monuments and the basic areas of Indian economy such as petroleum and natural gas, electricity, coal, steel and mining.
 - b) CISF is providing protection to some private sector units and important government buildings in Delhi.
 - c) Presently, CISF is also providing security to the protected persons classified as Z Plus, Z, X, Y.
 - d) The specialized task of airport security was assigned to CISF in the year 2000 in the wake of hijacking of Indian Airlines Flight IC-814 to Kandahar.
- CISF is currently providing security cover to Atomic Power Plants, Space Installations, Defence Production Units, Mines, Oil Fields and Refineries, Major Sea Ports, Heavy Engineering, Steel Plants, Fertilizer Units, Airports, Hydro Electric/Thermal Power Plants, sensitive Government Buildings and Heritage Monuments (including the Taj Mahal and Red Fort) and important Private Sector Units. CISF has also been mandated to provide protection to the VIP protectees of various categories across the country.

Various achievements of CISF

- CISF is one of the largest Fire Protection Service providers in the country. It provides fire protection and fire safety coverage to 102 Public Sector Undertakings with the sanctioned strength of 7716 personnel (in 2018-19).
- During the year 2018-19, CISF recovered Lost and Found property worth ₹70.03 crore at the airports, of which property worth ₹15.39 crore was handed over to the passengers while property worth ₹55.64 crore was handed over to the Airport Operators.
- CISF has caught several crores of goods in the last 5 years in smuggling cases at various airports.
- The CISF was inducted in Delhi Metro Rail Corporation (DMRC) is providing security to 239 Metro Stations across the country.

3.3. Central Reserve Police Force (CRPF)

- Initially raised as the 'Crown Representative Police' in 1939 at Neemuch, Madhya Pradesh, the Force was rechristened as Central Reserve Police Force (CRPF) after Independence. Since then, the Force has grown in its strength and capabilities.
- The mission of the Central Reserve Police Force shall be to enable the government to

Various achievements of CRPF

- CRPF is the only Para Military Force in the Country which has 06 Mahila (Ladies) Battalions.
- A unique New Financial Management System (NFMS) has been developed with latest technology to cater to provisioning / procurement needs. It is being extensively used in CRPF.
- Bhavishya is being extensively used by all Drawing & Disbursing Officers (DDOs), personnel proceeding on retirement and PAO. The tracking of payment of pensionary benefits has become very effective with the use of Bhavishya. This is a useful mechanism wherein status of all pension cases can be monitored centrally.

maintain Rule of Law, Public Order and Internal Security effectively and efficiently, to Preserve National Integrity and Promote Social Harmony and Development by upholding supremacy of the Constitution.

- Broad duties being performed by the CRPF are:
 - a) Crowd control
 - b) Riot control
 - c) Counter Militancy / Insurgency operations.
 - d) Dealing with Left Wing Extremism
 - e) Overall co-ordination of large scale security arrangement specially with regard to elections in disturbed areas.
 - f) Fighting enemy in the event of War.
 - g) Participating in UN Peace Keeping Mission as per Govt. policy.
 - h) Rescue and Relief operations at the time of Natural Calamities and disasters.

Rapid Action Force in the CRPF

- In 1991, 10 Battalions of CRPF were reorganized and converted into 10 Battalions of 04 Companies each of Rapid Action Force (RAF). The personnel in RAF are trained and equipped to be an effective strike Force in communal riots and similar situations.
- These Battalions are located at 10 communally sensitive locations across the country to facilitate quick response in case of any such incident. All these Battalions are organized on an unattached pattern and are working under the supervision of an Inspector General.

Commando Battalions for Resolute Action (CoBRA) In CRPF

- CoBRA is a specialized force which has been raised to fight Maoists and insurgents in Left Wing Extremism affected areas. Also known as Jungle Warriors, they are selected amongst the CRPF's personnel based on age and other physical attributes.
- 10 CoBRA Battalions were raised between 2008-11, they have been trained, equipped and deployed in LWE affected States of Chhattisgarh, Bihar, Orissa, Jharkhand, Madhya Pradesh, Maharashtra, West Bengal, Andhra Pradesh as well as Assam & Meghalaya. It is one of the elite Commando units in the country trained to survive, fight and win in the jungles. A CoBRA School for specialized training in Jungle Warfare & Tactics has also been in operation and providing exclusive training to the force personnel.

3.4. Indo-Tibetan Border Police Force (ITBP)

- ITBP was raised in the wake of Chinese aggression in 1962 with a modest strength of 04 Battalions. Originally conceptualized as an integrated **"guerrilla-cum-intelligence-cum-fighting Force"** self contained in supplies, communication and intelligence collection. It has evolved with passage of time into a conventional border guarding Force.
- Today, ITBP guards 3,488 kms of Indo-China Border and is manning 178 Border Out Posts (BOPs) with altitudes ranging from 9,000 feet to 18,750 feet in the Western, Middle and Eastern Sector of the Indo-China Border from Karakoram Pass in Ladakh to Jachep La in Arunachal Pradesh. 8 ITBP Battalions are deployed in Maoist affected areas of Chhattisgarh.
- The mandate of the ITBP includes :
 - a) Vigil on the northern borders, detection and prevention of border violations, and promotion of the sense of security among the local populace.
 - b) Check illegal immigration, trans-border smuggling and crimes.
 - c) Security to sensitive installations, banks and protected persons.
 - d) Restore and preserve order in any area in the event of disturbance.

Multifarious facets of the Force

- ITBP Battalions are also providing security to various installations of national importance throughout the country, which includes Rashtrapati Bhawan, Vice President House, Rumtek Monastery (Sikkim), Tihar Jail (N Delhi), LBSNAA (UKD) and various sensitive installations in Chandigarh (Punjab) & Jammu (J&K).
- In view of increased Maoist activities in various parts of the Country, ITBP was inducted in District Rajnandgaon (Chhattisgarh) in December 2009 to thwart naxal menace. At present, 8 Bns are deployed in Rajnandgaon, Narayanpur & Kondagaon Districts of Chhattisgarh.
- At present, a well equipped and highly trained team of elite commandos are deployed in Afghanistan for providing security to the Indian Embassy in Kabul and 4 Consulates General.
- A National Centre for UNCIVPOL training has been setup at ITBP Camp, Tigri and New Delhi for providing systematic training to Indian Police Officers for deployment in UN Mission.
- ITBP provides communication, security and medical cover to the yatries from Gunji to Lipulekh Pass and back to Gunji in co-ordination with MEA and Kumaon Mandal Vikas Nigam. Since 2015, the Kailash Mansarovar Yatra is also being conducted from Nathula route and ITBP is providing similar assistance for pilgrims in this route also.
- In a historic rescue and relief operation in 2013, the ITBP saved 33,009 pilgrims from grave situation from char dham yatra routes in Uttarakhand in the 15 day rescue effort by the Force. 15 Himveers laid down their lives on 25th June, 2013 in a Helicopter crash during this rescue operation.
- ITBP conducts a large number of medical civic action programmes in remote border and terrorist/naxal affected areas to provide free and expert medical, health and hygiene care to the civilian population in remote villages.
- ITBP is at the forefront of movement for the preservation of Himalayan environment & ecology. ITBP has taken up in a big way the task of greening the Himalayan regions especially in Inner Himalayas. Being the only human presence on forward areas, it has taken on itself the task of maintaining the delicate balance of flora and fauna.

Various achievements of ITBP

- ITBP has also excelled in UN peacekeeping operations. The Force personnel were deployed for peacekeeping operations in Angola, Namibia, Cambodia, Bosnia & Herzegovina, Mozambique and Kosovo.
- ITBP is also providing security, communication and medical cover to the pilgrims during the Annual Kailash Mansarovar Yatra since 1981.
- Being the first responder for natural Disaster in Himalayas, ITBP was the first to establish 7 Regional Response Centres and carried out numerous rescue and relief operations in all disaster situations, which took place in our areas of responsibility as well as other parts of the country.
- It established a 10,000 bed quarantine center to tackle COVID-19 in Chhatarpur, New Delhi, the largest quarantine center in the world.

3.5. Sashastra Seema Bal (SSB)

- The Special Service Bureau which was precursor to the present Sashastra Seema Bal was set up in early 1963 in the wake of India-China conflict of 1962 to build up the morale and capability of the border population against threats of subversion, infiltration and sabotage from across the border.
- It became a border guarding Force in 2001 under the Ministry of Home Affairs and was rechristened as "Sashastra Seema Bal" with an amended charter of duties. It has been given the border guarding responsibilities along the Indo-Nepal and Indo-Bhutan borders.
- SSB is now spread along the International border across Uttarakhand, UP, Bihar, West Bengal, Sikkim, Assam and Arunachal Pradesh. SSB's present charter of duties is to:
 - a) Safeguard the security of assigned borders of India and promote sense of security among the people living in border areas.
 - b) Prevent trans-border crimes, smuggling and any other illegal activities.

Student Notes:

- c) Prevent unauthorized entry into or exit from the territory of India.
- d) Carry out civic action programme in the area of responsibility.
- e) Perform any other duty assigned by the Central Government.
- SSB is also engaged in Counter-Insurgency operations in Jammu and Kashmir and Anti-naxal operations in Jharkhand, Bihar and Chhattisgarh. It is also performing internal security duties i.e. Election duties and law and order duties in different parts of India.

3.6. National Security Guard (NSG)

- The National Security Guard was raised in 1984 to combat terrorism. This Strike Force is a unique amalgam of selected personnel from the Army, the Central Armed Police Forces and State Police Forces.
- After the 26.11.2008 terror attack in Mumbai, four regional Hubs (Mumbai, Chennai, Hyderabad and Kolkata) were established to reduce the response matrix and to ensure Pan-India footprint. In 2016, the fifth Hub came into existence in Gandhinagar (Gujarat).
- As a Federal Contingency Force, NSG, with its ethos of excellence, has to its credit several successful counter-terrorist operations. Over the years, the NSG has acquired an enviable reputation of 'Best Amongst Best' by virtue of its high standards of training and operational efficiency. For its dedication, valor and surgical operational capabilities, Commandos of this Special Force have earned the moniker 'Black Cats'.
- The specific objectives of the NSG commandos are:
 - a) Neutralisation of specific terrorist threats.
 - b) Handling hijacking situations in the air and on the land.
 - c) Engaging and neutralising terrorists in specific situations.
 - d) Bomb disposal (search, detection and neutralisation of IEDs).
 - e) Post Blast Investigation (PBI).
 - f) Rescue of hostages in kidnap situation.
- The National Security Guard Commandos are trained for high-risk tasks like counter-terrorism, counter-hijack and bomb disposal operations. They are also assigned the task of providing 'close protection' to designated protectees.
- **Immediate Back Up Security Operations (IBUS)** - NSG Task Forces (TFs) are deployed for IBUS operations as part of security arrangements during the events of national importance, including Republic Day and Independence Day celebrations, to thwart any terror strike. During the year, 49 events have been covered by the NSG.
- **Operation BLACK QUARRY & Render Safe Procedure (RSP)** – Under Operation Black Quarry, NSG Bomb Disposal Teams carried out the Anti Sabotage Checks at important venues, attended by VVIPs and places of importance where national & international summits are conducted. RSP was also carried out at the locations during the events of national importance which are visited by VVIPs including the President, Prime Minister and visiting foreign delegates.

Controversies

- Delayed response to the crisis has been the major criticism leveled against the force. For example, NSG took 10 hours to respond to the 26/11 crisis.
- During its Operation Ashwamedh deployment, the NSG was stuck in traffic for two hours during its drive to Palam Airport to board an airline to get to Gujarat.

Suggestions

- Need for an internal and effective transportation infrastructure for the NSG.
- Deployment of the force in cities deemed most vulnerable. There is a need for faster modernisation and expansion of the NSG.

3.7. Special Protection Group (SPG)

- The Special Protection Group (SPG) was raised in 1985 with the intention to provide proximate security cover to the Prime Minister, former Prime Ministers and their

immediate family members. SPG officers are ingrained in high leadership qualities, professionalism, knowledge of proximate security and inculcate the culture of leading from the front.

- In March 1985, the **Birbal Nath Committee** submitted its recommendations of raising a Special Protection Unit (SPU). On 30 March 1985, the President of India created posts for the unit under the Cabinet Secretariat. The SPU was then re-christened Special Protection Group and the post of Inspector General of Police was re-designated as Director.
- The "general superintendence, direction and control" of the SPG is exercised by the Central Government. The head of the force, called a Director, designated as Secretary in the Cabinet Secretariat is responsible for "the command and supervision" of the force. The director of the SPG since its inception has been an officer from the Indian Police Service. Personnel of the Special Protection Group are drawn from Central Armed Police Forces and Railway Protection Force, but the officers are from the IPS or CRPF.

Special Protection Group Amendment Bill, 2019

- The Bill amends the Special Protections Group Act, 1988. The Act provides for the constitution and regulation of the Special Protection Group (SPG) to provide security to the Prime Minister, former Prime Ministers, and their immediate family members.
- Under the Act, the SPG provides security to the Prime Minister and his immediate family members. It also provides security to former Prime Ministers and their immediate family members for a period of one year from the date on which they cease to hold the office. Beyond this period, the SPG security is provided based on the level of threat as decided by the central government. The threat must: (i) emanate from a military or terrorist organisation, and (ii) be of a grave and continuing nature.
- The Bill amends this provision to state that the SPG will provide security to the Prime Minister, and members of his immediate family residing with him at his official residence. It will also provide security to any former Prime Ministers, and his immediate family members residing with him at the residence allotted to him. This security will be provided for a period of five years from the date on which he ceases to hold the office of Prime Minister.
- The Act provides that if the SPG security is withdrawn from a former Prime Minister, it will also be withdrawn from his immediate family members, unless the level of threat faced by the immediate family member warrants such security. The Bill removes this condition to state that if the SPG security is withdrawn from a former Prime Minister, it will also be withdrawn from his immediate family members.

3.8. Issues faced by the Armed Police Forces

Recently, Standing Committee on Home Affairs (Chairperson: Mr. P. Chidambaram) submitted its report on Working Conditions in Central Armed Police Forces. It identified the following issues:

- **Bureaucratisation of Armed Forces:** Majority of the higher posts of the top hierarchy are filled by deputations (IPS officers), who most of the times failed to take adequate steps for the welfare of the cadre officers.
- **Higher Vacancies and lack of promotional prospects:** There is an acute stagnation in the all cadre of CAPFs, which in turn is affecting the morale and efficiency of forces and reflect lack of foresight, planning, and proactive estimation of future vacancies.
- **Absence of a robust in-house grievance redressal mechanism,** which prompted a Soldier from BSF in 2017 to use Social Media to raise his concerns.
- **Ineffective Coordination Between State Police and The CAPF Leadership:** States are over-dependent on the CRPF for maintaining various law and order situations. The continuous deployment of training companies affects the operational efficiency of the CRPF, as well as denies them training and rest.
- **Poor Infrastructure:** Lack of electricity at several installations of Border Out Posts (BOPs), seriously affects the working conditions of the personnel as well as operations of the

CAPFs.

- An inquiry on a 2010 incident in Dantewada, found that the force's camp lacked basic facilities, had minimal security and deplorable living conditions.
- These affect the overall moral of the forces leaving them psychologically vulnerable. Often incidences of suicides and shooting down of the colleagues come in the light.
- **Road connectivity and mobility:** There is a delay in execution of road projects which affect mobility of personnel. This happens due to delay in obtaining forest/wildlife clearances, hard rock stretches, limited working season, difficulties in availability of construction materials, etc.
- **Shortages of Arms and Ammunition:** There are inordinate delays in procurement of combat-ready equipment and inadequate medical facilities, especially when personnel are deployed in hostile environment.

Recommendations

- **Ending IPS hegemony:** The nature of duty of CAPF is more similar to that of the Armed Forces and it would make more sense to bring more officers from the Armed Forces on deputation. However, MHA has contested the same by justifying that the presence of IPS officers in every CAPF increases inter-departmental coordination between various CAPFs and State and therefore IPS officers are best suited to lead and provide supervisory directions to any CAPFs in an effective, efficient and impartial manner.
- **Modernization of the Force** must be given utmost priority as this Force not only has to face any enemy from across the border but also vagaries of nature.
- Issue specific Counter Plan rather than One-Size Fits All Approach:
 - For J&K: MHA should adopt a multi-pronged strategy that prevents youth from joining militancy, curbs their financing, and simultaneously launch counter-insurgency operations.
 - For Left Wing Area: MHA should make efforts to procure mine-resistant vehicles. This could be done through import or domestic manufacturing under the 'Make in India' programme.
- Expedite **Cadre Review** of these forces as it's essential to maintain their organizational structure and ensures completion of project in a time-bound manner.
- **Setting up Dedicated Research and Development (R&D) Wing:** It recommended that due to the unique issues faced by the CRPF, such as large size and areas of deployment, creation of a dedicated R&D unit of its own should be explored, to deal with issues peculiar to the CRPF such as Improvised Explosive Devices (IEDs), and bullet proofing of vehicles.

3.9. Police Reforms

- Police organization is based on the Police Act of 1861. Police is subject matter under the Seventh Schedule of Constitution of India in State list. However, Constitution provide executive and legislative division of power between centre and state.
- It was established under authoritarian regime. Thus, the growing complexity, modernisation & democratization in Indian Society as well as changing nature of crime calls for Structural, Functions and Personnel reforms in police organisation. Also, lack of law and order also fails to attract investment which is essential to promote economic growth.

Issues associated with Police Reforms

- **Modernisation of Police forces:** The fund allocation under the modernisation scheme has been very low in the last few years.
- **Overburdened Police Force:** The crime per lakh population had increased by 28% over the last decade (2005-2015). Whereas the actual strength of police force in various states is 137 police per lakh people, which is against the sanctioned strength and United Nation recommend strength of 181 police per lakh and 222 police per lakh people respectively.

- **Quality of Investigation:** The poor quality of investigation of crime lead to only 47 % conviction rate for crimes (The Law Commission 2012). The police lack training and expertise required to conduct professional investigations. They also have insufficient legal knowledge and inadequate forensic and cyber infrastructure.
- **Police Accountability:** Control over police by political executive has to lead to abuse of police personnel, its criminalisation and interference with their decision-making authority.
- **Lack of Infrastructure:** There were considerable delays in procuring new infrastructure like vehicles. Basic facilities like Forensic labs and Fingerprint bureaus are still in shortage. The training academies in most of the states have very poor infrastructure and Police training to use modernized equipments and processes was low.
- **Police-Public Relation:** The perception of police among the people is of trouble creator rather than trouble shooter. On the other hand police personnel relied upon community for being the witness and informers in crime investigation.
- **Other issues**
 - Recently, NHRC noted that 206 cases of encounters occurred in the last 12 year.
 - Lack of proper training of the frontline officers regarding soft skills such as inter-personal communication skills etc.
 - Perception of force as being partisan, politicised, and generally not very competent. Nothing confirms this more than the frequent demand for probes by the CBI into crimes which can be handled by Criminal Investigation Departments.

Modernisation of Police Forces scheme

- The MPF scheme was initiated in 1969-70, the fund allocation has been double in recent Cabinet Declaration.
- Fund will be utilised for internal security, law and order, women security, availability of modern weapons, mobility of police forces, logistics support, hiring of helicopters, upgradation of police wireless, National Satellite Network, CCTNS project, Eprison project etc.
- Police Stations will be integrated to set up a national data base of crime and criminals' records. It will be linked with other pillars of criminal justice system such as 'prisons, forensic science laboratories and prosecution offices.
- Following the recommendations of the Fourteenth Finance Commission, the MPF scheme would be delinked from central funding from 2015-16 onwards. States were expected to finance the scheme using their own resources.
- It also provides for setting up of a State-of Art forensic science laboratory in Amravati, Andhra Pradesh and upgradation of Sardar Patel Global Centre for Security, Counter Terrorism and Anti Insurgency in Jaipur and Gujarat Forensic Science University in Gandhi Nagar.

Intended Benefits

- Aimed to achieve SMART Policing i.e. Strict & Sensitive, Modern & Mobile, Alert & Accountable, Reliable & responsive, Tech savvy & Trained.
- It will be catalyst for security challenges of Left Wing Extremism, Jammu and Kashmir and various fraction groups of North East.
- Upgradation of police infrastructure, forensic science
- laboratories, institutions and the equipment available with them to plug critical gaps in the criminal justice system.
- Equipping police with latest equipment will reduce dependence on paramilitary troops.

Supreme Court's observations in Prakash Singh Case

- Establishment of three institutions for police organisation
 - State Security Commission** to prevent unwarranted influence or pressure on the police by state government.
 - Police Establishment Board** to decide transfers, postings, promotions and other service related matters of police officers.

- iii. **Police Complaints Authority** to inquire into public complaints against police officers regarding serious misconduct.
- **Director General of Police (DGP)** should be selected from three senior-most officers of the state empanelled by the Union Public Service Commission and must have a minimum two-year tenure.
- Officers in key positions in the field (Inspector General in charge of Range, Station House Officer) must be given a two-year tenure.
- In order to improve the quality of investigation, the investigating police must be separated from law and order police.

Conclusion

Law and order, Terrorism, Left Wing Extremism, cybercrime, are such threats which call for a strong and efficient police for internal security. Thus, overarching police reform is need of the hour in the light of complex security threats. Some more steps that can be taken are:

- **Boosting capacity and infrastructure** – including increase in the number of police personnel, improvement in training and service conditions such as improving the infrastructure, working hours, housing facilities etc.
- **Undertaking administrative reforms** - including separation of investigation from law and order, specialized wings for Social and Cyber Crimes, restricting the police to core functions, setting up authorities as directed by the Supreme Court, strengthening state machinery and linking prosecution with police.
- **Undertaking technological reforms** - including modernization of the control room, fast tracking the Crime and Criminal Tracking Network and System (CCTNS), pushing for National Intelligence Grid (NATGRID) and pushing for incorporation of new technology into policing.
- **Changes in recruitment** - Upgrading the quality of recruits and ensuring dedication and honesty in the day-to-day delivery of service to the public is equally important.
- **Role of Leadership** - All police ills are not only due to political interference in police routine. The police leadership is also responsible for improving performance.
- Replicating Model police Act – Centre should ensure that Model Police Act is being followed by the states.
- **Adopting Evidence based Policing** - It is a research based approach which involves identifying 'hot spots' of crime, spotting problematic individuals in a community and making decisions about what works in policing, which practices and strategies accomplish police missions most cost-effectively.

Status of implementation of SC directions

As per Justice Thomas committee, set up by court to monitor the implementation of court's directions:

- State Security Commissions had been set up in all states except Jammu and Kashmir and Odisha but in some states, it was dominated by government and police officers.
- The **composition and powers** of the State Security Commissions and the Police Establishment Boards were at variance with the Supreme Court directions.
- Many of these Commissions did not have the power to issue binding recommendations.
- Duration of Directors and Inspectors-Generals (IGs) were not fixed and thus, they were being removed midway on the most untenable and imaginary grounds. e.g **T.P. Senkumar case** in Kerala.
- The Supreme Court itself has expressed its inability to ensure implementation in the face of noncompliance by so many states

4. Central Paramilitary Forces (CPMF)

4.1. Assam Rifles

- Fondly known as "Friends of the North East People", the Assam Rifles was raised as "Cachar Levy" in 1835 and is the oldest Para Military Force in the country. It has its Headquarters at Shillong and the Force is completely deployed in the North East in Counter Insurgency role and for guarding the Indo-Myanmar Border, spread over 1,643 kms.

- Apart from excelling in operations, the AR is also 'Acting East' in pursuance of Govt. goals by conducting well planned and focused programmes for the upliftment of the people of the NE through numerous Civic Action Plans. These projects are speedily executed so that maximum benefits are reaped by the local populace, especially those located in the remote and inaccessible area.
- The important programmes / activities includes construction of Community Halls, Provision of Water Supply Schemes, establishment of Vocational Training Centres, upliftment of Rural Schools, National Integration Tours for students, Free Medical Camps, Awareness Programmes, Sports Activities for the youth etc.
- AR has earned an excellent name for the country by their correct and prompt response to all emergencies, outstanding working relation with all UN staff and local police/ Govt. officials and their respectful and the gentlemanly behavior with the local populace.

4.2. Indian Coast Guard

- Indian Coast Guard (ICG) came into existence on February 1, 1977 with two frigates and five patrol boats transferred from the Indian Navy and was formally instituted on August 19, 1978. Since its inception, the service has acquired a wide range of capabilities, both surface and airborne, to undertake the assigned tasks during peace time and to supplement the efforts of the Indian Navy.
- The duties and functions of Indian Coast Guard are as follows:
 - a) Ensuring the safety and protection of the artificial islands, offshore terminals, installation and other structures and devices in any maritime zone.
 - b) Provide protection to the fishermen including assistance to them at sea while in distress.
 - c) Taking such measures as are necessary to preserve and protect the Marine Environment and to prevent and control marine pollution.
 - d) Assisting the Customs and other authorities in Anti-Smuggling Operations.
 - e) Enforcing the provision of such enactments as are for the time being in force in the maritime zones; and
 - f) Such other matter, including measures for the safety of life and property at sea and collection of scientific data, as may be prescribed.

Djibouti Code of Conduct (DCOC)

- It is also known as the Code of Conduct concerning the Repression of Piracy and Armed Robbery against Ships in the Western Indian Ocean and the Gulf of Aden. It was established under the International Maritime Organization (IMO).
- Under the code, the signatories agreed to co-operate to the fullest possible extent in the repression of piracy and armed robbery against ships.

Jeddah Amendment: An amendment to DCOC was made in 2017 to cover other illicit maritime activities, including human trafficking and illegal, unreported and unregulated fishing and to build national and regional capacity to address wider maritime security issues, as a basis for sustainable development of the maritime sector.

5. Security Agencies in India

5.1. Research and Analysis Wing (RAW)

- India's external intelligence agency, the Research and Analysis Wing (RAW), has long faced allegations of meddling in its neighbors' affairs. Founded in 1968, primarily to counter China's influence, over time it has shifted its focus to India's other traditional rival, Pakistan.
- Over the last forty years the organization has expanded its mandate and is credited with greatly increasing India's influence abroad. RAW

Controversies with RAW

- Lack of transparency and accountability to the Indian citizens in its functioning. It is not covered under the RTI.
- Suspicion of corruption among the senior officials due to lack of transparency.
- Support to Baloch Separatists has been criticized by external states.

had two priorities after its formation: the organization worked to strengthen its capability for intelligence gathering on Pakistan and China and for covert action in East Pakistan (now Bangladesh).

- Some experts say that RAW's efforts in East Pakistan, which was created from the partition of the Indian state of Bengal and completely separated from the rest of Pakistan, was aimed at fomenting independence sentiment. Over time, RAW's objectives have broadened to include:
 - Monitoring the political and military developments in adjoining countries, which have direct bearing on India's national security and in the formulation of its foreign policy.
 - Seeking the control and limitation of the supply of military hardware to Pakistan, mostly from European countries, the United States, and China.
- Experts say RAW's powers and its role in India's foreign policy have varied under different prime ministers. RAW claims that it contributed to several foreign policy successes:
 - a) The creation of Bangladesh in 1971;
 - b) India's growing influence in Afghanistan;
 - c) The northeast state of Sikkim's accession to India in 1975;
 - d) The security of India's nuclear program;
 - e) The success of African liberation movements during the Cold War.

Suggested Reforms

- The most common suggested reform pertaining to RAW is the call for the institution of an Oversight committee to maintain awareness of RAW's capabilities, limitations, and financial expenditures.
- Proponents of establishing intelligence oversight claim that these agencies need to have accountability to maintain effectiveness and to avoid the temptations of corrupt practices.

5.2. Intelligence Bureau (IB)

- The Intelligence Bureau (IB), considered the oldest surviving intelligence organization in the world, serves as India's internal security agency responsible for mitigating domestic threats. IB technically falls under the authority of Ministry of Home Affairs. However, the IB director is part of the Strategic Policy Group as well as the Joint Intelligence Committee (JIC) of the National Security Council, and can report directly to the prime minister.
- The Intelligence Bureau, as the internal security and intelligence organization, is tasked with intelligence collection and dissemination and acts as a security advisor to the state and federal governments as well. Personnel are not recruited into IB directly; rather they come from law enforcement agencies throughout India, with Indian Police Service cadres making up the bulk of the organization. Below is a list of tasks that the IB is known to be involved in:
 - a) **Counterterrorism:** IB collects intelligence inside India, which includes keeping track of individuals, groups, and organizations suspected of terrorist ties, monitoring movements and communications of known individuals, cultivating sources, and analyzing and disseminating collected information. IB's counter terrorism mandate also involves countering separatist and violent political movements in the northeast and elsewhere.
 - b) The **state Subsidiary Intelligence Bureaus** play an important role in IB's efforts, especially in the northeast. IB also heads a Multi-Agency Center to coordinate and share intelligence with different agencies and branches of government.

Controversies

- The ability of the bureau to wiretap phones and listen in on almost all forms of communication without the need for a warrant is a cause of concern for many.
- Allegations of political surveillance due to lack of clear oversight mechanisms.
- Turf wars between RAW and IB results in intelligence sharing getting caught up in bureaucratic red tape.

- c) **Counterintelligence:** IB is responsible for effectively countering foreign and hostile intelligence organizations operating in India. Almost all of the counterintelligence work inside India is conducted by IB. While not much is known about IB's work, a report indicates that the Indian intelligence community has incorporated remote viewing techniques and satellite technologies in its counter-intelligence efforts.

Suggestions

- The Task Force on National Security, lead by former cabinet secretary Naresh Chandra, has recommended the appointment of a National Intelligence Coordinator (intelligence czar) to oversee all the various intelligence agencies and facilitate effective coordination.
- Restricting IB to national security tasks and refrain from political surveillance.
- Delineate the geographical reach of IB and RAW to collect intelligence.

- d) **Border Intelligence Collection:** India shares porous land borders with Pakistan, Nepal, Bangladesh, Bhutan, Burma, and China. Following the 1951 Himmatsinhji Committee's recommendation, IB tasked with intelligence collection in the border areas. In this area IB works closely with border protection forces.
- e) **VIP Security:** IB's VIP security unit is charged with the safety of VIPs. While it is not known whether IB provides actual physical bodyguards, it does provide a threat framework and security guidelines ("blue book") to be used for the actual protection of VIPs. It is assumed that IB shares known threats and intelligence with and advises the Special Protection Group, Delhi police, and other state police organizations.

5.3. Narcotics Control Bureau (NCB)

- The National Policy on Narcotic Drugs and Psychotropic Substances is based on the Directive Principles, contained in **Article 47** of the Indian Constitution, which direct the State to endeavour to bring about prohibition of the consumption, except for medicinal purposes, of intoxicating drugs injurious to health. The government's policy on the subject which flows from this constitutional provision is also guided by the international conventions on the subject.
- India is a signatory to the single Convention on Narcotic Drugs 1961, as amended by the 1972 Protocol, the Conventions on Psychotropic Substances, 1971 and the United Nations Convention against Illicit Traffic in Narcotic Drugs and Psychotropic Substances, 1988. The broad legislative policy is contained in the three Central Acts, viz. Drugs and Cosmetics Act, 1940, The Narcotic Drugs and Psychotropic Substances Act, 1985, and The Prevention of Illicit Traffic in Narcotic Drugs and Psychotropic Substances Act, 1988.
- The **Narcotic Drugs and Psychotropic Substances Act, 1985** which came into effect from the 14th November, 1985 made an express provision for constituting a Central Authority for the purpose of exercising the powers and functions of the Central Government under the Act.

Narcotics Drugs and Psychotropic Substances Act, 1985

- It is the primary legislation for dealing with drugs and their trafficking.
- It has various provisions to punish manufacturing, sale, possession, consumption, use, transport of banned drugs.
- It provides for the penalty of property derived from or used in illegal traffic in narcotic drugs.
- The central government can add or omit from the list of psychotropic substances. For instance, in 2015, the central government classified mephedrone – also called as meth or meow meow – as a psychotropic substance in the Act after its popularity grew among the youth and experts warned of its grave health consequences.

Recently, NCB arrested the country's first Darknet narcotics operative under the Act the global 'Operation Trance' (A joint intelligence-gathering action on international postal, express mail and courier shipments containing psychotropic drugs that are abused as sedatives and painkillers.

- The Bureau, subject to the supervision and control of the Central Government, is to exercise the powers and functions of the Central Government for taking measures with respect to:
 - a) Co-ordination of actions by various offices, State Governments and other authorities under the N.D.P.S. Act, Customs Act, Drugs and Cosmetics Act and any other law for the time being in force in connection with the enforcement provisions of the NDPS Act, 1985.
 - b) Implementation of the obligation in respect of counter measures against illicit traffic under the various international conventions and protocols that are in force at present or which may be ratified or acceded to by India in future.
 - c) Assistance to concerned authorities in foreign countries and concerned international organisations to facilitate coordination and universal action for prevention and suppression of illicit traffic in these drugs and substances.
 - d) Coordination of actions taken by the other concerned Ministries, Departments and Organizations in respect of matters relating to drug abuse.
- The Narcotics Control Bureau is the apex **coordinating** agency. It also functions as an **enforcement** agency through its zones and sub-zones. The zones and sub-zones collect and analyse data related to seizures of narcotic drugs and psychotropic substance, study trends, modus operandi, collect and disseminate intelligence and work in close cooperation with the Customs, State Police and other law enforcement agencies.

5.4. National Technical Research Organisation (NTRO)

- The National Technical Research Organisation (NTRO) is a technical intelligence Agency under the National Security Advisor in the Prime Minister's Office, India. It also includes National Institute of Cryptology Research and Development (NICRD), which is first of its kind in Asia.
- The NTRO was created after the 1999 Kargil conflict as a dedicated technical intelligence agency. It was finally constituted in 2004.
- The National Technical Research Organisation (NTRO) was set up to be the premier technical intelligence (TECHINT) agency of the country with the mandate to collect communications intelligence (COMINT), electronic intelligence (ELINT), IMINT and cyber intelligence. The NTRO's mandate created quite a storm, since it was given tasks already being done by other intelligence services, resulting in inter-agency turf battles that led to problems in its functioning for nearly a decade.
- The Home Ministry issued a notification listing National Technical Research Organization (NTRO) under the **Intelligence Organizations (Restriction of Rights) Act, 1985**. NTRO now has the same "norms of conduct" as the Intelligence Bureau (IB) and the Research and Analysis Wing (R&AW). In 2012, the Home Ministry had declined to give phone surveillance powers to NTRO arguing that it was not notified under the Act. Now NTRO may be allowed to intercept.

Intelligence Organizations (Restriction of Rights) Act 1985

- The aim of this act is to prevent leakage of information by intelligence agencies.
- It prevents employees of a notified agency
 - From forming unions/associations.
 - Puts restrictions on the employee's freedom of speech.
 - Bars any communication with the press, or
 - publishing a book or other document without the permission of the head of the intelligence organization.

5.5. National Intelligence Grid (NATGRID)

Student Notes:

- The National Intelligence Grid or NATGRID is the integrated intelligence master database structure for counter-terrorism purpose connecting databases of various core security agencies under Government of India collecting comprehensive patterns procured from 21 different organizations that can be readily accessed by security agencies round the clock.
- The 26/11 attacks on Mumbai led to the exposure of several weaknesses in India's intelligence gathering and action networks. NATGRID is part of the radical overhaul of the security and intelligence apparatuses of India. The National Investigation Agency (NIA) and the National Counter Terrorism Centre (NCTC) are two organisations established in the aftermath of the Mumbai attacks of 2008.
- Unlike the NCTC or the NIA which are central agencies, the NATGRID is essentially a tool that enables security agencies to locate and obtain relevant information on terror suspects from pooled data sets of various organizations and services in the country. It will help identify, capture and prosecute terrorists and help preempt terror plots.
- The NATGRID will have data related to all immigration entry and exit, banking and financial transactions, credit card purchases, telecom, individual taxpayers, air flyers, train travellers besides others to generate intelligence inputs.
- 10 users' agencies and 21 service providers will be connected with the NATGRID while in the later stages 950 organisations and in subsequent years another 1,000 organisations will be connected with it.
- The 10 agencies which will be able to access the NATGRID data on real-time basis are: Intelligence Bureau (IB), Research & Analysis Wing (R&AW), Central Bureau of Investigation (CBI), Enforcement Directorate (ED), Directorate of Revenue Intelligence (DRI), Financial Intelligence Unit (FIU), Central Board of Direct Taxes (CBDT), Central Board of Excise and Customs (CBEC), Directorate General of Central Excise and Intelligence (DGCEI) and Narcotics Control Bureau (NCB).

Controversies

- Issues of nepotism, inefficiency and corruption affect the internal working of the organisation.
- There have also been allegations of financial irregularities in the procurement of military hardware.
- In 2011, a whistle-blower reported that NTRO has tapped 7,50,000 phones illegally.

Suggestion

- Need for an oversight mechanism to ensure accountability of senior officials.
- Better coordination between various intelligence agencies to avoid duplication and conflict of efforts.

MoU between NATGRID and NCRB

- This will allow NATGRID to access the centralised online database on FIRs and stolen vehicles and become a one-stop solution for security and intelligence agencies.
- It will allow access to Crime and Criminal Tracking Network and Systems (CCTNS) database that links around 14,000 police stations.

Concerns

- Without a data security architecture in place, there remains a possibility of data leak and associated privacy issues.
- Infringes on the federal structure as police is a state subject.
- Efficacy in preventing terror have been questioned, given that no state agency or police force has access to its database.

Suggestions

- Need to provide a statutory backing to the structure with safeguards for data protection.

5.6. National Investigation Agency (NIA)

- The National Investigation Agency (NIA) is India's counter-terrorist task force.] The agency is empowered to deal with terror related crimes across states without special permission from the states. The National Investigation Agency (NIA) was constituted under the National Investigation Agency **(NIA) Act, 2008**. The agency aims:
 - a) To be a thoroughly professional investigative agency matching the best international standards.
 - b) To set the standards of excellence in counter terrorism and other national security related investigations at the national level by developing into a highly trained, partnership oriented workforce.
 - c) To creating deterrence for existing and potential terrorist groups/individuals.
 - d) To develop as a storehouse of all terrorist related information.
- The cases are assigned to the NIA by the Central Government in accordance with section VI of the NIA Act, 2008. The investigation of the cases is done by the Agency independently. After investigation, the cases are placed before the NIA Special Court. It is empowered to deal with terror-related crimes across states without special permission from the states.
- Recent amendments to the NIA Act include:
 - a) It will be applicable to persons who commit a scheduled offence beyond India against Indian citizens or affecting the interest of India.
 - b) It has included new offences like cyber-terrorism, counterfeit currency, explosive substances, human trafficking etc in the Schedule of the NIA Act.
 - c) The Central government may designate the Sessions Courts as Special Courts for conducting the offences under the NIA Act.

Issues in functioning

- Poor coordination mechanism with other specialised agencies.
- Lack of financial autonomy.
- Criticized by state governments as a threat to the federal structure.
- Lack of dedicated cadre of officers serving in the organisation.

Suggestions

- Creation of a separate cadre of officers for the NIA.
- Granting financial autonomy to the organisation.

5.7. Multi-Agency Center (MAC)

- The Multi-Agency Centre (MAC) was formed following the Kargil intrusion and the subsequent overhaul of the Indian national security apparatus suggested by the Kargil Review Committee report and GoM report.
- Accordingly, the Intelligence Bureau (IB) was authorized to create a multi-agency centre (MAC) in New Delhi. Now functioning 24/7 as the nodal body for sharing intelligence inputs, MAC coordinates with representatives from numerous agencies, different ministries, both central and state.

6. UPSC Mains Previous Years' Questions

1. Indian government has recently strengthened the anti-terrorism laws by amending the unlawful activities (Prevention) act (UAPA), 1967 and the NIA Act. Analyze the changes in the context of prevailing security environment while discussing the scope and reasons for opposing the UAPA by human rights organizations. (2019)

7. Vision IAS Mains Previous Years Questions

Student Notes:

1. **Highlighting the role of the National Security Guard in India, discuss the issues associated with this force. What are the reforms required in this regard?**

Approach:

- Introduce by highlighting the role of the National Security Guard.
- Discuss the issues faced by this force.
- Mention the reforms required for the force.
- Conclude on the basis of above points.

Answer:

The National Security Guard (NSG) was raised in **1984** and institutionalised under the National Security Guard Act, 1986. It operates under the **Ministry of Home Affairs**. It is considered **India's premier counter-terrorist force** for anti-hijacking, counter-terrorism, hostage rescue and other such special operations. However, the handling of the 26/11 Mumbai attacks and the attack on Pathankot air base raised **serious questions about the preparedness** of these forces.

The **various issues** associated with this force are as follows:

- The NSG Headquarters and the Academy are **manned by a mix of personnel** from all the forces with different cultural and professional outlooks leading to **coordination challenges**.
- The organisation is **headed by Director General belonging to the IPS with limited practical experience** in handling counter-terror or irregular warfare operations.
- The forces are **stationed at only a few centres** across the country. Also, **NSG's limited independent logistics** capacity causes delay in reaching its destination. For instance, delay in arrival in November 2008 Mumbai attacks, from their base in Manesar, Haryana.
- Despite constantly redesigning training programmes, it still remains **inward looking with no new ideas in operational tactics**. For instance, lack of terrain information to NSG in different geographies led to delay in conclusion of operation in Pathankot Attack.
- The force continues to be marred by **shortage of cutting-edge equipment and training aids**. The proposed Rs.1400 crores modernisation plan has remained on paper.

A **range of reforms** have been suggested in this regard, such as:

- The forces need to be established as an **independent special operations command** with its own cadre and leadership.
- It should have a dedicated **Air Wing** to strengthen its aviation capability and timely movement.
- It should have **local quick response groups** (NSG hubs) under the central forces for rapid action response.
- There is a need to implement the **modernisation programme to effectively provide modern equipment** such as real time sensor shoot grid, vision and thermal image fusion cameras, and state of the art weaponry. The procurement system should be free from bureaucratic delays.
- **Training needs to be upgraded by sharing experiences** and interacting with specialist forces from other countries like the SAS (UK), GSG-9 (Germany).

Recently, the government has decided to remove NSG commandos from **VIP** security duties and also **proposed a NSG hub** in Punjab. In the wake of growing terrorist

violence in different forms, it is pivotal that NSG emerges as a lean and agile force with focus on speed, stealth, precision and zero error.

Student Notes:

2. Subsequent to the 26/11 Mumbai attacks, the coastal security arrangement has been thoroughly reviewed by the Government of India. Comment.

Approach:

- Briefly mention the vulnerability of India's coastal borders and its failure to prevent the 26/11 attack.
- Highlight the changes/reforms made in the coastal security arrangement by the Government of India.
- Conclude on the basis of above points.

Answer:

The 26/11 Mumbai attacks exposed the vulnerabilities faced by India from the sea and its inept handling of coastal security matters including lack of coordination among different agencies. India continues to face **three levels of asymmetric threats** emanating from its long coastal borders:

- **Terror attacks** by non-state actors on population centres and vital installations like atomic power plants and naval guard bases.
- Threats posed by **organised gangs** carrying out smuggling of narcotics, arms and explosives as seen in the 1993 Mumbai Bomb blasts.
- Vulnerability of the Indian coast to **illegal inflow of migrants and refugees**.

The 26/11 attacks prompted a **paradigm shift towards a multi-pronged approach** in the maritime security apparatus with increased emphasis on surveillance, intelligence gathering and information sharing amongst the various stakeholders to ensure an effective response to any emerging situation.

Coastal Security Arrangement post 26/11 Mumbai attacks:

- **National Committee for Strengthening Maritime and Coastal Security (NCSMCS):** It is apex national-level review forum for maritime and coastal security, in which all concerned ministries and government agencies are represented.
- **Coastal Security Scheme (CSS):** It provides for a **multi-tier arrangement** for patrolling and surveillance, with the *Indian Navy*, the *Indian Coast Guard* and the *State Coastal Police*, jointly securing the Indian coasts in their respective jurisdictions.
- **Joint Operations Centres (JOCs):** They were set up by the Navy as **command and control hubs** for coastal security at Mumbai, Visakhapatnam, Kochi and Port Blair. They are manned 24x7 jointly by the Indian Navy, Indian Coast Guard and Marine Police.
- **Electronic surveillance mechanism** has been augmented by provisioning of a radar chain called **Coastal Surveillance Network (CSN)** consisting of, Chain of Static Sensors, Automatic Identification System (AIS), Long Range Identification and Tracking (LRIT), day/night cameras etc.
- **National Command Control Communication and Intelligence Network (NC3I):** This overarching coastal security network collates data about all ships, dhows, fishing boats and all other vessels operating near our coast, from multiple technical sources including the AIS and radar chain.
- **Fishing communities** have been made the '**eyes and ears**' of India's security architecture. It includes **coastal security awareness campaigns**, issuing **ID cards** to

all fishermen with a **single centralised database**, registering and equipping **fishing vessels** with equipment to facilitate their **identification and tracking**.

Student Notes:

Thus since 2008, coastal security arrangement has been strengthened substantially by these initiatives. Further, the coastal security exercises like the **Sagar Kavach** and recent pan India mega exercise **Sea Vigil** should be institutionalised.

3. It is widely recognised that India's Central Armed Police Forces (CAPF) are in urgent need of overhaul. Discuss in the context of issues associated with personnel, infrastructure and service conditions of these forces.

Approach:

- Briefly explain what you understand by CAPF forces.
- Discuss the issues and challenges faced by CAPF forces in terms of personnel, infrastructure and service conditions, which need overhaul.
- Conclude appropriately.

Answer:

The Central Armed Police Forces (CAPF) refers to uniform nomenclature of seven security forces in India - Border Security Force (BSF), Central Reserve Police Force (CRPF), Central Industrial Security Force (CISF), Indo-Tibetan Border Police (ITBP), Sashastra Seema Bal (SSB), Assam Rifles and National Security Guard (NSG). They come under the Ministry of Home Affairs and perform various functions such as guarding of borders, security of sensitive establishments, counter terrorism and counter-naxal operations.

In the recent past their importance has increased due to **increased deployment and dependence of states** on them. This has also brought to light several issues being faced by these forces, which need to be addressed:

- **Personnel:**
 - There is **high attrition** in the CAPF mostly due to unregulated deployment of personnel and job discontentment. The number of personnel opting for voluntary retirement schemes in the CAPF rose to around 450% in 2016-17 as compared to the previous year according to the Home Ministry.
 - There is a **lack of promotional avenues** for CAPF personnel as IPS officers enjoy a de-facto monopoly on the leadership of the forces despite having limited experience of leading them.
 - They face **discrimination with regard to pay parity** in comparison with their counterparts in the armed forces and 'Group A Organised Services'. It was only recently that the CAPF personnel were granted 'non-functional upgradation', which is given to 'Group A Organised Services'.
- **Infrastructure:**
 - There is a **lack of effective arms and ammunition** such as bullet-proof jackets, modern arms, surveillance equipment, armoured vehicles etc. There is also **haphazard expansion of CAPF forces**, which adds to the infrastructural burden.
 - **Budget outlays** allocated for capacity augmentation of the CAPF are inadequate. Further, the **procurement process** under the 'Modernization Plan' of the CAPF is cumbersome and time consuming.
 - There is a need to **upgrade the curriculum and infrastructure** in CAPF training institutes. Further, the personnel need to be adequately trained in emerging threats such as cyber security.

- **Service conditions:**

- According to the NCRB data, as many as 2,200 CAPF personnel died in accidents and suicides from 2014-2018. The Ministry of Home Affairs has revealed that suicides are mostly committed due to reasons such as **lack of stability, loneliness and domestic strife**.
- The forces are burdened due to **indifference of superiors, lack of timely sanctioned leave and basic medical facilities**. Further, they **work in harsh conditions** without any standard rotation policy. For instance, the ITBP personnel are posted in snow-bound areas all year round.
- There is **absence of in-house grievance redressal mechanism**, due to which personnel take to social media to complain about poor housing and working conditions.
- **Continuous deployment** leaves less time for rest and recuperation and adds to their frustration. The deployment of CAPF's battalions has increased from 91 in 2012-13 to 119 times in 2016-17.

India's CAPFs play a very important ground role in India's national security. They require a serious overhauling across spheres like resource allocation, accountability structure and personnel management. These challenges must be adequately addressed and independent bodies should periodically review their service conditions and other grievances.

4. **Highlighting the key changes made by the National Investigation Agency (Amendment) Act, 2019, discuss the objections that have been raised against these.**

Approach:

- Give a brief account on the NIA Act.
- Enumerate the amendments made in the Act.
- Discuss the objections that have been raised against the amendments.
- Conclude on the basis of the above points.

Answer:

National Investigation Agency (NIA) is a central agency to combat terrorism in India, established under the **National Investigation Act, 2008**. It has wide powers such as, to take *suo motu* cognisance of terror activities in any part of India and register a case, to enter any state without permission from the state government, and to investigate and arrest people.

The **NIA (Amendment) Bill, 2019** was passed by the Parliament amending the original Act of 2008. Following are the amendments made:

- It **expanded the type of offences that the NIA could investigate and prosecute**. It can now investigate offences related to human trafficking, counterfeit currency, manufacture or sale of prohibited arms, cyber-terrorism, and offences under the Explosive Substances Act, 1908.
- The NIA will have the **power to investigate scheduled offences committed outside India**, subject to international treaties and domestic laws of other countries. A special court will preside over such cases.
- The amendment enables the **central government to designate session courts as special courts for NIA trials** under Section 11 and 22 of the NIA Act 2008.

However, the following **objections** have been raised against the recent amendments:

- The **new amendment has diluted the nature and operation of the Act**, which was enacted to prosecute offences affecting national security, by incorporating offences such as trafficking of minors for sexual exploitation etc., which **may not be related to terrorism**.
- The **expanded scope** of scheduled offences may be prone to **misuse by government**, which can categorize them as acts of terrorism. This is especially dangerous when the terms/ phrases like '**terrorism**', '**affecting the interest of India**' have not been **defined** under the Act, which may be interpreted to **curb dissent**.
- The expanded jurisdiction covers matters (such as offences under the Explosives Act) which are also in the domain of the state governments leading to possible **encroachment on their jurisdiction**.
- The provision to designate the existing Sessions Courts as Special Courts will dilute the **exclusivity** of the NIA Act. These sessions courts would run on similar lines as they do under other Central Acts, thus **eroding the special character** of this Act. Also, these courts are **already overburdened with pending cases** and this move will further increase their burden.
- The power to investigate cases outside India would not be useful **without any cooperation and extradition treaties with other countries**.

The amendments have been brought to strengthen the National Investigation Agency. However, the aforementioned concerns need to be addressed so that there is a coordinated effort for the fight against terrorism.

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